



Constitution law

Constitutional law 2 (Osmania University)



Scan to open on Studocu

CONSTITUTIONAL LAW

By

@The_Lawgical_World



SYLLABUS.....	3
Unit - I.....	4
Constitution.....	5
Meaning and Definition.....	5
Sources of Indian Constitution.....	7
Evolution of Modern Constitutions.....	11
Classification of Constitutions.....	15
Indian Constitution.....	21
Historical Perspectives.....	21
Government of India Act 1919 (Montague-Chelmsford Reforms).....	38
Government of India Act 1935.....	42
Drafting of Indian Constitution.....	47
Role of Drafting Committee of the Constituent Assembly.....	48



SYLLABUS

Unit - I: Constitution-Meaning and Significance - Evolution of Modern Constitutions - Classification of Constitutions- Indian Constitution - Historical Perspectives - Government of India Act, 1919-Government of India Act, 1935-Drafting of Indian Constitution - Role of Drafting Committee of the Constituent Assembly.

Unit - II: Nature and Salient Features of Indian Constitution - Preamble to Indian Constitution - Union and its Territories-Citizenship - General Principles relating to Fundamental Rights(Art.13) - Definition of State.

Unit - III: Right to Equality(Art.14-18) – Freedoms and Restrictions under Art.19 - Protection against Ex-post facto law - Guarantee against Double Jeopardy - Privilege against Self-incrimination - Right to Life and Personal Liberty - Right to Education – Protection against Arrest and Preventive Detention.

Unit - IV: Rights against Exploitation - Right to Freedom of Religion - Cultural and Educational Rights - Right to Constitutional Remedies - Limitations on Fundamental Rights(Art.31-A,B and C).

Unit - V: Directive Principles of State Policy – Significance – Nature – Classification - Application and Judicial Interpretation - Relationship between Fundamental Rights and Directive Principles - Fundamental Duties – Significance - Judicial Interpretation.



Unit - I

Constitution - Meaning and Significance - Evolution of Modern Constitutions - Classification of Constitutions- Indian Constitution - Historical Perspectives - Government of India Act, 1919-Government of India Act, 1935-Drafting of Indian Constitution - Role of Drafting Committee of the Constituent Assembly.



Constitution

Constitution is a set of rules and regulations which is to be followed by all the citizens of country. It shows the relation between government and citizens. In the constitution it is mentioned that how the government and citizens should work.

The term constitution comes through French from the latin word *constitutio*, used for rules and regulations such as imperial enactments. Basically in constitution it is told that how a country should run with the help and guidance, enactments of law, different articles and how all the laws protect our rights. It is the supreme law of India. The book or document lays down the framework demarcating fundamentals political codes, structures and procedures, powers, and duties of government institutions and sets out fundamental rights ,directive principles, duties of citizens. Constitution governs the law of country.

Meaning and Definition

A constitution is a body of fundamental principles or established precedents according to which a state or other organization is acknowledged to be governed.

Aristotle defines a Constitution as "the way of life the state has chosen for itself". Such a definition is very ancient and no clear characteristics of a Constitution can be found in it.

According to C.F Strong, " A Constitution may be said to be a collection of principles according to which the powers of the government, the rights of the government and relation between the two are adjusted".

A constitution is a basic design, which deals with the structure and powers of government. It also includes the rights and duties of citizens. Often a 'constitution' is understood as a document that is written and accepted at a particular time, but it is not the true meaning of the constitution, the constitution may be written or unwritten.

According to Lord Bruce –" Constitution is the aggregate of laws and customs under which the life of the state goes on ".

Sir James Mackintosh: – By the state constitution, a body of written or unwritten fundamental laws means those which regulate the most important rights of the High Magistrate which are the most essential privileges of subjects.



George Cornewell Lewis: – He defined constitution as “system and distribution of sovereign power as community or government”.

Leacock: – According to him, “Constitution is the form of government”.

Austin: – stated the definition of constitution as, “It fixes the structure of supreme government.”

Features

It is possible that a particular type of constitution may prove useful for a particular country, but it may not prove useful for any other country. It depends on the social and economic set of the country. Every state has the right to decide its constitution.

According to the definition of constitution, good constitution should have the following essentials: –

- **Clarity or definiteness:** Every sentence or clause written in the constitution should be in simple language. The meaning of each clause should be express clearly without leaving any scope for confusion.
- **Brevity:** The formation should not be too long. It should only include important things. But this brevity should not make a difference in the constitution except for a few issues.
- **Comprehensiveness:** The constitution should apply throughout the country. If it is a federation, it should demarcate the structure and power of the central and provincial governments.
- **Flexibility:** The constitution should not be too rigid to interrupt the amendment process when needed.
- **Declaration of rights:** People should have fundamental rights in a good constitution. Such declarations have been made in the constitution of countries like India, Russia, China, America and Japan.
- **Independence of judiciary:** The independence of the judiciary is another quality of a good constitution. The judiciary must act independently and act as a protector of the fundamental rights of the people without any fear.
- **Directive Principles of State Policy:** Directive principles of state policy have to be mentioned in a good constitution as it helps in the creation of a welfare state.

Significance

here can be several purposes for drafting a constitution, they are:



- To provide a set of basic rules that allow for minimal coordination amongst members of society.
- To specify who has the power to make decisions in a society. It decides how the government will be constituted.
- To set some limits on what a government can impose on its citizens. These limits are fundamental in the sense that government may never trespass on them.
- To enable the government to fulfil the aspirations of a society and create conditions for a just society.

Therefore, it can be understood that the constitution allows coordination and assurance. On the other hand, it can limit the powers of the government.

Sources of Indian Constitution

The sources of the Indian constitution

1. United States of America

- **Impeachment of the President:** Article 61 of the Constitution calls for the impeachment of the President of India. The President may be disqualified from office by impeachment. Impeachment proceedings can be taken in any Parliament House.
- **Removal of Judges:** Article 124 (4) of the Constitution allows the President to remove a judge for misconduct or incapacity, if Parliament approves a majority of the total membership of each House for impeachment and less than two-thirds of the members don't Present in each house.
- **Fundamental Rights:** Articles 12 to 32 of the Constitution of India include all fundamental rights. Basic rights are the fundamental human rights given to the people of the country to ensure an equal place in society.
- **Judicial independence:** The idea of judicial independence is that the judiciary should be different from other government branches.
- **Preamble:** The Preamble is introduction of the Indian constitution. It guarantees justice, freedom, equality for all Indian citizens, and fosters fraternity among the people.
- **Judicial Review:** The judiciary has the upper hand in interpreting the constitutional review provision. Therefore, the judiciary can rescind any order by the legislature or executive if that order conflicts with the constitution of the country.



- **Functions of President and Vice President:** The President of India is the head of the Indian Armed Forces and the Commander-in-Chief.

Article 63 of the Indian Constitution states that "there shall be the Vice-President of India." Due to death, resignation, impeachment or other circumstances, the Vice-President shall act as President in the absence of the President. The Vice President of India is now the ex-officio Secretary of the Rajya Sabha.

2. The United Kingdom

- **Single citizenship:** The Constitution of India grants single citizenship to the residents of the country. The residents of the country are all citizens regardless of the states or territories in which they reside.
- **Legislative process:** The legislative proposal will be brought before the Parliament House of India in the form of a bill. A bill is a draft legislative law which, when passed by the Parliamentary Houses and approved by the President, becomes a Parliamentary Act.
- **Rule of law:** It essentially states that a state is governed by the laws of that country, not by representatives or citizens and states that everyone is equal before the law and those who make it are also included. Article 14 of the Constitution of India codifies the rule of law.
- **Cabinet system:** A group of persons appointed by the head of state or prime minister who is the head of the executive departments of the government and acts as an official advisor.
- **Parliamentary form of government:** The President is the head of the state, and the head of the government is the Prime Minister. In such form of government, a cabinet of ministers headed by the Prime Minister rules the country. The Parliament consists of two Houses: – Lok Sabha and Rajya Sabha.

3. Ireland

- **Direct Principles of State Policy:** The Directive Principle of State Policy is stated in Part IV of the Indian Constitution, and it clearly states that it is the responsibility of the state to follow certain principles in the process of law making. There are three major types of these concepts i.e., Democratic guidelines, Gandhian guidelines and liberal intellectual guidelines. Ireland is also borrowing the process of appointing members to the Rajya Sabha.
- Method of election of head of state i.e. President.

4. Australia



- **Article 108:** Joint sitting of both houses in some cases.
- **Concurrent List:** This includes the power to be considered by both the Union and the State Government.
- **Freedom of trade and commerce:** Freedom of trade and commerce within the nation and between states. Similar provisions are laid down in sections 301 to 307 of the Indian Constitution.

5. Canada

- Federal system with a strong central government.
- Power-sharing between central government and state governments.
- Advisory jurisdiction of Supreme Court.
- Appointment of State Governors by the Center.

6. Soviet Union (USSR)

- A constitutionally appointed Planning Commission to oversee economic development.
- The fundamental duty given in Article 51A (G) refers to the duty of a citizen to protect the environment.

7. Russia: The ideology of Social, Economic and Political justice in the preface.

8. Germany: Gave us an immediate clause for suspension of fundamental rights.

9. South Africa: Provided us with the provision of amendment process and election of members of Rajya Sabha.

10. France: The preamble of Indian Constitution borrowed its principles of freedom, equality and fraternity from the French Constitution. In the tradition of the Constitution of France, the Indian Constitution is known as the Republic of India.

11. Government of India Act 1935

- **Federal Legislature:** The Act stated that the legislature should have two houses, namely the Council of States and a Federal Legislative Assembly.

Major Sources of Indian Constitution

Provisions	Source/Country
Constitution of the United States	1. Preamble 2. Fundamental Rights 3. Federal structure of government 4. Electoral College 5. Independence of the judiciary and



	separation of powers among the government 6. Judicial review 7. President as Supreme Commander of Armed Forces 8. Equal protection under law
British constitution	1. Parliamentary form of government 2. The idea of single citizenship 3. The idea of the Rule of law 4. Writs 5. Institution of Speaker and his role 6. Law making procedure 7. Procedure established by Law
Canadian constitution	1. A quasi-federal form of government – a federal system with a strong central government 2. Distribution of powers between the central government and state governments 3. Residual powers retained by the central government
Irish constitution (Ireland)	1. Directive Principles of State Policy 2. Nomination of members to Rajya Sabha 3. Method of Election of President
French constitution	1. Republic and the ideals of Liberty, Equality and Fraternity in the Preamble
Australian constitution	1. Freedom of trade and commerce within the country and between the states 2. Power of the national legislature to make laws for implementing treaties 3. Concurrent List
Constitution of Soviet Union (USSR)	1. Fundamental Duties under Article 51-AA 2. Constitutionally mandated Planning Commission to oversee the economy
Constitution of South	1. Procedure for amendment Election of



Africa	Rajya Sabha members
Constitution of Germany	1. Emergency powers to be enjoyed by the Union 2. Suspension of Fundamental Rights during emergency.
Constitution of Russia	1. Fundamental Duties Idea of Social, Economic, and Political Justice in Preamble
Constitution of Japan	1. Procedure Established by Law
Government of India Act 1935	1. Federal Scheme 2. Emergency Provisions 3. Public Service Commissions 4. Office of Governor 5. Judiciary 6. Administrative Details

Evolution of Modern Constitutions

In 1938, Jawaharlal Nehru, on behalf of the INC declared that 'the Constitution of free India must be framed, without outside interference, by a Constituent Assembly elected on the basis of the adult franchise'.

The demand was finally accepted in principle by the British Government in what is known as the 'August Offer' of 1940. In 1942, Sir Stafford Cripps, a member of the cabinet, came to India with a draft proposal of the British Government on the framing of an independent Constitution to be adopted after World War II.

The Cripps Proposals were rejected by the Muslim League which wanted India to be divided into two autonomous states with two separate Constituent Assemblies. Finally, a Cabinet Mission was sent to India. While it rejected the idea of two Constituent Assemblies, it put forth a scheme for the Constituent Assembly which more or less satisfied the Muslim League.

It was under the Cabinet Mission Plan of 1946 that the Constituent Assembly was constituted to frame a Constitution for India: The Constituent Assembly, which had been elected for undivided India



and held its first sitting on December 9 1946, reassembled on August 14, 1947, as the sovereign Constituent Assembly for the Dominion of India.

It was elected by indirect election by the members of the Provincial Legislative Assembly (Lower House only), according to the scheme recommended by the Cabinet Delegation. The essentials of this scheme were as follows –

- The Provinces elected 292 members while the Indian States were allotted a maximum of 93 seats,
- The seats in each province were distributed among the three main committees Muslim, Sikh, and General, in proportion to their respective population.
- Members of each community in the Provincial Legislative Assembly elected their own representatives by the method of proportional representation with a single transferable vote,

The method of selection in the case of representatives of Indian States was to be determined by consultation. As a result of the Partition under the Plan of June 3, 1947, a separate Constituent Assembly was set up for Pakistan. The representatives of Bengal, Punjab, Sind, North-Western Frontier Province, Baluchistan and the Sylhet district of Assam (which had joined Pakistan by a referendum) ceased to be members of the Constituent Assembly of India, and there was a fresh election in the new Provinces of West Bengal and East Punjab. Hence, when the Constituent Assembly reassembled on Oct. 31, 1947 the membership of the House was reduced to 299. Of these 284 were actually present on Nov. 26, 1949, and appended their signatures to the Constitution as finally passed.

The evolution of representative institutions in the country began many decades before 26 January 1950 and continued unabated since. Its origins lie deeply embedded in the struggle for independence from Britain and in the movements for responsible and constitutional government in the princely States. The Charter Act of 1853 provided some sort of a separate 'Legislature' in the form of a 12-member Legislative Council.

The Indian Councils Act, 1861, which is described as the "prime Charter of the Indian Legislature" inaugurating the "system of legislative devolution in India", was followed by the Indian Councils Act of 1892 and 1909. The Act of 1909 which was in implementation of the Morley-Minto Reforms, introduced an element of election and representation in the Legislative Council at the Union. However, none of these Acts



provided for decisive say to the native elements in the matters of legislation and administration.

The Government of India Act of 1919, which gave effect to the Montague-Chelmsford Reforms, established a Bicameral Legislature at the Union for the first time and introduced some elements of responsible form of Government in the Provinces. The national leaders found the 1919 reforms inadequate, unsatisfactory and disappointing and urged the British Parliament to take early steps to establish fully responsible Government in India in accordance with the principle of self-determination.

For early revision of the Government of India Act, 1919, a resolution, which later became famous as the 'National Demand', was adopted by the Central Legislative Assembly which, for the first time, lent its support to the growing demand that the future Constitution of India should be framed by Indians themselves.

Another significant development in the Indian constitutional history was enactment of the Government of India Act, 1935. The Government of India Act, 1935 occupies a significant place in the constitutional history of India as the Act had endeavoured to give a written Constitution to the country. However, the freedom fighters or people's representatives had no role in the making of this document, and it suffered from serious drawbacks. Even after the enactment of the Government of India Act, 1935, the Central Government in India, by and large, remained what it was under the Act of 1919, since the federal part of the 1935 Act never came into operation; only some modifications in practice and procedure, as necessitated by the introduction of 'autonomy' in the Provinces, were made.

The Quit India Movement of 1942 lent a new thrust to the freedom struggle. Subsequently, there were several efforts to work out the transfer of power and to provide for a constitutional framework for free India. As a part of these efforts, a British Cabinet Mission arrived in India on 24 March 1946. The avowed purpose of the Mission was to assist the viceroy in setting up in India the machinery by which Indians could devise their own Constitution. During the negotiations, the emphasis on the fundamental issues of Independence and of a representative Constituent Assembly for framing the future Constitution unhindered by any external interference was reiterated.



The Cabinet Mission presented on 16 May 1946 a scheme of its own, laying down the principles and procedure for framing the future Constitution of India.

Framing of Constitution

In respect of the formation of the Constituent Assembly in order to frame the Constitution without delay, the Plan suggested;

(i) to allot to each Province a total number of seats in proportion to its population, roughly in the ratio of one to a million, as the nearest substitute for representation by adult suffrage;

(ii) to divide the provincial allocation of seats between the main communities in each Province in proportion to their population; and

(iii) to provide that the representatives allotted to each community in a Province shall be elected by the members of that community in its Legislative Assembly.

Under the terms of the Cabinet Mission Plan, the Members of Constituent Assembly were elected in July 1946. The India Independence Act, 1947 provided that the Constituent Assembly would have unlimited power to frame and adopt any Constitution and even to supersede the India Independence Act itself without the need for any further legislation on the part of the British Parliament. The Indian Independence Act expressly terminated the British Parliament's authority to legislate for the Dominion on or after the 15 August 1947.

The Constituent Assembly, thus, became a body fully representative of the States and Provinces in India and fully sovereign of all external authority. As a sovereign body, it completed the task of framing the Constitution for India in the best interest of people and without any outside interference.

On 29 August 1947, the Drafting Committee was elected by the Constituent Assembly under the Chairmanship of Dr. B.R Ambedkar for preparation of a draft Constitution. The Constituent Assembly was able to complete the monumental task of drafting a Constitution for independent India within a period of less than three years-two years, eleven months and seventeen days, to be exact. They produced a fine document, handwritten in 90,000 words.

On the 26th day of November 1949, it could proudly declare on behalf of the people of India that we do HEREBY ADOPT, ANACT AND GIVE TO OURSELVES THIS CONSTITUTION.

In all, 284 members actually appended their signatures to the Constitution as finally passed. The Original Constitution contained a



Preamble, 395 Articles and 8 Schedules. The provisions relating to citizenship, elections, provisional Parliament, temporary and transitional provisions were given immediate effect.

The rest of the Constitution of India came into force on 26 January 1950. On that day, the Constituent Assembly ceased to exist, transforming itself into the Provisional Parliament of India until a new Parliament was constituted in 1952.

Classification of Constitutions

1. Written and unwritten constitution

An unwritten constitution is a type of constitution that is not contained in one single document. This type of constitution is partially written and partly oral. Like common law and customary law, an unwritten constitution grows from many years of practical experience and from the political way of the people.

The British constitution is the best example of an unwritten constitution. It is not in one document, but can be found in various sources, such as statutes, conventions and judicial decisions.

As a result of being partly written and partly unwritten, the British Constitution relies on many practices or conventions. That is, constitutional practices which are not legal rules, but are accepted as binding by the British people.

On the other hand, a written constitution is a type of constitution that is contained in a single document and can be easily procured and consulted on any issue covered by it.

A written constitution is usually rigid in nature because of its cumbersome mode of amendment. Although it can actually be amended when found necessary.

Written constitution	Unwritten constitution
The written constitution is found in legal documents duly maintained in the form of law.	An unwritten constitution contains principles of government that have never been implemented as law.
It is precise, definite and systematic. It is the result of efforts made by the people conscious and deliberate.	It is indefinite, unsystematic and unprecise. Such a constitution is not the result of the conscious and deliberate efforts of the people.



It is created by a representative body elected by the people at a particular period in history.	It is not created by a representative component assembly. So, it is sometimes called a developed or cumulative constitution.
It is always promulgated at a specific date in history.	It has no fixed date, as it has evolved over time.
The Constitution of India is the best example of a written constitution (announced on 26 January 1950).	The Constitution of England is the best example of an unwritten constitution.
A written constitution is generally rigid and its amendments require constitutional laws. In other words, the distinction between constitutional law and common law is maintained. The first is considered superior to the second.	The unwritten constitution is not rigid and its amendments do not require any law. In other words, the distinction between constitutional law and common law is not maintained.
A written constitution can also be called an enacted constitution.	An unwritten constitution can also be called an un-enacted constitution.

2. Flexible and Rigid Constitution

A flexible constitution is a constitution, which can be easily amended or changed without a cumbersome procedure. This type of constitution may be amended just like any statute, with a simple majority of vote of the members of the parliament.

On the other hand, a rigid constitution is a type of constitution, which has a cumbersome or long amendment procedures. The procedure for amending a rigid constitution is different from the procedure for enacting and amending the ordinary laws of the land.

The enactment or amendment of an ordinary law is usually by simple majority vote in the relevant parliament that has authority to make or amend such law.

However, the procedure for amending a rigid constitution may include a two third majority vote of members of the central government legislature, as well as a two-third majority vote in two-third of the state legislatures in such country, and sometimes ratification by the people in a referendum and so forth.



Rigid constitution	Flexible constitution
A rigid constitution cannot be easily amended. It has very complex modification procedures.	A flexible constitution can be amended with the same ease as the general laws.
A rigid constitution cannot be accommodated according to the changing needs of society. No legislature can tamper with them, because they are superior to the common law.	A flexible constitution can be adjusted to suit the changing needs of people and society.
A rigid constitution is essentially a written constitution composed of experienced and learned people. Thus it is a symbol of national efficiency.	A flexible constitution is very useful for a developing country because it will not be a hindrance to progress due to its adaptability.
A rigid constitution does not develop and expand. People consider it as a sacred document and they are ready to work according to its provisions.	A flexible constitution grows and expands as nature matures.
A rigid constitution does not reflect the changing pulse of public opinion. In other words it represents the minds of experienced and learned people who initially implicated it.	A flexible constitution reflects the changing pulse of public opinion. In other words it represents the mind of the people.
Accordingly, legislatures should not have a constitution in their hands. So, a rigid constitution is based on the assumption that it is the perfect constitution for all time.	A flexible constitution is based on the sound assumption that there cannot be a right constitution for all time.

3. Unitary and Federal Constitution



A unitary constitution one of the types of constitution which provides that governmental powers should be concentrated on the single central government, which does not share powers with other body in the country, but delegates powers to regional, local government and other subordinate bodies.

Put in a different way, in a unitary constitution, all government powers are concentrated in the central or national government as the only source of authority from which powers emanates.

A country operating a unitary system of government usually adopts a unitary constitution. The constitution though Supreme, is usually flexible and not rigid, as the government has power to amend it as maybe necessary.

On the other hand, a federal system of government is an association of free states where power is constitutionally shared to the federal, state and local councils, and with each tier of government exercising its constitutionally assigned powers and functions.

Conversely, a federal constitution is one that provides for separate structures of government at the national, state and local councils, with each tier having its own constitutional assigned powers and duties.

The powers of the different tiers of the government are usually spelt out in legislative lists of the federal constitution.

Federal government	Unitary government
The system has multiple hierarchy levels, with both the central authority and the states (or provinces) both being sovereign.	There is no hierarchy of sovereign powers.
The central or national rules override the state rules.	States have no authority to pass their own laws, and the central or national government can order the states to do anything.
There is a balance between the levels of government.	The federal government has a huge percentage of power. Examples include Japan and Saudi Arabia.



Power and responsibilities are shared between national and local levels.

Power is placed in one central governing system

4. Democratic constitution

The word "democracy" is derived from a combination of two Greek words "Demos" meaning people, and "kratia" meaning "rule" or "government". Democracy is a government of the people, who participate in government either directly, or through representatives. A true democratic government must be a government made up of the generality or representatives of the people. It must also be a government formed and installed by the people.

In light of the above, a democratic constitution is a constitution that allows the people to choose their leaders by way of election, or to reject such leaders and their programmes, when they are no longer serving the interests of the the people. You might want to see the problems of democracy here.

5. Republican and Monarchical constitution

A republican constitution is a type of constitution that provides for the position of an elected head of state for a fixed term of office who is usually known as President.

To understand a Monarchical constitution, you must understand that a monarchy is a government lead by a King, Queen, or Emperor.

A Monarchical constitution is actually a dynasty where the monarch is succeeded by his or her child or other heir from generation to generation or from one ruling house to another.

6. Presidential and parliamentary constitution

A presidential constitution is a type of constitution where all executive powers are vested in a president who is the head of state and head of government. The president may exercise the executive powers of government either directly by himself or through the vice president, minister or other officers in the public service of the country.

The powers of the president is to maintain the constitution and to apply all the laws made by the parliament for the time being in force.

On the other hand, a parliamentary constitution is a type of constitution where all the executive powers of the government are vested in a Prime



Minister, who is the head of government and the head of the majority party, but is not the head of state.

In countries where this type of constitution is practiced, the head of state who exercises only ceremonial functions may be a monarch, or a president, who is the figure head, symbol of the state and the Father or mother of the nation as the case may be.

It is important to note that most times, the prime ministers in the cabinet are all members of the same party or coalition equals.



Indian Constitution

The Constitution of India is the supreme law of India. The document lays down the framework that demarcates fundamental political code, structure, procedures, powers, and duties of government institutions and sets out fundamental rights, directive principles, and the duties of citizens. It is the longest written constitution of any country.

It imparts constitutional supremacy (not parliamentary supremacy, since it was created by a constituent assembly rather than Parliament) and was adopted by its people with a declaration in its preamble. Parliament cannot override the constitution.

It was adopted by the Constituent Assembly of India on 26 November 1949 and became effective on 26 January 1950. The constitution replaced the Government of India Act 1935 as the country's fundamental governing document, and the Dominion of India became the Republic of India. To ensure constitutional autochthony, its framers repealed prior acts of the British parliament in Article 395. India celebrates its constitution on 26 January as Republic Day.

The Constitution declares India a sovereign, socialist, secular and democratic republic, assures its citizens justice, equality and liberty, and endeavors to promote fraternity. The original 1950 Constitution is preserved in a helium-filled case at the Parliament at the Parliament House in New Delhi. The words "Socialist" and "Secular" were added to the preamble by 42nd Amendment act in 1976, during the Emergency.

Historical Perspectives

In 1928, the All Parties Conference convened a committee in Lucknow to prepare the Constitution of India, which was known as the Nehru Report.

Most of India was under direct British rule from 1857 to 1947. Upon independence it became clear a new constitution was needed to be created. But for that the all of India needed to be brought into the union. This meant the the Princely States needed to be convinced to become a part of the Indian union. Either by force or diplomacy. Sardar Vallabhai Patel and V.P Menon did this unenviable task. Until this happened India was still legally a dominion under the British, responsible for external security.



Thus, the constitution of India repealed the Indian Independence Act 1947 and Government of India Act 1935 when it became effective on 26 January 1950. India ceased to be a dominion of the British Crown and became a sovereign democratic republic with the constitution.

Historical Evolution of the Indian Constitution

There are various layers in the background of the Indian Constitution:

- Regulating Act 1773
- Pitt's India Act 1784
- Charter Act of 1813
- Charter Act of 1833
- Charter Act of 1853
- Government of India Act 1858
- Indian Councils Act 1861
- India Councils Act 1892
- Morley-Minto Reforms 1909
- Montague-Chelmsford Reforms 1919
- Government of India Act 1935
- Indian Independence Act 1947

These acts were in some way instrumental for the development of the Indian Constitution.

Regulating Act 1773

Main points: First time the British Parliament resorted to regulating the affairs of the East India Company. The Governor of Bengal was made the Governor-General of Bengal (Warren Hastings). An Executive Council of the Governor-General was created with 4 members. Centralised the administration with the Presidencies of Madras and Bombay being made subordinate to the Bengal Presidency. Supreme Court was established at Calcutta as the Apex Court in 1774. Prohibited company officials from engaging in private trade and from accepting gifts from Indians.

1) Introduction:

The regulating Act of 1773 was passed by the British Parliament to control the territories of the East India Company majorly in Bengal. This act was passed due to the misgovernment by the British East India government that introduced a situation of bankruptcy and the government had to interfere with the affairs of the Company.

The Regulating Act was passed in the British Parliament in June 1773. It was the first parliamentary ratification and authorization



defining the powers and authority of the East India Company with respect to its Indian possessions.

2) Background/Reasons for passing the Act

- The East India Company was in severe financial crisis and had asked a loan of 1 million pounds from the British government in 1772.
- Allegations of corruption and nepotism were rampant against company officials.
- There was a terrible famine in Bengal where a huge population perished.
- The Dual form of administration instituted by Robert Clive was complex and drawing a lot of complaints. According to this system, the company had Diwani rights (obtained after the Battle of Buxar) in Bengal and the Nawab had Nizamat rights (judicial and policing rights) as secured from the Mughal Emperor. In reality, both powers were vested with the company. The farmers and the general population suffered as their improvement was neglected and the company was only concerned with maximising revenue.
- Lawlessness increased in Bengal.
- The defeat of the company against Mysore's Hyder Ali in 1769.

3) Provisions of the Regulating Act

- This act permitted the company to retain its territorial possessions in India but sought to regulate the activities and functioning of the company. It did not take over power completely, hence called 'regulating'.
- The act provided for the appointment of a Governor-General along with four Councillors in the Presidency of Fort William (Calcutta), jointly called the Governor-General in Council.
- As per this, Warren Hastings was appointed as the Governor-General of the Presidency of Fort William.
- The Governors in Councils at Madras and Bombay were brought under the control of Bengal, especially in matters of foreign policy. Now, they could not wage war against Indian states without Bengal's approval.
- The company directors were elected for a period of five years and one-fourth of them were to retire every year. Also, they could not be re-elected.



- The company directors were directed to make public all correspondence on revenue, civil and military matters with Indian authorities before the British authorities.
- A Supreme Court of Judicature was established at Calcutta with Sir Elijah Impey as the first Chief Justice. Judges were to come from England. It had civil and criminal jurisdiction over the British subjects and not Indian natives.

3) Defects of Regulating Act 1773

The major drawbacks of The Regulating Act of 1773 are stated below:

- The Governor-General had no veto power.
- It did not address the concerns of the Indian population who were paying revenue to the company.
- It did not stop corruption among the company officials.
- The Supreme Court's powers were not well-defined.
- The parliamentary control that was sought in the activities of the company proved to be ineffective as there was no mechanism to study the reports sent by the Governor-General in Council.

Pitt's India Act 1784

Brief introduction: Commercial and political functions of the company separated. The Court of Directors managed the commercial activities while the Board of Control managed political affairs. The company territories in India were called 'British possession in India'. Governor's Councils were set up in Madras and Bombay as well.

1) Introduction:

The Pitt's India Act, 1784 also called the East India Company Act, 1784 was passed by the British Parliament to correct the defects of the Regulating Act of 1773. This act resulted in dual control of British possessions in India by the British government and the Company with the final authority resting with the government. This act continued in effect until 1858.

2) Provisions of the Act

- For political matters, the Board of Control was created and for commercial affairs, the Court of Directors was appointed.
- The Board of Control took care of civil and military affairs. It comprised of 6 people:
 - Secretary of State (Board President)



- Chancellor of the Exchequer
- Four Privy Councillors
- In this dual system of control, the company was represented by the Court of Directors and the British government by the Board of Control.
- The act mandated that all civil and military officers disclose their property in India and Britain within two months of their joining.
- The Governor-General's council's strength was reduced to three members. One of the three would be the Commander-in-Chief of the British Crown's army in India.
- The Governor-General was given the right of veto.
- The Presidencies of Madras and Bombay became subordinate to the Bengal Presidency. In effect, Calcutta became the capital of the British possessions in India.

3) Features of the Act

- This act made a distinction between the commercial and political activities of the East India Company.
- For the first time, the term 'British possessions in India' was used.
- This act gave the British government direct control over Indian administration.
- The Company became subordinate to the British government unlike as in the previous Regulating Act of 1773, where the government only sought to 'regulate' matters and not take over.
- This act established the British Crown's authority in the civil and military administration of its Indian territories. Commercial activities were still a monopoly of the Company.

4) Drawbacks of the Act

- The act was deemed a failure because there was no clarity on the boundaries between the company's powers and the government's authority.
- The Governor-General had to serve two masters i.e. East India Company and the British Crown
- There were no clear boundaries between the responsibilities of the Board of Control and the Court of Directors of the company. The Governor-General had to take on the spot decisions exercising his discretion.



Charter Act of 1793

The Charter Act of 1793, also known as the East India Company Act 1793 was passed in the British Parliament in which the company charter was renewed.

Provisions of the Charter Act 1793

- This Act continued the company's rule over the British territories in India.
- It continued the company's trade monopoly in India for another 20 years.
- The Act established that "acquisition of sovereignty by the subjects of the Crown is on behalf of the Crown and not in its own right," which clearly stated that the company's political functions were on behalf of the British government.
- The company's dividends were allowed to be raised to 10%.
- The Governor-General was given more powers. He could override his council's decision under certain circumstances.
- He was also given authority over the governors of Madras and Bombay.
- When the Governor-General was present in Madras or Bombay, he would supersede in authority over the governors of Madras and Bombay.
- In the Governor-General's absence from Bengal, he could appoint a Vice President from among the civilian members of his Council.
- The composition of the Board of Control changed. It was to have a President and two junior members, who were not necessarily members of the Privy Council.
- The salaries of the staff and the Board of Control were also now charged to the company.
- After all expenses, the company had to pay the British government Rs.5 Lakhs from the Indian revenue annually.
- Senior company officials were barred from leaving India without permission. If they did so, it would be considered as a resignation.
- The company was granted the authority to grant licenses to individuals and company employees to carry on trade in India. This was known as 'privilege' or 'country trade'. This led to shipments of opium to China.



- This Act separated the revenue administration and the judiciary functions of the company leading to the disappearance of Maal Adalats (revenue courts).

Charter Act 1813

This act ended the East India Company's monopoly over trade with India except in tea and opium. Trade with India was open to all British subjects.

1) Background of Charter Act 1813

- Due to Napoleon Bonaparte's Continental System in Europe (which prohibited the import of British goods into French allies in Europe), British traders and merchants suffered.
- So they demanded they be given a share in the British trade in Asia and dissolve the monopoly of the East India Company.
- The company objected to this.
- Finally, British merchants were allowed to trade in India under a strict licensing system under the Charter Act of 1813.
- But in trade with China and the tea trade, the company still retained its monopoly.

2) Provisions of the Charter Act of 1813

- This Act asserted the Crown's sovereignty over British possessions in India.
- The company's rule was extended to another 20 years. Their trade monopoly was ended except for the trade in tea, opium, and with China.
- It empowered the local governments to tax people subject to the jurisdiction of the Supreme Court.
- The company's dividend was fixed at 10.5%.
- The Act gave more powers for the courts in India over European British subjects.
- Another important feature of this act was to grant permission to the missionaries to come to India and engage in religious proselytization. The missionaries were successful in getting the appointment of a Bishop for British India with his headquarters at Calcutta in the provisions of the Act.



- The act provided for a financial grant towards the revival of Indian literature and the promotion of science.
- The company was also to take up a greater role in the education of the Indians under them. It was to set aside Rs.1 Lakh for this purpose.

Charter Act 1833

Brief: Governor-General of Bengal was designated the Governor-General of India (Lord William Bentinck). The legislative powers of the Bombay and Madras Presidencies were removed. This act ended the commercial activities of the company and it was transformed into an administrative body.

1) Introduction to the Act:

The Charter Act of 1833 was passed in the British Parliament which renewed the East India Company's charter for another 20 years. This was also called the Government of India Act 1833 or the Saint Helena Act 1833

2) Features of the Charter Act of 1833

- The company's commercial activities were closed down. It was made into an administrative body for British Indian possessions.
- The company's trade links with China were also closed down.
- This act permitted the English to settle freely in India.
- This act legalised the British colonisation of the country.
- The company still possessed the Indian territories but it was held 'in trust for his majesty'.

3) Provisions of the Charter Act of 1833

- India became a British colony
- The Governor-General of Bengal was re-designated as the Governor-General of India. This made Lord William Bentinck the first Governor-General of India.
- Thus, the country's administration was unified under one control.
- The Governors of Bombay and Madras lost their legislative powers.
- The Governor-General had legislative powers over entire British India.
- The Governor-General in council had the authority to amend, repeal or alter any law pertaining to all people and places in British Indian territories whether British, foreign or Indian native.



- The civil and military affairs of the company were controlled by the Governor-General in council.
- The Governor-General's council was to have four members. The fourth member had limited powers only.
- For the first time, the Governor-General's government was called Government of India and the council was called India Council.

4) Indian Law Commission

- The act mandated that any law made in India was to be put before the British Parliament and was to be called 'Act'.
- As per the act, an Indian Law Commission was established.
- The first Law Commission had Lord Macaulay as its chairman.
- It sought to codify all Indian law.

5) Split in Bengal Presidency

- The act provided for the Presidency of Bengal to be divided into the Presidencies of Agra and Fort William.
- But this never came into effect.
- Indians in Government service
- This was the first act that gave permission for Indians to have a share in the country's administration.
- It stated that merit should be the basis of employment to government service and not birth, colour, religion or race.

6) Slavery

- The act provided for the mitigation of slavery existing in India at that time.
- The British Parliament abolished slavery in Britain and all its possessions in 1833.

7) Tilt towards Christianity

- Since the number of British residents in the country was increasing, the act allowed for having three Bishops in India.
- It also sought to regulate the establishment of Christian institutions in India.

8) Significance of the Charter Act of 1833

- It was the final step in the centralisation of India's administration.
- The ending of the East India Company's commercial activities and making it into the British Crown's trustee in administering India.
- Codification of laws under Macaulay.
- Provision for Indians in government service.

Charter Act 1853



Brief: The legislative and executive powers of the Governor-General's Council were separated. A Central Legislative Council was created of 6 members out of which 4 were appointed by the provisional governments of Madras, Bombay, Agra and Bengal. The Indian civil service was opened as a means to recruit officers for administration through open competition.

1) Introduction to the Act:

The Charter Act 1853 was passed in the British Parliament to renew the East India Company's charter. Unlike the previous charter acts of 1793, 1813 and 1833 which renewed the charter for 20 years; this act did not mention the time period for which the company charter was being renewed. This Act was passed when Lord Dalhousie was the Governor-General of India.

2) Provisions of the Charter Act 1853

- **Governor-General's office**

- The Law member (fourth member) became a full member with the right to vote.
- The Legislative Council which had six members now had 12 members.
- The 12 members were: 1 Governor-General, 1 Commander-in-Chief, 4 members of the Governor-General's Council, 1 Chief Justice of the Supreme Court at Calcutta, 1 regular judge of the Supreme Court at Calcutta, and 4 representative members drawn from among the company's servants with at least 10 years tenure, appointed by the local governments of Bengal, Bombay, Madras and North Western Provinces.
- The Governor-General could nominate a vice president to the council.
- The Governor-General's assent was required for all legislative proposals.
- The Court of Directors could create a new presidency or province. This was because of the difficulties that were faced in administering the increasingly large Indian territories of Britain.
- Since 1833 and 1853, two new provinces of Sind and Punjab were added.
- It could also appoint a Lieutenant Governor for these provinces. In 1859, a Lt. Governor was appointed for Punjab.



- This Act also led to the creation of Assam, Burma and the Central Provinces.
- The Act provided for the appointment of a separate governor for the Bengal Presidency. It maintained that the governor of Bengal should be different from the Governor-General who was to head administration of the whole of India.
- The number of Board of Directors was reduced from 24 to 18 out of which 6 people were to be nominated by the British Crown.
- **Indian Civil Services**
 - Macaulay Committee of 1854 gave India her first civil services.
 - This act removed the right of patronage to appointments in civil service held by the Court of Directors.
 - The appointment was to be done only by open competition based on merit and was open to all.
 - The report recommended that only the 'fittest' be selected to the ICS.

3) Features of the Charter Act 1853

- For the first time, the legislative and executive functions of the Governor-General's council were separated.
- This act served as the foundation of the modern parliamentary form of government. The legislative wing of the Governor-General's Council acted as a parliament on the model of the British Parliament.
- It extended the company's rule for an indefinite period, unlike the previous charter acts. Thus, it could be taken over by the British government at any time.
- Company's influence was further reduced by this act. The Board of Directors now had 6 members who were Crown-nominated.
- It gave birth to the Indian civil services and was open to all including Indians. This ended the system of appointments by recommendation and started a system of open and fair competition.
- For the first time, local representation was introduced into the legislative council in the form of four members from the local governments of Bengal, Bombay, Madras and North Western Provinces.

Government of India Act 1858

Brief introduction: After the 1857 revolt, the rule of the company was ended and the British possessions in India came directly under the British Crown. The office of the Secretary of State for India was created.



He was assisted by a 15-member Council of India. The Indian administration was under his authority and the Viceroy was his agent. The Governor-General was designated the Viceroy as well (Lord Canning). The Court of Directors and the Board of Control were abolished.

1) Introduction:

The Government of India Act 1858 was an Act of the British parliament that transferred the government and territories of the East India Company to the British Crown. The company's rule over British territories in India came to an end and it was passed directly to the British government.

2) Background

- The Revolt of 1857 served as a jolt to the British government.
- There was widespread resentment against the company in Britain as the policies of the company were blamed for the revolt.
- Queen Victoria, who was the monarch of Britain, also became the sovereign of British territories in India, with the title "Empress of India" as a result of this Act.

3) Provisions of the Government of India Act 1858

- East India Company was liquidated.
- Indian territories of Britain were to be governed in the name of the British Queen.
- The Court of Directors and the Board of Control were scrapped.
- The powers of the Company's Court of Directors were vested with the Secretary of State for India.
- This Secretary of State was to be a British MP and a member of the Prime Minister's cabinet. He was to be assisted by a council of 15 members.
- He was also the channel of communication between the British government in Britain and the Indian administration. He also had the power to send secret despatches to India without consulting his council.
- Via the Secretary of State, the British parliament could ask questions regarding Indian affairs.



- The representative of the British government in India was the Governor-General and Viceroy (both the same person to avoid conflict).
- The Viceroy and the governors of the various presidencies were appointed by the Crown.
- The Viceroy was to be assisted with an Executive Council.
- This act made India a direct British colony.
- This act abolished the dual government of the Pitt's India Act.
- This act also ended the doctrine of lapse.
- The Indian Civil Services was to be instituted for the administration of the country. There was provision for Indians also to be admitted to the service.
- It was decided that the remaining Indian princes and chiefs (more than 560 in number) would have their independent status provided they accept British suzerainty.

4) Facts – Government of India Act 1858

- First Secretary of State for India: Lord Stanley
- Prime Minister Benjamin Disraeli was opposed to the crown directly ruling India, but his fellow MP's did not agree with his views and the bill passed the House of Commons easily.
- First Governor-General and Viceroy of India: Lord Canning

Indian Councils Act 1861

Brief introduction: Indians were given representation in the Viceroy's Councils. 3 Indians entered the Legislative Council. Provisions were made for the entry of Indians in the Viceroy's Executive council also as non-official members. Portfolio system was recognised. Decentralisation initiated with the presidencies of Madras and Bombay being restored their legislative powers.

1) Introduction

The Indian Councils Act 1861 was an act of the British Parliament that made significant changes in the Governor-General's Council

2) Provisions of the Indian Councils Act 1861

- For the executive functions of the Council, a fifth member was added. Now there were five members for home, military, law, revenue and finance. (A sixth member for public works was added in 1874.)
- Lord Canning, who was the Governor-General and Viceroy at the time, introduced the portfolio system. In this system, each member was assigned a portfolio of a particular department.



- For legislative purposes, the Governor-General's Council was enlarged. Now, there were to be between 6 and 12 additional members (nominated by the Governor-General).
- There were appointed for a period of 2 years. Out of these, at least half of the additional members were to be non-official (British or Indian).
- Their functions were confined to legislative measures.
- Lord Canning nominated three Indians to the Council in 1862 namely, the Raja of Benares, the Maharaja of Patiala and Sir Dinkar Rao.
- Any bill related to public revenue or debt, military, religion or foreign affairs could not be passed without the Governor-General's assent.
- The Viceroy had the power to overrule the council if necessary.
- The Governor-General also had the power to promulgate ordinances without the council's concurrence during emergencies.
- The Secretary of State for India in Britain could also dissolve any act passed by the Governor-General's Council.
- This Act restored the legislative powers of the Governor-in-Councils of the Presidencies of Madras and Bombay (which was taken away by the Charter Act of 1833).
- The legislative council of Calcutta had extensive power to pass laws for the whole of British India.
- There was provision made for the formation of legislative councils in other provinces. New provinces could also be created for legislative purposes and Lieutenant Governors be appointed for them. Legislative councils were formed in other provinces in Bengal in 1862, North-West Frontier Province in 1886 and Punjab and Burma in 1897.

3) Assessment of the Indian Councils Act 1861

- The legislative council had limited role. It was chiefly advisory. No discussion on finance was permitted.
- Even though Indians were nominated, there was no statutory provision for the inclusion of Indians in it.
- It allowed for the decentralisation of administration with the vesting of legislative power to the presidencies of Bombay and Madras.
- The power of ordinance given to the governor-general gave him absolute powers.



Indian Councils Act 1892

Brief introduction: Indirect elections (nominations) were introduced. Legislative Councils expanded. Gave more functions to the legislative councils such as the discussion of budget and questioning the executive.

Introduction:

The Indian Councils Act 1892 was an act of the British Parliament that increased the size of the legislative councils in India.

1) Background

- The Indian National Congress (INC) was formed in 1885. There was a growing feeling of nationalism and this led the INC to put forth some demands to the British authorities.
- One of their demands was the reform of the legislative councils.
- They also wanted the principle of the election instead of nomination.
- The INC also wanted the right to hold discussions on financial matters which was hitherto not allowed.
- The Viceroy at the time Lord Dufferin set up a committee to look into the matter. But the Secretary of State did not agree to the plan of direct elections. He, however, agreed to representation by way of indirect election.

2) Provisions of the Indian Councils Act 1892

- The act increased the number of additional or non-official members in the legislative councils as follows:
 - Central Legislative Council: 10 – 16 members
 - Bengal: 20 members
 - Madras: 20 members
 - Bombay: 8 members
 - Oudh: 15 members
 - North Western Province: 15
- In 1892, out of 24 members, only 5 were Indians.
- The members were given the right to ask questions on the budget (which was barred in the Indian Councils Act 1861) or matters of public interest but had to give notice of 6 days for it.
- They could not ask supplementary questions.
- The principle of representation was initiated through this act. The district boards, universities, municipalities, chambers of commerce and zamindars were authorised to recommend members to the provincial councils.



- The legislative councils were empowered to make new laws and repeal old laws with the permission of the Governor-General.

3) Assessment of the Indian Councils Act 1892

- It was the first step towards a representative form of government in modern India although there was nothing in it for the common man.
- The number of Indians was increased and this was a positive step.
- However, since the British conceded only a little, this act led indirectly to the rise of many revolutionary movements in India. Many leaders like Bal Gangadhar Tilak blamed Congress's moderate policy of petitions and persuasions for a lack of positive developments and called for a more aggressive policy against British rule.

Indian Councils Act 1909 (Morley-Minto Reforms)

Brief introduction: Direct elections to the legislative councils were introduced for the first time. Central Legislative Council became the Imperial Legislative Council. The number of members of the legislative council was increased from 16 to 60. The concept of the separate communal electorate was accepted. For the first time, an Indian was made a member of the Viceroy's Executive Council. (Satyendra Prasad Sinha – Law Member).

1) Introduction

The Morley-Minto Reforms became law in 1909 as the Indian Councils Act. The importance of the Councils, which were enlarged, was to ensure that Indian legislators were given a chance to express their opinions. The British also accepted the right of Muslims to have a separate electorate.

2) Background of Morley-Minto Reforms

- Despite Queen Victoria's proclamation that Indians would be treated equally, very few Indians got such an opportunity as the British authorities were hesitant to accept them as equal partners.
- Lord Curzon had carried out the partition of Bengal in 1905. This led to a massive uprising in Bengal as a result. Following this, the British authorities understood the need for some reforms in the governance of Indians.



- The Indian National Congress (INC) was also agitating for more reforms and self-governance of Indians. The earlier Congress leaders were moderates, but now extremist leaders were on the rise who believed in more aggressive methods.
- INC demanded home rule for the first time in 1906.
- Gopal Krishna Gokhale met Morley in England to emphasise the need for reforms.
- Shimla Deputation: A group of elite Muslims led by Aga Khan met Lord Minto in 1906 and placed their demand for a separate electorate for the Muslims.
- John Morley was a member of the Liberal government, and he wanted to make positive changes in India's governance.

3) Major provisions of the Morley-Minto reforms

- The legislative councils at the Centre and the provinces increased in size.
 - Central Legislative Council – from 16 to 60 members
 - Legislative Councils of Bengal, Madras, Bombay and United Provinces – 50 members each
 - Legislative Councils of Punjab, Burma and Assam – 30 members each
- The legislative councils at the Centre and the provinces were to have four categories of members as follows:
 - Ex officio members: Governor-General and members of the executive council.
 - Nominated official members: Government officials who were nominated by the Governor-General.
 - Nominated non-official members: nominated by the Governor-General but were not government officials.
 - Elected members: elected by different categories of Indians.
- The elected members were elected indirectly. The local bodies elected an electoral college who would elect members of the provincial legislative councils. These members would, in turn, elect the members of the Central legislative council.
- The elected members were from the local bodies, the chambers of commerce, landlords, universities, traders' communities and Muslims.
- In the provincial councils, non-official members were in the majority. However, since some of the non-official members were nominated, in total, a non-elected majority was there.



- Indians were given membership to the Imperial Legislative Council for the first time.
- It introduced separate electorates for the Muslims. Some constituencies were earmarked for Muslims and only Muslims could vote their representatives.
- The members could discuss the budget and move resolutions. They could also discuss matters of public interest.
- They could also ask supplementary questions.
- No discussions on foreign policy or on relations with the princely states were permitted.
- Lord Minto appointed (on much persuasion by Morley) Satyendra P Sinha as the first Indian member of the Viceroy's Executive Council.
- Two Indians were nominated to the Council of the Secretary of State for Indian affairs.

4) Assessment of the Morley-Minto reforms

- The Act introduced communal representation in Indian politics. This was intended to stem the growing tide of nationalism in the country by dividing the people into communal lines. The culmination of this step was seen in the partition of the country along religious lines. The effects of differential treatment of different religious groups can be seen to this day.
- The Act did nothing to grant colonial self-government, which was Congress's demand.
- The Act did increase Indian participation in the legislative councils, especially at the provincial levels

Government of India Act 1919 (Montague-Chelmsford Reforms)

Brief introduction: Central and provincial subjects were separated. Diarchy was introduced in the provincial governments with executive councillors being in charge of the reserved list and the ministers in charge of the transferred list of subjects. The ministers were nominated from among the elected members of the legislative council and were responsible to the legislature. A bicameral legislature was introduced for the first time at the centre. (Legislative council and legislative assembly later to become Rajya Sabha and Lok Sabha respectively). It mandated 3 members of the Viceroy's executive council to be Indians. This act provided for the first time, the establishment of a public service



commission in India. This act extended the right to vote and with this, about 10% of the population acquired voting rights.

1) Introduction

The Government of India Act 1919 was an act of the British Parliament that sought to increase the participation of Indians in the administration of their country. The act was based on the recommendations of a report by Edwin Montagu, the then Secretary of State for India, and Lord Chelmsford, India's Viceroy between 1916 and 1921. Hence the constitutional reforms set forth by this act are known as Montagu-Chelmsford reforms or Montford reforms.

2) Principle Features of Government of India Act 1919

(i) Provincial Government

• Executive:

- Dyarchy was introduced, i.e., there were two classes of administrators – Executive councillors and ministers.
- The Governor was the executive head of the province.
- The subjects were divided into two lists – reserved and transferred.
- The governor was in charge of the reserved list along with his executive councillors. The subjects under this list were law and order, irrigation, finance, land revenue, etc.
- The ministers were in charge of subjects under the transferred list. The subjects included were education, local government, health, excise, industry, public works, religious endowments, etc.
- The ministers were responsible to the people who elected them through the legislature.
- These ministers were nominated from among the elected members of the legislative council.
- The executive councillors were not responsible to the legislature, unlike the ministers.
- The Secretary of State and the Governor-General could interfere in matters under the reserved list but this interference was restricted for the transferred list.

• Legislature:

- The size of the provincial legislative assemblies was increased. Now about 70% of the members were elected.
- There were communal and class electorates.
- Some women could also vote.



- The governor's assent was required to pass any bill. He also had veto power and could issue ordinances also.
- To know more about the legislation passed in British India, click on the linked article.

(ii) Central government

• Executive:

- The chief executive authority was the Governor-General.
- There were two lists for administration – central and provincial.
- The provincial list was under the provinces while the centre took care of the central list.
- Out of the 8 members of the Viceroy's executive council, 3 were to be Indian members.
- The governor-general could issue ordinances.
- He could also certify bills that were rejected by the central legislature.

• Legislature:

- A bicameral legislature was set up with two houses – Legislative Assembly (forerunner of the Lok Sabha) and the Council of State (forerunner of the Rajya Sabha).
- Legislative Assembly (Lower House)
- Members of the Legislative Assembly
- The nominated members were nominated by the governor-general from Anglo-Indians and Indian Christians.
- The members had a tenure of 3 years.

• Council of State (Upper House)

- Only male members with a tenure of 5 years.
- Members of the Council of State
- The legislators could ask questions and also vote a part of the budget.
- Only 25% of the budget was subject to vote.
- Rest was non-votable.
- A bill had to be passed in both houses before it became a law.
- There were three measures to resolve any deadlock between both the houses – joint committees, joint conferences and joint sittings.

• Governor-General

- The governor-general's assent was required for any bill to become law even if both houses have passed it.
- He could also enact a bill without the legislature's consent.



- He could prevent a bill from becoming law if he deems it as detrimental to the peace of the country.
- He could disallow any question, adjournment motion or debate in the house.

3) Who could vote?

- The franchise was restricted and there was no universal adult suffrage.
- Voters should have paid land revenue of Rs.3000 or have a property with rental value or have taxable income.
- They should possess previous experience in the legislative council.
- They should be members of a university senate.
- They should hold certain offices in the local bodies.
- They should hold some specific titles.
- All this narrowed the number of people who could vote to an abysmal number.

4) Indian Council

- There were to be at least 8 and a maximum of 12 members in the council.
- Half of the members should have ten years of experience in public service in India.
- Their tenure was to be 5 years.
- Their salaries were increased from £1000 to £1200.
- There were to be 3 Indian members in the Council.

5) Other Salient Features

- This act provided for the first time, the establishment of a public service commission in India.
- The act also provided that after 10 years, a statutory commission would be set up to study the working of the government. This resulted in the Simon Commission of 1927.
- It also created an office of the High Commissioner for India in London.

6) Merits of the Government of India Act 1919

- Dyarchy introduced the concept of responsible government.
- It introduced the concept of federal structure with a unitary bias.
- There was the increased participation of Indians in the administration. They held some portfolios like labour, health, etc.
- For the first time, elections were known to the people and it created political consciousness among the people.
- Some Indian women also had the right to vote for the first time.



7) Limitations of the Government of India Act 1919

- This act extended consolidated and communal representation.
- The franchise was very limited. It did not extend to the common man.
- The governor-general and the governors had a lot of power to undermine the legislatures at the centre and the provinces respectively.
- Allocation of the seats for the central legislature was not based on population but the 'importance' of the province in the eyes of the British.
- The Rowlatt Acts were passed in 1919 which severely restricted press and movement. Despite the unanimous opposition of Indian members of the legislative council, those bills were passed. Several Indian members resigned in protest

Government of India Act 1935

Brief introduction: An all-India Federation was proposed which would consist of British India and the princely states. This never materialised though. Subjects were divided between the centre and the provinces. Centre was in charge of the Federal List, provinces in charge of the Provincial List and there was a Concurrent List which both catered to. Diarchy was abolished at the provincial level and introduced at the centre. More autonomy was accorded to the provinces and in 6 out of 11 provinces, the bicameral legislature was introduced. A federal court was established and the Indian Council abolished. Burma and Aden were severed off from India. This act provided for the establishment of the RBI. This Act continued until it was replaced by the new Indian Constitution.

1) Introduction

The Government of India Act was passed by the British Parliament in August 1935. It was the longest act enacted by the British Parliament at that time. It was divided into two separate acts namely, the Government of India Act 1935 and the Government of Burma Act 1935.

2) Background

- There was a growing demand for constitutional reforms in India by Indian leaders.



- India's support to Britain in the First World War also aided in British acknowledgement of the need for the inclusion of more Indians in the administration of their own country.

The Act was based on:

- Simon Commission Report
- The recommendations of the Round Table Conferences
- The White Paper published by the British government in 1933 (based on the Third Round Table Conference)
- Report of the Joint Select Committees.

3) Creation of an All India Federation

- This federation was to consist of British India and the princely states.
- The provinces in British India would have to join the federation but this was not compulsory for the princely states.
- This federation never materialised because of the lack of support from the required number of princely states.

4) How Government of India Act 1935 divided powers?

- This Act divided powers between the centre and the provinces.
- There were three lists which gave the subjects under each government.
 - Federal List (Centre)
 - Provincial List (Provinces)
 - Concurrent List (Both)
- The Viceroy was vested with residual powers.

5) Changes brought by the Act

Certain changes that were brought through the Government of India Act, 1935 are mentioned in the table below, followed by details:

- **Provincial autonomy**
 - The Act gave more autonomy to the provinces.
 - Diarchy was abolished at the provincial levels.
 - The Governor was the head of the executive.
 - There was a Council of Ministers to advise him. The ministers were responsible to the provincial legislatures who controlled them. The legislature could also remove the ministers.
 - However, the governors still retained special reserve powers.
 - The British authorities could still suspend a provincial government.
- **Diarchy at the centre**



- The subjects under the Federal List were divided into two: Reserved and Transferred.
- The reserved subjects were controlled by the Governor-General who administered them with the help of three counsellors appointed by him. They were not responsible to the legislature. These subjects included defence, ecclesiastical affairs (church-related), external affairs, press, police, taxation, justice, power resources and tribal affairs.
- The transferred subjects were administered by the Governor-General with his Council of Ministers (not more than 10). The Council had to act in confidence with the legislature. The subjects in this list included local government, forests, education, health, etc.
- However, the Governor-General had 'special powers' to interfere in the transferred subjects also.
- **Bicameral Legislature**
 - A bicameral federal legislature would be established.
 - The two houses were the Federal Assembly (lower house) and the Council of States (upper house).
 - The federal assembly had a term of five years.
 - Both houses had representatives from the princely states also. The representatives of the princely states were to be nominated by the rulers and not elected. The representatives of British India were to be elected. Some were to be nominated by the Governor-General.
 - Bicameral legislatures were introduced in some provinces also like Bengal, Madras, Bombay, Bihar, Assam and the United Provinces.
 - Federal Court
 - A federal court was established at Delhi for the resolution of disputes between provinces and also between the centre and the provinces.
 - It was to have 1 Chief Justice and not more than 6 judges.
- **Indian Council**
 - The Indian Council was abolished.
 - The Secretary of State for India would instead have a team of advisors.
- **Franchise**
 - This Act introduced direct elections in India for the first time.



- **Reorganisation**
 - Sindh was carved out of Bombay Presidency.
 - Bihar and Orissa were split.
 - Burma was severed off from India.
 - Aden was also separated from India and made into a Crown colony.
- **Other points**
 - The British Parliament retained its supremacy over the Indian legislatures both provincial and federal.
 - A Federal Railway Authority was set up to control Indian railways.
 - The act provided for the establishment of Reserve Bank of India.
 - The Act also provided for the establishment of federal, provincial and joint Public Service Commissions.
 - The Act was a milestone in the development of a responsible constitutional government in India.
 - The Government of India Act 1935 was replaced by the Constitution of India after independence.
 - The Indian leaders were not enthusiastic about the Act since despite granting provincial autonomy the governors and the viceroy had considerable 'special powers'.
 - Separate communal electorates were a measure through which the British wanted to ensure the Congress Party could never rule on its own. It was also a way to keep the people divided.

Indian Independence Act 1947

India was declared independent and sovereign. The Viceroy and the Governors were made constitutional (nominal) heads. Set up responsible governments at the centre and the provinces. Assigned both legislative and executive powers to the Constituent Assembly of India.

The Indian Independence Act, 1947 received the royal assent and entered into force on 18th July 1947. This Act put into action the Mountbatten Plan for the independence and partition of India.

1) Background

- The Indian Independence Act, 1947 was an act of the British Parliament that partitioned India into two independent dominions of India and Pakistan.



- The legislation was drafted by the Labour government of Clement Attlee. It was based on the Mountbatten Plan or the 3rd June Plan which was formulated after the leaders of the Indian National Congress and the Muslim League agreed to the recommendations of the Viceroy Lord Mountbatten.
- Lord Mountbatten came to India with the specific task of seeing over the handing over of the authority to Indians. But the INC and the League could not agree on the question of partition.
- An initial plan proposed by Mountbatten known as the Dickie Bird Plan was opposed by Nehru. According to this plan, the provinces were to be declared independent and then allowed to join or not join the Constituent Assembly. Nehru opposed this as it would, in his opinion, would lead to the country's balkanisation.
- Then, Mountbatten came up with the last plan known as the 3 June Plan which was accepted by all parties. The INC, which was opposed to any partition of the country, finally accepted it as an inevitable process.
- As per this plan, India would be partitioned into India and Pakistan. The constitution framed by the Constituent Assembly would not be applicable to the areas which would go into Pakistan. These provinces would then decide on a separate constituent assembly.
- The Legislative Assemblies of Punjab and Bengal voted for the partition according to which these provinces were to be divided between the two dominions along religious lines.
- The assembly of Sind was given the choice to join the Indian Constituent Assembly or not. It decided to join Pakistan. In the North Western Frontier Province (NWFP) and Sylhet, a referendum was to be held which would decide the country they were to join.
- The complete legislative authority would be given to the Constituent Assemblies of the new countries.
- The Act decided to grant independence to India and Pakistan with effect from 15th August 1947.
- The new boundaries of the dominions would be demarcated by the Boundary Commission.
- British suzerainty over the princely states was to end. These states could decide to join either India or Pakistan or remain independent. Over 560 states decided to merge with India.
- The British emperor would cease to use the title 'Emperor of India'.



- Until the new dominions' constitutions would become effective, the heads of state would be the respective Governor-Generals who would continue to assent laws passed by the Constituent Assemblies in the name of the king.
- This Act received the royal assent on 18th July 1947 and entered into force.
- Pakistan became independent on 14th August and India on 15th August 1947. Muhammad Ali Jinnah was appointed Pakistan's Governor-General and Lord Mountbatten became India's

Drafting of Indian Constitution

The drafting committee was entrusted with the responsibility to prepare the Draft constitution. Drafting committee was set up on 29 August 1947 under the chairmanship of Dr. B R Ambedkar. The constituent assembly took 2 years , 11 months and 17 days to frame the constitution.

The Drafting Committee had seven members: Alladi Krishnaswami Ayyar, N. Gopalaswami; B.R. Ambedkar, K.M Munshi, Mohammad Saadulla, B.L. Mitter and D.P. Khaitan. At its first meeting on 30th August 1947, the Drafting Committee elected B.R Ambedkar as its Chairman.

Towards the end of October 1947, the Drafting Committee began to scrutinise the Draft Constitution prepared by the B.N Rau, the Constitutional Advisor. It made various changes and submitted the Draft Constitution to the President of the Constituent Assembly on 21 February 1948.

The Drafting Committee and its members were very influential in Indian constitution-making during the Committee stages and the deliberations of the Constituent Assembly. Majority of the debates in Constituent Assembly revolved around the Draft Constitution(s) prepared by the Drafting Committee. Out of 166 sittings of the Constituent Assembly, 114 were spent debating the Draft Constitution(s) The drafting committee was entrusted with the responsibility to prepare the Draft constitution.

Drafting committee was set up on 29 August 1947 under the chairmanship of Dr. B R Ambedkar.



Role of Drafting Committee of the Constituent Assembly.

The Drafting Committee and its members were very influential in Indian constitution-making during the Committee stages and the deliberations of the Constituent Assembly. Majority of the debates in Constituent Assembly revolved around the Draft Constitution(s) prepared by the Drafting Committee. Out of 166 sittings of the Constituent Assembly, 114 were spent debating the Draft Constitution(s).

The constituent assembly took 2 years , 11 months and 17 days to frame the constitution. It spent 6.4 crore Rupees in the preparation. There were 22 parts, 395 articles and 8 schedules. The constitution had got ready on 26th November 1949 and some provisions relating to Citizenship, Elections, provisional parliament, temporary & transitional provisions were given immediate effect. Rest of the constitution came into force on 26 January 1950.

26 January 1929 marked the "Poorna Swarajya "resolution of Indian National Congress under Jawahar lal Nehru and so the date was chosen in 1950 to be our republic day.

Our constitution is unique. It is unique in many ways. We know that our constitution was framed by the constituent assembly in a long time of 2 years, 11 months and 18 days. It must be noted that the idea of the constituent assembly was not of congress. The idea was put forward by MN Roy in 1934.

MN Roy or Manabendra Nath Roy was a Bengali Indian revolutionary, internationally known political theorist and activist. He is the pioneer of communist movement in India.

The idea put forward by MN Roy was officially raised by Congress in 1935 and the British Government accepted this demand. This demand of constituent assembly was accepted in the August offer of 1940.



CONSTITUTIONAL LAW

By

@The_Lawgical_World



SYLLABUS.....	3
Unit - II.....	4
Nature and Salient features of Indian Constitution.....	5
Preamble to Indian Constitution.....	9
Union and its Territories.....	15
Citizenship.....	21
Fundamental Rights.....	29



SYLLABUS

Unit - I: Constitution-Meaning and Significance - Evolution of Modern Constitutions - Classification of Constitutions- Indian Constitution - Historical Perspectives - Government of India Act, 1919-Government of India Act, 1935-Drafting of Indian Constitution - Role of Drafting Committee of the Constituent Assembly.

Unit - II: Nature and Salient Features of Indian Constitution - Preamble to Indian Constitution - Union and its Territories-Citizenship - General Principles relating to Fundamental Rights(Art.13) - Definition of State.

Unit - III: Right to Equality(Art.14-18) – Freedoms and Restrictions under Art.19 - Protection against Ex-post facto law - Guarantee against Double Jeopardy - Privilege against Self-incrimination - Right to Life and Personal Liberty - Right to Education – Protection against Arrest and Preventive Detention.

Unit - IV: Rights against Exploitation - Right to Freedom of Religion - Cultural and Educational Rights - Right to Constitutional Remedies - Limitations on Fundamental Rights(Art.31-A,B and C).

Unit - V: Directive Principles of State Policy – Significance – Nature – Classification - Application and Judicial Interpretation - Relationship between Fundamental Rights and Directive Principles - Fundamental Duties – Significance - Judicial Interpretation.



Unit - II

Nature and Salient Features of Indian Constitution - Preamble to Indian Constitution - Union and its Territories-Citizenship - General Principles relating to Fundamental Rights(Art.13) - Definition of State.



Nature and Salient features of Indian Constitution

The Constitution of India is the supreme law in India . A Constitution is a set of rules and regulations guiding the administration of a country. The constitution of India is the framework for political principles, procedures and powers of the government. It is also the longest constitution in the world with 395 articles and 12 schedules. Originally it consisted of 395 Articles arranged under 22 Parts and 8 Schedules. Today after many amendments, it has 470 Articles and 12 schedules and 25 parts (According to 2021). The constitution was written on 26 November 1949, and was made the center of law on 26 January 1950

Nature of Constitution:

Constitutions are either unitary or federal. In the unitary government, the powers of the government are centralised in the central government & the states are subordinate to the centre. In the federal constitution, there is a division of power between the states & the central government & both are independent in their own spheres.

The nature of Indian Constitution can be understood as it is:

1. Federal with unitary features
2. Unitary with federal features
3. Quasi-federal.

1. The federal features of the Indian Constitution can be understood in the following points:

The most essential feature of the federal constitution is that it has a dual government that means a dual polity consisting of the union at the centre and the states at the periphery. Each is endowed with sovereign powers to be exercised in the field assigned to them respectively by the Indian Constitution.

The Union government deals with the matters of national importance like defence, foreign affairs & so on. The state government look after the matters of the regional & local importance like health, agriculture & so on.

A federal constitution is almost necessary for a written constitution. The Indian Constitution is not only a written document but also the lengthiest constitution of the world.



The Indian Constitution has divided the powers between the centre & the state in terms of union list, state list & the concurrent list as mentioned in Schedule VII.

The Indian Constitution is the supreme law of the land which means all the authorities of the Union & the State are subject to the authority of the Indian Constitution.

The procedure of amending the constitution regarding the federal principle is rigid. The Indian Constitution cannot be changed unilaterally either by the centre or by the state government. Hence, the Indian Constitution is rigid to the extent of those provisions which are concerned with federal structure can be amended by the joint action of the centre and the state as well.

The Indian Constitution establishes an independent judiciary headed by the Supreme Court for two purposes i.e.

- One, to protect the supremacy of the Constitution by exercising the power of judicial review &
- Two, to settle disputes between the centre & the states or between the two states.

2. The unitary features of the Indian Constitution can be understood in the following points:

Article 1 of the Indian Constitution says that India is the union of states which implies two things i.e., it is not the result of an agreement among the states & the second is that the states have no power to separate itself from the Union.

In India, the government has the power to separate or alter the boundaries of the states & it is laid down in Article 3 of the Indian Constitution.

The process of a constitutional amendment is less rigid than what is found in other federations. The bulk of the Indian Constitution can be amended by the unilateral action of the parliament.

The Indian Constitution has established an integrated judicial system with the Supreme Court at the top & the states High courts below it.

There is single citizenship for both the union & the states. There is no provision of separate Constitution for the state in India, unlike the USA.



3. The quasi-federal feature of the Indian Constitution can be understood as it has always been a matter of debate that whether the Indian Constitution is federal or unitary in nature.

The Indian Constitution is both federal & unitary in nature as it is a combination of federal & unitary features.

In the federal set-up, there is a two-tier government with well-assigned powers & the functions of all the parts. Prevention as well as for the betterment of the conflict of the interest of the centre and the state is an integral part of federalism. No doubt that the essay characteristics of a federal constitution are present in the Indian Constitution. It is claimed that the constitution does not embody the federal principles because the centre can in certain contingencies encroach upon the field reserved for the states. The power of intervention given to the centre is inconsistent with the federal system as it places the states in a subordinate position.

From all the above-mentioned points, it can be concluded that the Indian Constitution is neither purely federal nor purely integral. It is a Harmonious mixture of both. It has contemplated the problems which the country may face in the future if the constitution were to be purely federal & therefore the Indian Constitution has made provisions converting it into a unitary mode on a temporary basis until the crisis overcome.

Features of Indian Constitution

The constitution of India was created by a constituent assembly and not by the Parliament of India. It was adopted by its people with a declaration in its preamble. Thus, the Parliament of India cannot override the Indian constitution.

The features of Indian constitution are:

1. Lengthiest constitution

It is the lengthiest and the longest constitution in the world. It has 395 Articles and 12 Schedules. Also, about 90 Articles have been added since 1951 and there have been more than 100 Amendments.

But, as the Articles are not separately added but as a part of an existing Article, the total number of Articles remain the same.

Learn more about Fundamental Rights and Duties

2. Drawn from Different Sources



The basis of the basic structure such as Federal scheme, Judiciary, Governors, Emergency powers, Public Service Commissions, Administrative details, etc. are from the Government of India Act, 1935. Similarly, the fundamental rights are from the American constitution, Directive Principles from the Irish Constitution and the Cabinet form of government is from the British Constitution. Also, it adopts various provisions from the Constitutions of Canada, Australia, Germany, USSR, and France.

3. Federal System and Unitary Features

The federal features of governance are a dual system of government i.e. center and states, the division of powers between the executive, judiciary and legislature which are the three organs of the state, Supremacy of the Constitution, independent Judiciary and bicameralism.

The Indian constitution contains all these features. Thus, it is a federal system. But, it also contains many unitary features such as a strong center, All India Services common to the center and the states, emergency provisions that can modify the Constitution into a unitary one, the appointment of Governors by the President on the advice of the center, etc.

Article 1 of the Indian constitution clearly mentions that India is a "Union of states". Therefore, this makes the Indian Constitution a federal system with unitary features.

4. Parliamentary Form of Government

The Indian Constitution chose the Parliamentary form of government. In a Parliamentary form of government executive is part of the legislature and there is a collective responsibility of the council of ministers to the legislature.

Also, there exists majority party rule and the Prime Minister is the leader of the country and the Chief Minister is the leader in the state.

5. Parliamentary Sovereignty and Judicial Supremacy

The Indian Constitution has a proper balance between Parliamentary sovereignty and Judicial Supremacy. The Supreme Court has the power of judicial review vide Articles 13, 32 and 136.

Thus, it can cancel any Parliamentary law as unconstitutional. On the other hand, the Parliament has the authority to make laws and also amend the major portion of the Constitution vide Article 368.

6. Independent and Integrated Judicial System



As per the Indian constitution, a single system of judiciary prevails in India. The Supreme Court is at the top, the High Courts at the state level and district and other subordinate courts are below and are subject to the supervision of the High Courts.

Also, all the levels of courts have a duty of enforcing central as well as state laws.

7. Directive Principles

The Directive Principles of State Policies in Part IV of the Constitution intends to make India a welfare state. The Directive Principles are not enforceable by the courts for their violation. However, it is a moral obligation of the state to apply these principles in making laws.

8. Rigid and Flexible

The Indian Constitution is a combination or a blend of rigidity and flexibility.

As per Article 368, some provisions can be amended by a special majority of the Parliament i.e. a 2/3rd majority of the members of each House present and voting and majority which is more than 50 percent of the total membership of each House.

The Constitution of India possesses a significant feature where it makes possible to be federal in nature but unitary in spirit. The drafters of the Indian Constitution established to strike a balance between the unitary and federal features.

Preamble to Indian Constitution

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity;

and to promote among them all

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;

In Our Constituent Assembly this twenty-sixth day of November, 1949, do Hereby Adopt, Enact And Give To Ourselves This Constitution.[3]

Components of Preamble



The preamble of the Indian Constitution is a brief statement of the various guidelines and rules that guide the citizens. Moreover, the preamble explains the aspirations and hopes of the people. It is a preface which emphasizes on the entire constitution.

The preamble of the Indian Constitution serves as a brief introductory statement of the Constitution that sets out the guiding purpose, principles and philosophy of the Indian Constitution. By 42nd Constitutional Amendment, 1976, it was amended which determined to constitute India into a Sovereign, Socialist, Secular and Democratic Republic. It secures justice, liberty, equality to all citizens of India and promotes fraternity amongst the people. The Constituent Assembly adopts this on 26th November 1949. However, it came into effect on 26th January 1950.

The Preamble and its Initial Articles

- The Indian constitution and its preamble describe India as a sovereign, socialist, secular, democratic and republic.
- Sovereign refers to the independent authority of a State. It also means that it has the power to legislate on any subject and that the preamble is not subject to the control of any other State or external power.
- Secular refers to the relationship between the government and religious groups. The constitution determines the relationship according to the constitution and law. It keeps the power of the state and religion as separate aspects.
- Socialist refers to the achievement of socialist goals through democratic, evolutionary and non-violent means.
- Democratic refers to the right of the people of India to elect their governments by a system of universal adult franchise, which is also known as "one person one vote". Every Indian citizen after 18 years of age who is not otherwise debarred by law is entitled to vote. The word 'democratic' not only refers to political but also to social and economic democracy.
- Republic refers to the aspect wherein the head of state is in power and not a hereditary monarch. Thus, this word denotes a government where no one holds public power as a proprietary right.
- It secures to all of its citizen with the following:
 - Social, political and economic justice



- Equality of opportunity, equality of status and to promote equality among them all
- Liberty of expression thought, belief, worship, and faith
- Fraternity in the sense of assuring dignity to all citizens along with unity and integrity of the country and its elements.

The Indian Constitution and the preamble is one of the best of its kind and it embodies the spirit of the nation and the constitution. Indian preamble focuses on unity and national integrity as well.

In Berubari case, it was held by the Supreme Court that the Preamble is the part of the Constitution. However, it recognised that the Preamble could be used as a guiding principle if a term in any article of the Constitution is ambiguous or has more than one meaning.

Purpose of the Preamble:

The preamble to the constitution is a key to open the minds of the makers and shows the general purpose for which they made the several provisions in the constitution. Preamble serves the following purposes:-

1. It discloses the source of the constitution.
2. It lays down the date of the commencement of the constitution.
3. It set out the rights and freedoms which the people of India wished to secure for themselves.
4. It declares the nature of the government

Case laws:

1. Berubari Union case

Brief facts:

- On 20 Feb 1947 British Government reported its expectation to move power from British India to India by June 1948. On 30 June 1947 Governor-General made a declaration to parcel region of Bengal and Punjab. On 18 July, 1947 the British Parliament passed the Indian Independence Act, 1947.
- Province of West Bengal is known as the State of West Bengal, with West Bengal to India and East Bengal to Pakistan now known as East Pakistan.
- In accordance with the announcement of partition, a boundary commission was appointed inter alia four Judges of High Courts and Sir Cyril Radcliffe was appointed as Chairman.



- Given the errand of the boundary, this segment depended on determining the bordering territories of Muslims and Non-Muslims alongside different components. They enquired and drafted a "Radcliffe Award" on 12 August, 1947.
- While deciding the partition of Darjeeling District and Jalpaiguri District which consists of 2.42% and 23.08% of Muslim population respectively, Berubari Union No. 12 hereinafter referred to as "Berubari" situated in Jalpaiguri District was then a part of Rajshahi Division was granted to India.
- Berubari constitutes an area of 8.75 sq miles with a population of 10-20 thousand residents. Berubari was divided horizontally where the adjacent part to India was retained in India.
- However, disputes arose because of the erroneous depiction of the map by the Award. One such dispute was in the Berubari area. The dispute arose due to omission in the written text i.e., not specified in the 1st Schedule of Indian Independence Act, 1947.
- This gave an opportunity to Pakistan to claim its right over Berubari alleged belonging to them. Pakistan claimed that the area constitutes 80% of Muslims and the demographic location also suggests the same.
- To resolve this issue of uneven distribution of land an agreement was entered between India and Pakistan popularly known as Nehru-Noon Agreement (hereinafter referred to as "Agreement"), 1958 according to the orders given by PM of India and Pakistan on 10 September, 1958, the Commonwealth Secretary, Ministry of External Affairs, Government of India and Pakistan.
- They discussed 10 items of disputes between two countries signed a joint note recording their agreement in respect of dispute and submitted to respective PMs. The view of this agreement was with the view of removing tension, resolving border disputes, problems relating to Indo-Pak border thereby establishing peaceful conditions.
- The public opposed this decision. The then President of India thought this as a question of law i.e., Constitutional validity of Agreement had arisen of such nature and importance, it is expedient that the opinion of SC of India should be obtained thereon under Art 143 of Constitution of India. By and by the request developed, regarding the force of the parliament to move the area of Berubari to Pakistan.

Held:



Berubari case was the Presidential Reference Under Art. 143(1) of the Constitution of India on the implementation of the Indo-Pak agreement relating to Berubari union and exchange of enclaves which come up for consideration by a bench consisting of eight judges headed by B.P.Sinha, C.J. Justice Gajendragadkar delivered the unanimous opinion of the court. Quoting story, the eminent Constitutional jurist, the court held that the Preamble to the Constitution containing the declaration made by the people of India in exercise of their sovereign will, no doubt is a key to open the minds of framers of the Constitution which may show the general purposes for which they made the several provisions in the Constitution but nevertheless the Preamble is not a part of the Constitution.

In this case, it was held by the Supreme Court that the Preamble is the part of the Constitution. However, it recognised that the Preamble could be used as a guiding principle if a term in any article of the Constitution is ambiguous or has more than one meaning.

2. Golaknath v State of Punjab (AIR 1967; decided on 27th Feb 1967)

It was decided by bench of eleven judges. In this case, the Golaknath family owned 500 acres of Land. But the Land Tenure Act allowed them to keep only a little portion of that 500 acres of land, rest shall be taken by the government. In this case, the land tenure act was challenged. It was argued that Citizens have a fundamental right to property under Article 19 of the Constitution.

After the Golaknath case, the SC held that the Parliament cannot amend Fundamental rights, whereas after the Kesavanada Bharti case, the SC upheld the validity of the 24th amendment holding amendment to Fundamental Rights as constitutional but simultaneously putting a caveat of maintaining the basic structure.

3. Keshvananda Bharti v. State of Kerala

In this case, The Supreme Court overturned its earlier decision and held that the Preamble is a part of the Constitution and can be amended under Article 368 of the Constitution. Again, in LIC of India case, the Supreme Court held that the Preamble is a part of the Constitution.

Keshvananda Bharati is a landmark case and the decision taken by the Supreme Court outlined the basic structure doctrine of the



Constitution. The decision which was given by the bench in Keshavananda Bharati's case was very unique and thoughtful. The judgment was of 700 pages which included a solution for both Parliament's right to amend laws and citizen's right to protect their Fundamental Rights.

The Bench came up with Doctrine of Basic Structure in order to protect the interests of both citizens of India and the Parliament. The Bench through this solution solved the questions which were left unanswered in Golaknath's case. This case overruled the decision given in the case of Golaknath v State of Punjab case by putting a restriction on the Parliament's right to amend the Constitution. The Doctrine of Basic Structure was introduced to ensure that the amendments do not take away the rights of the citizens which were guaranteed to them by the Fundamental Rights.

Doctrine of Basic Structure

According to the doctrine, the Parliament has an unlimited power to amend the Constitution subject to the sole condition that such amendments must not change the basic structure of the Constitution. The Parliament should not in any manner interfere with the basic features of the Constitution without which our Constitution will be left spiritless and lose its very essence. The basic structure of the Constitution was not mentioned by the bench and was left to the interpretation of the courts. The Courts need to see and interpret if a particular amendment violates the basic structure of our Indian Constitution or not.



Part 1 – THE UNION AND ITS TERRITORY

Part 1 of the Indian Constitution consisting of 4 articles commencing from Articles 1 to 4, deals with the Union and its territories. Part I is a compilation of laws pertaining to the constitution of India as a country and the union of states that it is made of. This part of the constitution contains the law in the establishment, renaming, merging or altering the borders of the states. Articles under Part I were invoked when West Bengal was renamed, and for formation of relatively new states such as Jharkhand, Chhattisgarh or Telengana.

Article 1 speaks of the territories, union territories, and the acquired territories.

Article 2 speaks of the admission of other territories into the union territories. These admissions are governed by law and only the parliament can do it.

Article 3 talks about the formation of new states, the alteration of areas and boundaries by either increasing or diminishing them.

Article 4 talks of territory reorganization for the nation's benefit and citizen convenience.

Union and its Territories

Article 1: Name and territory of the union

- (1) India, that is Bharat, shall be a Union of States.
- (2) The States and the territories thereof shall be as specified in the First Schedule.
- (3) The territory of India shall comprise –
 - (a) the territories of the States;
 - (b) the Union territories specified in the First Schedule; and
 - (c) such other territories as may be acquired.

Article 1 describes India as a 'Union of States'. Dr. B.R. Ambedkar said that the Indian federation was a "Union" because it was indissoluble, and no State had a right to separate from the Indian Union. The country is one integral unit beside the fact that it consists of different states for the convenience of administration.

The phrases 'Union of India' and 'Territory of India' has to be differentiated. The Union of India includes only the States enjoying the Status of being members of the federal system and sharing the powers with the Union.



The territory of India includes not only the States but also the Union Territories and such other territories as may be acquired by India in future. First Schedule of the Constitution has specified states and the Territories both.

The names of the States and the Unions have been described in the First Schedule. This schedule also holds that there are four Categories of State and territories – Part A, Part B, Part C and Part D.

- Part A – includes the nine provinces which were under British India
- Part B – princely states consisted of this category
- Part C – centrally administered five states
- Part D – Andaman and Nicobar Islands

Abolishing of these schedules

In the seventh amendment of the Constitution in 1956, the distinction between Part A and Part B states was abolished. Subsequently, states were reorganized on a linguistic basis. As a result, several new states were formed, eg. Haryana, Goa, Nagaland, Mizoram etc. At present, there are 28 States and 8 UTs (corrected).

Article 2: Admission or establishment of new States.

Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit.

Article 2 of the Constitution confers power on the Parliament to admit or establish new States. Parliament has admitted by using this power, for example, the French settlements of Pondicherry, Karaikal, etc. Article 2 concerns the admission or establishment of new states which were not part of India.

The Hon'ble Supreme Court of India in Mangal Singh vs. Union of India has adjudged that the power granted to the Parliament in law is supplemental, incidental, or consequential to the establishment or addition of new states and such terms and conditions cannot override the Constitutional schemes.

In addition to this, the Hon'ble Supreme Court of India in R.C Poudyal vs. Union of India case, held that the words, "on such terms and conditions as it thinks fit" in Article 2 did not confer upon the parliament absolute and interrupted powers to establish and add new states.

2A. Sikkim to be associated with the Union. Omitted by the Constitution (Thirty-sixth Amendment) Act, 1975, s. 5 (w.e.f. 26-4-1975).



The Article 2A was introduced via the thirty-five amendment act of 1974 which made Sikkim as an associate state of the Indian Union.

Article 2A of the constitution reads, "Sikkim, which comprises the territories specified in the tenth schedule, shall be associated with the Union of the terms and conditions set out in that Schedule". As mentioned in the earlier paragraphs, the association of Sikkim with the Union of India was subject to the points mentioned under the Part-B of the schedule. However, later in 1975 with the introduction of the thirty-sixth amendment act, Article 2A was repealed because Sikkim was declared as the 22nd state of India and thus the status of associate state as defined under the said article lost its significance. Thus, the presence of the said article unlike Article 2 of the constitution was temporary in nature.

On one hand, Article 2 talks about the establishment or addition of new states into the Indian Union by the Indian parliament granting them full-fledged status alike the other Indian states. Whereas, on the other Article 2A gave one state i.e. Sikkim the status of the associate state into the Union of India.

Article 3. Formation of new States and alteration of areas, boundaries or names of existing States.

Parliament may by law—

- (a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;
- (b) increase the area of any State;
- (c) diminish the area of any State;
- (d) alter the boundaries of any State;
- (e) alter the name of any State:

Provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the area, boundaries or name of any of the States, the Bill has been referred by the President to the Legislature of that State for expressing its views thereon within such period as may be specified in the reference or within such further period as the President may allow and the period so specified or allowed has expired.

Explanation I.—In this article, in clauses (a) to (e), "State" includes a



Union territory, but in the proviso, "State" does not include a Union territory.

Explanation II.—The power conferred on Parliament by clause (a) includes the power to form a new State or Union territory by uniting a part of any State or Union territory to any other State or Union territory.

The proviso of Article 3 makes it compulsory on the part of the President to refer the bill to the legislature of the state for expressing its views thereon within such period as may be specified in the reference or within such further period as the President may allow and the period so specified or allowed has expired.

It states that the Parliament may by law form a new State by separation of a territory from any State or by uniting two or more States completely or in parts or by uniting any territory to a part of any State. It deals with the following:

- Formation of new States
- Alteration of areas of States
- Boundaries or names of existing States

Thus Parliament can increase or diminish the area of any State or can alter the boundaries or names of any State. Parliament follows the following procedures in this regard.

Step-1: Either House of the Parliament, only on the recommendation of the President, can introduce a Bill giving effect to any or all the changes stated above.

Step-2: If such a bill affects the boundary or name of a State, then the President will refer the Bill to the concerned State Legislature before introducing it in the Parliament for their opinion.

Step-3: If the State Legislature fails to express an opinion within the given time limit then it is deemed that it has expressed its views. Parliament is not bound to accept or act upon the views of the State Legislature even if State has submitted their views within the time period.

In the case of Union Territories, it is not necessary to seek the views of Legislatures of Union Territories before such Bill.

Case Law:

Ram Kishore Sen v. Union of India, AIR 1966 SC 644, 648: (1966) 1 SCR 430:



The Constitutional Act (18th amendment) 1966 adds two explanations to Article 3, incorporating the decision of the Supreme Court in this case, which clarified the term "State" in the term "State" which includes the term "Union Territories" but since there is no such necessity with regard to the provision of Article 3, it is also provided that the term "State" does not include the term "Union Territories". The reason is that, in the event of a change and alternation in the borders of the State, it is necessary to seek the opinion of the States concerned; but since the Union Territory is governed by the Parliament itself, the inclusion of the Union Territory in the term "State" would have been redundant.

The second explanation further clarifies the Parliament's Power. It provides that Parliament's power under Article 3 clause (a) includes the power to form a new State or Union Territory by uniting a part of any State or Union Territory with any other State or Union Territory.

Article 4: Laws made under articles 2 and 3 to provide for the amendment of the First and the Fourth Schedules and supplemental, incidental and consequential matters.

(1) Any law referred to in article 2 or article 3 shall contain such provisions for the amendment of the First Schedule and the Fourth Schedule as may be necessary to give effect to the provisions of the law and may also contain such supplemental, incidental and consequential provisions (including provisions as to representation in Parliament and in the Legislature or Legislatures of the State or States affected by such law) as Parliament may deem necessary.

(2) No such law as aforesaid shall be deemed to be an amendment of this Constitution for the purposes of article 368.

It says that any law referred to in Article-2 or Article-3 will contain such provisions for the amendment of the Ist Schedule and the IVth Schedule necessary to provide effects to the provisions of law and may also contain such supplemental, incidental, and consequential provisions, as the Parliament may deem necessary.

This Article allows for consequential changes in the Ist Schedule i.e. names of the States in the Union of India and IVth Schedule i.e. a number of seats allotted in the Rajya Sabha for each state. Constitution will not treat any such law altering existing States or creating a new State, as the amendment.



It also notes that it does not consider a constitutional amendment under Article 368. It also states that no law existing States or creating a new State will be considered a constitutional amendment. It is in line with the previous provisions of the requirement, of a simple majority in Parliament and suggests full control of the Union over the territories of the individual States of the Union.

Case Law:

Mullaperiyar Environment Protection Forum V. Union of India, (2006) 3 SCC 643: AIR 2006 SC 1428

In this case, the validity of Section 108 of the State Reorganization Act, 1956 which allows for the continuation of existing agreements between the existing states at that time. The Court held that the legislative powers referred to Article 3 and Article 4 are supreme and not subject to or bound by Article 246 and List II and List III of the Seventh Schedule. It also held that the constitutional validity of the legislation referred to Article 3 and Article 4 can not be questioned on the grounds of lack of legislative competence in relation to the list in the Seventh Schedule.



Part 2 – CITIZENSHIP

Part 2 of Indian Constitution consisting of 7 articles commencing from Article 5 to 11 deals with Citizenship.

Citizenship

Citizenship is the status of a person recognized under law as being a legal member of a sovereign state or belonging to a nation. In India, Articles 5 – 11 of the Constitution deals with the concept of citizenship. The term citizenship entails the enjoyment of full membership of any State in which a citizen has civil and political rights.

The Indian constitution doesn't prescribe a permanent provision relating to citizenship in India. It simply describes categories of persons who are deemed to be citizens of India on the day the Indian constitution was promulgated on January 26, 1950, and leaves citizenship to be regulated by law made by the parliament.

Types

There are four categories of persons, identified between Articles 5 and 8 of the constitution, who were deemed eligible to become citizens of India when the constitution came into effect.

- i) Citizenship by domicile (Article 5)
- ii) Citizenship of migrants to India from Pakistan (Article 6)
- iii) Citizenship of migrants of Pakistan (Article 7)
- iv) Citizenship of persons of Indian origin residing outside India (Article 8)

Constitutional Provisions:

Citizenship is listed in the Union List under the Constitution and thus is under the exclusive jurisdiction of Parliament. The Constitution does not define the term 'citizen' but details of various categories of persons who are entitled to citizenship are given in Part 2 (Articles 5 to 11). Unlike other provisions of the Constitution, which came into being on January 26, 1950, these articles were enforced on November 26, 1949 itself, when the Constitution was adopted.

Article 5. Citizenship at the commencement of the Constitution.

At the commencement of this Constitution, every person who has his domicile in the territory of India and—

- (a) who was born in the territory of India; or
- (b) either of whose parents was born in the territory of India; or
- (c) who has been ordinarily resident in the territory of India for not less



than five years immediately preceding such commencement, shall be a citizen of India.

This article talks about citizenship for people at the commencement of the Constitution, i.e. 26th January 1950. Under this, citizenship is conferred upon those persons who have their domicile in Indian territory and

- Who was born in Indian territory; or
- Whose either parent was born in Indian territory; or
- Who has ordinarily been a resident of India for not less than 5 years immediately preceding the commencement of the Constitution.

Citizenship by domicile (Article 5): A person who was born in India or either of the person's parents was born in India or the person must have been an ordinarily resident in the territory of India for not less than five years immediately before the commencement of the constitution. Domicile of a person is in that country in which the person either has or is deemed by law to have his/her permanent house.

In the case of *Mohd. Reza Debestani v. State of Bombay*[1], it was seen that the appellant's request for citizenship of India was rejected. The appellant had come to India with his uncle and after several years of stay, he went to Iraq on pilgrimage. Then he was permitted to stay in India for years with repeated extension. But then he was denied and thus he pleaded. Then he returned to Iraq and got employed, this fact was enough to satisfy that he can't be granted citizenship of India according to the provisions made.

Article 6. Rights of citizenship of certain persons who have migrated to India from Pakistan.

Notwithstanding anything in article 5, a person who has migrated to the territory of India from the territory now included in Pakistan shall be deemed to be a citizen of India at the commencement of this Constitution if—

- (a) he or either of his parents or any of his grand-parents was born in India as defined in the Government of India Act, 1935 (as originally enacted); and
- (b) (i) in the case where such person has so migrated before the nineteenth day of July, 1948, he has been ordinarily resident in the territory of India since the date of his migration, or



(ii) in the case where such person has so migrated on or after the nineteenth day of July, 1948, he has been registered as a citizen of India by an officer appointed in that behalf by the Government of the Dominion of India on an application made by him therefor to such officer before the commencement of this Constitution in the form and manner prescribed by that Government:

Provided that no person shall be so registered unless he has been resident in the territory of India for at least six months immediately preceding the date of his application.

Article 6 speaks of dual citizenship. When a citizen of Pakistan has migrated to the territory of India, would be entitled to a right of citizenship under these conditions:

- If the person's parents or grandparents were born in India, according to the Government of India Act, 1935
- If a person has migrated and is ordinarily residing in India before the nineteenth day of July 1948

Citizenship of migrants to India from Pakistan (Article 6):

Persons who have migrated from Pakistan to India have been classified into two categories: i) those who came to India before July 19, 1948, and ii) those who came on or after July 19, 1948.

In the case of persons migrating before July 19, 1948, if the person has been ordinarily residing in India since the date of her migration, and in case of a person migrating on or after July 19, 1948, if he/she has been registered as a citizen of India, after residing for at least six months immediately before the date of applying for registration, by an officer appointed by the government of India, shall be deemed to be a citizen of India.

Article 7. Rights of citizenship of certain migrants to Pakistan.

Notwithstanding anything in articles 5 and 6, a person who has after the first day of March, 1947, migrated from the territory of India to the territory now included in Pakistan shall not be deemed to be a citizen of India:

Provided that nothing in this article shall apply to a person who, after having so migrated to the territory now included in Pakistan, has returned to the territory of India under a permit for resettlement or permanent return issued by or under the authority of any law and every such person shall for the purposes of clause (b) of article 6 be deemed to have migrated to the territory of India after the nineteenth day of



July, 1948.

This article deals with the rights of people who had migrated to Pakistan after March 1, 1947, but subsequently returned to India. According to this Article, if a person has migrated to the territories of Pakistan after the first day of March 1947, shall not be considered as a citizen of India.

Exception:

A person who has migrated to the Pakistan territory and then returns back with the permission from the requisite authority.

Citizenship of migrants of Pakistan (Article 7): If a citizen of India has migrated to Pakistan after March 1, 1947, but returned to India on the basis of permit for resettlement in India, the person is entitled to become a citizen of India if he/she registers herself as a citizen of India, after residing for at least six months immediately before the date of applying for registration, by an officer appointed by the government of India.

In the case of *State of Bihar v. Kumar Amar Singh*, the wife left her husband and went to Karachi. According to her statement, she went to Karachi temporarily for treatment. Then she returned back to India and was permitted to stay as she stated that she was Pakistan domicile. Then after the expiry of the period, she returned back to Pakistan. Then she wanted to get the permanent citizenship of India, when her property in India was to be taken under custody. It was held that as she had migrated before the date stated in the provision, she won't be given permanent citizenship.

Article 8. Rights of citizenship of certain persons of Indian origin residing outside India.

Notwithstanding anything in article 5, any person who or either of whose parents or any of whose grandparents was born in India as defined in the Government of India Act, 1935 (as originally enacted), and who is ordinarily residing in any country outside India as so defined shall be deemed to be a citizen of India if he has been registered as a citizen of India by the diplomatic or consular representative of India in the country where he is for the time being residing on an application made by him therefor to such diplomatic or consular representative, whether before or after the commencement of this Constitution, in the form and manner prescribed by the Government of the Dominion of India or the Government of India.



This article deals with the rights of people of Indian origin residing outside India for purposes of employment, marriage, and education. According to this Article, if a person is residing in a different country but either of the parents or grandparents have taken birth in the Indian territory and if the person is registered as a citizen of India by the diplomatic or consular representative of India, shall be considered as a citizen of India.

Citizenship of persons of Indian origin residing outside India (Article 8): Indian nationals (whose parents or any grandparents were born in India as defined in the Government of India Act, 1935) residing abroad shall be conferred Indian citizenship, as if they have been registered by the diplomatic or consular representatives of India in the country where they are residing.

Article 9. Persons voluntarily acquiring citizenship of a foreign State not to be citizens.

No person shall be a citizen of India by virtue of article 5, or be deemed to be a citizen of India by virtue of article 6 or article 8, if he has voluntarily acquired the citizenship of any foreign State.

If a person has voluntarily adopted the citizenship of any Foreign State, then he won't be considered as a citizen of India.

In the case of State of U.P. v. Rehmatullah, it was held that the Central Government is authorised to take action against people who have acquired the foreign citizenship and have lost the citizenship of India, but they are still residing in the country.

Article 10. Continuance of the rights of citizenship

Every person who is or is deemed to be a citizen of India under any of the foregoing provisions of this Part shall, subject to the provisions of any law that may be made by Parliament, continue to be such citizen.

Any person who is considered a citizen of India under any of the provisions of this Part shall continue to be citizens and will also be subject to any law made by the Parliament.

That is, Article 10 says that anyone meeting the definition of a citizen under Part 2 of the Constitution will become or will continue to



be a citizen unless Parliament makes a law that removes the person's citizenship.

Article 11. Parliament to regulate the right of citizenship by law.

Nothing in the foregoing provisions of this Part shall derogate from the power of Parliament to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to citizenship.

Article 11 of the constitution confers power on the parliament to make laws regarding citizenship. The Indian Citizenship Act, 1955 was enacted in exercise of this provision.

Provisions under the Citizenship Act, 1955

The Act provides for acquisition of Indian citizenship in the following ways:

i) Citizenship by birth: Anyone born in India on or after January 1, 1950, would be deemed a citizen by birth. This limit was further amended to include those born between January 1, 1950 and July 1, 1987.

By the Citizenship Amendment Act, 2003, persons born after December 3, 2004, would be deemed to be citizens of India if either of the parents is Indian or one of the parents is a citizen of India and the other was not an illegal migrant at the time of the person's birth.

ii) Citizenship by descent: A person born outside India shall be deemed to be a citizen of India if either of the person's parents was a citizen of India at the time of his/her birth provided that the birth is registered within one year of its occurrence or commencement of the Act, whichever is later, at the Indian consulate.

iii) Citizenship by registration: A person may be registered as a citizen of India, if the person is married to a citizen of India or has been a resident of India for five years immediately before making an application for registration.

iv) Citizenship by naturalisation: A person is granted a certificate of naturalisation if the person is not an illegal migrant and has resided in India for 12 months before making an application to seek the certificate. Of the 14 years preceding this 12-months duration, the person must have stayed in India for 11 years.



v) Citizenship by incorporation of territory: If any new territory becomes a part of India, the government of India shall specify the persons of the territory to be citizens of India.

If the central government is of the opinion that an applicant is a person who has rendered distinguished service to the cause of science, philosophy, art, literature, world peace or human progress generally, it may waive all or any conditions specified to attain Indian citizenship.

Termination of Indian Citizenship

Termination of citizenship is possible in three ways according to the Act:

- 1. Renunciation:** If any citizen of India who is also a national of another country renounces his Indian citizenship through a declaration in the prescribed manner, he ceases to be an Indian citizen. When a male person ceases to be a citizen of India, every minor child of his also ceases to be a citizen of India. However, such a child may within one year after attaining full age become an Indian citizen by making a declaration of his intention to resume Indian citizen-ship.
- 2. Termination:** Indian citizenship can be terminated if a citizen knowingly or voluntarily adopts the citizenship of any foreign country.
- 3. Deprivation:** The government of India can deprive a person of his citizenship in some cases. But this is not applicable for all citizens. It is applicable only in the case of citizens who have acquired the citizenship by registration, naturalization, or only by Article 5 Clause (c) (which is citizenship at commencement for a domicile in India and who has ordinarily been a resident of India for not less than 5 years immediately preceding the commencement of the Constitution).

Citizens and Non-citizens

The population of a state is divided into two categories: citizens and non-citizens. A citizen of a state enjoys all civil and political rights. A non-citizen, on the other hand, doesn't enjoy these rights.

Under the Indian constitution, certain fundamental rights are available only to the citizens, namely:

- (i) Right against discrimination on the grounds of religion, race, caste, sex or place of birth (Article 15);



(ii) right to equality of opportunity in matter of public employment (Article 16);

(iii) freedom of speech and expression, assembly, association, movement, residence and profession (Article 19);

(iv) cultural and educational rights (Article 29 and 30); and

(v) right to vote and become members of the union and state legislatures.

Several offices can also be occupied exclusively by citizens:

(i) president (Article 58(1)(a),

(ii) vice-president (Article 66(2)),

(iii) judges of the Supreme Court (Article 124(3)) and

(iv) high court (Article 217(2)),

(v) governor of a state (Article 157),

(vi) attorney general (Article 76(1)) and

(vii) advocate general (Article 165).

Equality before the law or equal protection of the laws within the territory of India (Article 14) and protection of life or personal liberty (Article 21) are applicable to non-citizens as well.



PART III: FUNDAMENTAL RIGHTS

Part 3 of Indian Constitution consisting of 30 articles commencing from Article 12 to 35 deals with Fundamental Rights. These human rights are conferred upon the citizens of India for the Constitution tells that these rights are inviolable. Right to Life, Right to Dignity, Right to Education etc. all come under one of the six main fundamental rights.

Part III of the Constitution is called as corner stone of the Constitution and together with Part IV constitute the Conscience of the Constitution

Fundamental Rights

Fundamental rights are the basic human rights enshrined in the Constitution of India which are guaranteed to all citizens. They are applied without discrimination on the basis of race, religion, gender, etc. Significantly, fundamental rights are enforceable by the courts, subject to certain conditions.

These rights are called fundamental rights because of two reasons:

- They are enshrined in the Constitution which guarantees them
- They are justiciable (enforceable by courts). In case of a violation, a person can approach a court of law.

Origin and development of The Concept of Fundamental rights

The Fundamental rights are considered to be an important part, if not, the most important part of the Constitution of India. These rights have originated from France's Declaration of Bill of Rights of Man, England's Bill of Rights, Development of the Irish Constitution, as well as, United States of America's Bill of Rights.

The development of Fundamental Rights in India is heavily inspired by the United States Bill of Rights. These rights are included in the constitution because they are considered essential for the development of the personality of every individual and to preserve human dignity. Fundamental Rights are included in Part-III of the Indian constitution which is also known as the Magna Carta of the Indian Constitution.

Features of The Fundamental Rights

The fundamental rights guaranteed by the constitution of India have certain features that establish their uniqueness, these are:

1. Some of the Fundamental rights are available only to the citizens of India while some are available to everyone such as Indian citizens, foreign citizens, or even companies and corporations.



2. The state can impose reasonable restrictions on these rights, thus making them qualified and not absolute.
3. These fundamental rights are defended and guaranteed by the Supreme Court of India, hence the aggrieved party can directly move to the Supreme Court on the infringement of these rights.
4. These rights can be suspended during the operation of a National Emergency except the rights defined under Article 20 and 21.
5. The application of these rights can be restricted when a military rule is imposed under abnormal circumstances to restore order (Article 34) and is very different from the imposition of a national emergency.
6. The application of these rights can be restricted or abrogated by the parliament (Article 33), rights of armed forces, police forces, intelligence agencies, etc. can be restricted by this Article.

List of Fundamental Rights

There are six fundamental rights of Indian Constitution along with the constitutional articles related to them are mentioned below:

1. Right to Equality (Article 14-18)
2. Right to Freedom (Article 19-22)
3. Right against Exploitation (Article 23-24)
4. Right to Freedom of Religion (Article 25-28)
5. Cultural and Educational Rights (Article 29-30)
6. Right to Constitutional Remedies (Article 32)

Originally Right to property (Article 31) was also included in the Fundamental Rights. However, by the 44th Constitutional Amendment Act, 1978, it was deleted from the list of Fundamental Rights and made a legal right under Article 300A in Part XII of the constitution.

Introduction to Six Fundamental Rights (Articles 12 to 35)

1. Right to Equality (Articles 14 – 18)

Right to equality guarantees equal rights for everyone, irrespective of religion, gender, caste, race or place of birth. It ensures equal employment opportunities in the government and insures against discrimination by the State in matters of employment on the basis of caste, religion, etc. This right also includes the abolition of titles as well as untouchability.

2. Right to Freedom (Articles 19 – 22)



Freedom is one of the most important ideals cherished by any democratic society. The Indian Constitution guarantees freedom to citizens. The freedom right includes many rights such as:

- Freedom of speech
- Freedom of expression
- Freedom of assembly without arms
- Freedom of association
- Freedom to practise any profession
- Freedom to reside in any part of the country

Some of these rights are subject to certain conditions of state security, public morality and decency and friendly relations with foreign countries. This means that the State has the right to impose reasonable restrictions on them.

3. Right against Exploitation (Articles 23 – 24)

This right implies the prohibition of traffic in human beings, begar, and other forms of forced labour. It also implies the prohibition of children in factories, etc. The Constitution prohibits the employment of children under 14 years in hazardous conditions.

4. Right to Freedom of Religion (Articles 25 – 28)

This indicates the secular nature of Indian polity. There is equal respect given to all religions. There is freedom of conscience, profession, practice and propagation of religion. The State has no official religion. Every person has the right to freely practice his or her faith, establish and maintain religious and charitable institutions.

5. Cultural and Educational Rights (Articles 29 – 30)

These rights protect the rights of religious, cultural and linguistic minorities, by facilitating them to preserve their heritage and culture. Educational rights are for ensuring education for everyone without any discrimination.

6. Right to Constitutional Remedies (32 – 35)

The Constitution guarantees remedies if citizens' fundamental rights are violated. The government cannot infringe upon or curb anyone's rights. When these rights are violated, the aggrieved party can approach the courts. Citizens can even go directly to the Supreme Court which can issue writs for enforcing fundamental rights.



PART - 3 of Indian Constitution: (Art. 12-35)

General

12. Definition.

In this Part, unless the context otherwise requires, "the State" includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India.

According to this Article the term state includes:

- The Government and Parliament of India.
- The Government and Legislature of the states.
- All local and other authorities, within the territory of India or under the control of Government of India.

Local authorities includes Panchayat, Municipalities, District Courts, Improvement trusts etc.

However, the term 'other authorities' create some problem in interpretation, the Supreme Court said that other authorities means those authorities or body created by the Constitution or by statute and power is conferred on them, such as LIC, GIC, Rajasthan Electricity Board, DDA, RBI, SEBI, IOC, ONGC, HP, SAIL, GAIL, BHEL etc. are state.

In the University of Madras v. Shanta Bai, the Madras High Court evolved the principle of 'ejusdem generis' i.e. of the like nature. It means that only those authorities are covered under the expression 'other authorities' which perform governmental or sovereign functions. Further, it cannot include persons, natural or juristic, for example, Unaided universities.

In the case of Ujjammabai v. the State of U.P., the court rejected the above restrictive scope and held that the 'ejusdem generis' rule could not be resorted to the in interpreting 'other authorities'. The bodies named under Article 12 have no common genus running through them and they cannot be placed in one single category on any rational basis.

Lastly, in Rajasthan Electricity Board v. Mohan Lal, the Supreme Court held that 'other authorities' would include all authorities created by the constitution or statute on whom powers are conferred by law. Such statutory authority need not be engaged in performing government or sovereign functions. The court emphasized that it is immaterial that the power conferred on the body is of a commercial nature or not.



13. Laws inconsistent with or in derogation of the fundamental rights.

(1) All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void.

(2) The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void.

(3) In this article, unless the context otherwise requires,—

(a) "law" includes any Ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law;

(b) "laws in force" includes laws passed or made by a Legislature or other competent authority in the territory of India before the commencement of this Constitution and not previously repealed, notwithstanding that any such law or any part thereof may not be then in operation either at all or in particular areas.

(4) Nothing in this article shall apply to any amendment of this Constitution made under article 368.

Article 13 reserve and preserve the fundamental rights of the citizen, protecting from laws that may otherwise infringe upon our freedom. Article 13 requires that all amendments and laws passed by the Parliament are tested based on their validity under the Indian Constitution.

Article 13 aids the court and citizens to keep the powers of the legislature under preview. Article 13 of the Indian Constitution describes the means for judicial review. It enjoins a duty on the Indian State to respect and implement the fundamental right. And at the same time, it confers a power on the courts to declare a law or an act void if it infringes the fundamental rights.

The meaning of Article 13 may appear to be simple at first glance, but over the years, its purpose and definition have undergone several interpretations. Article 13 and its ambit have developed with every case that discussed its implications on both pre-and post-colonial laws. It has been vital for our Constitution as it successfully made several repressive laws void, and in some cases, inoperative.



Further, it is essential to remember that the legislature cannot encroach upon judicial review under Article 368. It is an inherent and implied limitation on the legislature's power of constitutional amendment.

It is defined under Article 13 of the Constitution of India that all laws which are inconsistent with any of the fundamental rights enshrined under part III shall be void. Supreme Court and the High Courts of India can declare a law unconstitutional and invalid on the grounds of violation of any of the Fundamental rights.

Article 13 also declares that a constitutional amendment is not a law and it cannot be challenged in the courts, but it was established during the case of *Kesavananda Bharti v. State of Kerala* that a constitutional amendment can be challenged on the grounds that it is in violative nature of the fundamental rights which form a part of the 'basic structure' of the Constitution of India and it can be declared to be void.

Case laws:

(1) In *Keshavan Madhava Menon v The State Of Bombay* (1951), a seven-judge Bench heard the appeal of a petitioner prosecuted under the Indian Press (Emergency Powers) Act. Part of the appeal posed if Article 13(1) of the Indian Constitution could 'declare all laws inconsistent with the fundamental rights to be void as if they had never been passed and existed' or void ab initio.

The Court ordered that Article 13(1) does not make existing laws inconsistent with the fundamental rights, or void ab initio, for all purposes. But Article 13 makes such laws 'ineffectual and void' prospectively based on its exercise of fundamental rights on and after the commencement of the Constitution.

Justice Das, on behalf of the bench (barring the dissent Justice Fazl Ali), observed, "There is no fundamental right that a person cannot be prosecuted and punished for an offence committed before the Constitution came into force. So far as past acts are concerned, the law exists."

Therefore, if a law becomes void from the applicability of the Constitution, as it is inconsistent with the rights imbibed in part III, it will still apply to citizens and non-citizens who committed an offence under the said law.

(2) *The State Of Gujarat And Another v. Shri Ambica Mills Ltd.* is one of the many cases that add to the conundrum of interpreting Article 13(2).



For some context, in 1961, the State of Gujarat had enacted the Bombay Welfare Fund (Gujarat Extension and Amendment Act) following the bifurcation of the State of Bombay in May 1960.

The Amendment Act made several changes in the Bombay Welfare Fund Act 1953. The respondent, a company registered under the Companies Act (1956), raised 'several contentions'. One of them posed that specific provisions of the Amendment Act 'violated the fundamental right of citizen employers and employees under Article 19 (1)(f)'. Hence, the Act was not authorised under law and void under Article 13(2).

Among other things, the Constitutional Bench of the Supreme Court also had to answer if 'Ambika Mill', a non-citizen, could claim the law to be void or non-est based on Article 13(2).

On behalf of the Constitutional Bench of the Supreme Court, Justice Mathew observed that with the advent of the Constitution of India, special rights were given only to citizens, which render them protection against a post unconstitutional law.

But these provisions, although unconstitutional for the citizen, were not non-est for non-citizens like the employer in this case. The Court also observed with respect to Article 13(1), as interpreted by the Keshavan Madhava case, the word 'void' would not apply for non-citizen from pre-constitution laws.

(3) In State of Bombay v. Narasu Appa Mali (1951), the Bombay High Court had to decide the validity of the Bombay Prevention of Hindu Bigamous Marriages Act 1946. The Court answered whether personal laws could be interpreted as 'laws in force' as mentioned under Article 13(3)(a). The Court, in this case, opined that personal laws could not be part of the inclusive definition of 'law' under Article 13.

However, in Ahmedabad Women's Action Group v. Union of India (1997), the Supreme Court held that if religious personal laws are a part of the codified laws by the legislature, then the codification must be for the fundamental rights.

Doctrine of Severability

This is a doctrine that protects the fundamental rights enshrined in the Constitution. It is also known as the Doctrine of Separability. It is mentioned in Article 13, according to which all laws that were enforced in India before the commencement of the Constitution, inconsistent with the provisions of fundamental rights shall to the extent of that



inconsistency be void. This implies that only the parts of the statute that is inconsistent shall be deemed void and not the whole statute. Only those provisions which are inconsistent with fundamental rights shall be void.

Doctrine of Eclipse

This doctrine states that any law that violates fundamental rights is not null or void ab initio, but is only non-enforceable, i.e., it is not dead but inactive. This implies that whenever that fundamental right (which was violated by the law) is struck down, the law becomes active again (is revived). Another point to note is that the doctrine of eclipse applies only to pre-constitutional laws (laws that were enacted before the Constitution came into force) and not to post-constitutional laws. This means that any post-constitutional law which is violative of a fundamental right is void ab initio.



CONSTITUTIONAL LAW

By

@The_Lawgical_World



SYLLABUS.....	3
Unit - III.....	4
Right to Equality.....	5
Right to freedom.....	15
Protection against ex post facto laws[20(1)].....	22
Double jeopardy [20(2)].....	24
Prohibition against self-incrimination [20(3)].....	26
Protection of Life and Personal Liberty.....	29
Right to education.....	32
Right against Arrest and Preventive Detention:.....	35
Preventive Detention:.....	37



SYLLABUS

Unit - I: Constitution-Meaning and Significance - Evolution of Modern Constitutions - Classification of Constitutions- Indian Constitution - Historical Perspectives - Government of India Act, 1919-Government of India Act, 1935-Drafting of Indian Constitution - Role of Drafting Committee of the Constituent Assembly.

Unit - II: Nature and Salient Features of Indian Constitution - Preamble to Indian Constitution - Union and its Territories-Citizenship - General Principles relating to Fundamental Rights(Art.13) - Definition of State.

Unit - III: Right to Equality(Art.14-18) – Freedoms and Restrictions under Art.19 - Protection against Ex-post facto law - Guarantee against Double Jeopardy - Privilege against Self-incrimination - Right to Life and Personal Liberty - Right to Education – Protection against Arrest and Preventive Detention.

Unit - IV: Rights against Exploitation - Right to Freedom of Religion - Cultural and Educational Rights - Right to Constitutional Remedies - Limitations on Fundamental Rights(Art.31-A,B and C).

Unit - V: Directive Principles of State Policy – Significance – Nature – Classification - Application and Judicial Interpretation - Relationship between Fundamental Rights and Directive Principles - Fundamental Duties – Significance - Judicial Interpretation.



Unit - III

Right to Equality(Art.14-18) – Freedoms and Restrictions under Art.19 - Protection against Ex-post facto law - Guarantee against Double Jeopardy - Privilege against Self-incrimination - Right to Life and Personal Liberty - Right to Education – Protection against Arrest and Preventive Detention.



Part - III: Fundamental Rights (Cont.)

As discussed earlier, The charter of rights in Part III (Article 12 to 35) of the Constitution of India protects the fundamental rights, the basic and civil liberties of the people of India. The fundamental rights are applicable to all the citizens of the country, irrespective of their religion, race, caste, creed, place of birth or gender. The fundamental rights are protected by the judiciary of India and in case of their violation, a person can approach the Supreme court directly for justice as per Article 32 of the constitution.

Originally, the constitution provided for seven Fundamental rights,

- (1) Right to Equality (Article 14 to 18),
- (2) Right to Freedom (Article 19 to 22),
- (3) Right against exploitation (Article 23 and 24),
- (4) Right to freedom of religion (Article 25 to 28),
- (5) Cultural and Educational rights (Article 29 to 30),
- (6) Right to property (Article 31),
- (7) Right to Constitutional remedies (Article 32).

But later on, the right to property was removed from the list of fundamental rights by the 44th Amendment Act of 1978. So now there are only six fundamental rights in the Constitution of India.

Right to Equality

The Right to equality means the absence of legal discrimination only on grounds of caste, race, religion, sex, and place of birth and ensures equal rights to all citizens. It is considered basic feature of the Indian Constitution. The Right to equality is both a positive equality as well as a negative right. This means that every person, who lives within territory of India, has the equal right before the law.

Under the Indian Constitution, Right to equality is divided under the following subheadings:

1. Equality before law (Article 14)
2. Prohibition of discrimination on grounds of religion, caste, race, sex or place of birth (Article 15)
3. Equality of opportunity in matters of public employment (Article 16)
4. Abolition of untouchability (Article 17)
5. Abolition of titles (Article 18)



Under the Right to Equality, Article 14 provides a general application whereas Art. 15, Art. 16, Art. 17 and Art. 18 have a specific application.

1. Equality before law

Article 14. Equality before law.—The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.

Article 14 of Indian Constitution declares that the State shall not deny anyone equality before the law or equal protection of the laws within the territory of India. This right is conferred on everyone including foreigners and even legal persons, such as a corporation or a company. This concept of 'equality before the law' is of British origin while the concept of 'equal protection of laws' is of American origin (it has been taken from the American Constitution).

The right to equality provides for the equal treatment of everyone before the law, prevents discrimination on various grounds, treats everybody as equals in matters of public employment, and abolishes untouchability, and titles (such as Sir, Rai Bahadur, etc.).

Case Laws:

In *Stephen's college v. university of Delhi* under The court held that the expression "Equal protection of the laws is now being read as a positive Obligation on the state to ensure equal protection of laws by bringing in necessary social and economic changes so that everyone may enjoy equal protection of the laws and nobody is denied such protection. If the state leaves the existing inequalities untouched laws d by its laws, it fails in its duty of providing equal protection of its laws to all persons. State will provide equal protection to all the people of India who are citizen of India and as well as non citizen of India.

In the case of the *Air India v. Nargesh Meerza* Regulation 46 of Indian Airlines regulations provides an air Hostess will be retire from the service upon attaining the age of 35 years or on marriage within 4 years of Service or on first pregnancy, whoever found earlier but regulation 47 of the regulation act the managing director had the discretion extend the age of retirement one year at a time beyond the age of retirement up to the age of 45 years at his option if an air hostess was found medically fit. It was held by the court that an air hostess on the ground of pregnancy was unreasonable and arbitrary, it was the violation of



article 14 under constitution law of India. The regulation did not restrict marriage after four years and if an air hostess after having fulfilled the condition became pregnant, there was no ground why first pregnancy should stand in the way of her running service. of the court said that the termination of service on pregnancy was manifestly unreasonable and arbitrary on the basis of this it was violation of article 14 of Indian constitution.

Keeping in view of above mentioned statements said by the different courts, it is clear that Article 14 gives the ensurity of equal rights without discrimination. It says equal everyone is Equal in eye of law. Whether he belongs to different race, religion, social status or wealth.

2. Prohibition of discrimination

Article 15. Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth.—

(1) The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.

(2) No citizen shall, on grounds only of religion, race, caste, sex, place of birth or any of them, be subject to any disability, liability, restriction or condition with regard to—

(a) access to shops, public restaurants, hotels and places of public entertainment; or

(b) the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public.

(3) Nothing in this article shall prevent the State from making any special provision for women and children.

(4) Nothing in this article or in clause (2) of article 29 shall prevent the State from making any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.

(5) Nothing in this article or in sub-clause (g) of clause (1) of article 19 shall prevent the State from making any special provision, by law, for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes in so far as such special provisions relate to their admission to educational institutions including private educational institutions, whether aided or unaided by the State, other than the minority educational institutions



referred to in clause (1) of article 30.

(6) Nothing in this article or sub-clause (g) of clause (1) of article 19 or clause (2) of article 29 shall prevent the State from making,—

(a) any special provision for the advancement of any economically weaker sections of citizens other than the classes mentioned in clauses (4) and (5); and

(b) any special provision for the advancement of any economically weaker sections of citizens other than the classes mentioned in clauses (4) and (5) in so far as such special provisions relate to their admission to educational institutions including private educational institutions, whether aided or unaided by the State, other than the minority educational institutions referred to in clause (1) of article 30, which in the case of reservation would be in addition to the existing reservations and subject to a maximum of ten per cent. of the total seats in each category.

Explanation.— For the purposes of this article and article 16, "economically weaker sections" shall be such as may be notified by the State from time to time on the basis of family income and other indicators of economic disadvantage.

Article 15 of the Constitution of India declares that the state will not discriminate against any citizen of India on the grounds of religion, caste, sex or their place of birth.

Case Laws

(i) In the case of *Kathi Raning Rawat v. State of Saurashtra*, the state of Saurashtra set up special courts under Saurashtra State Public Safety Measures Ordinance 1949, to adjudicate on the matters of section 302, section 307 and section 392 read with section 34 of the Indian Penal Code, 1860. The contention brought before the court was that these provisions are discriminatory for the residents depending upon the territory.

The court stated that all kinds of legislative differentiation are not discriminatory. The legislation did not refer to certain individual cases but to offences of certain kinds committed in certain areas and hence it is not discrimination.

(ii) In another significant case of *John Vallamattom v. Union of India*, AIR 2003 SC 2902, the Indian Succession Act 1925 prevented the petitioners from bequeathing property for religious and charitable purposes. The



petitioner contented it to be discriminatory against the testamentary dispositions by a Christian.

The court stated that the Act was to prevent people from making injudicious death-bed bequest under religious influence, but had a great impact on a person desiring to dispose of his property upon his death. Hence, the legislation is clearly discriminatory as the properties of any Hindu, Muhammadan, Buddhist, Sikh, Jain or Parsi were excluded from the provisions of the Act. Further, no acceptable reasoning was provided to show why the provision regulates religious and charitable bequests of Christians alone.

Exception:

Article 15 Clause (3), (4) and (5) stands as an exception to Article 15 Clause (1) and (2). Article 15 Clause (3), (4) and (5) states that the legislature is free to formulate special provisions:

- For women and children,
- For the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and Scheduled Tribes,
- Make provision relating to their admission to educational institutions including private educational institutions, whether aided or unaided by the State, other than the minority educational institutions.

Though being the exception to the legislation that forbids discrimination on grounds of sex and caste, this does not come under discrimination. Rather, the term 'PROTECTIVE DISCRIMINATION' (also known as Positive Discrimination) is used by the legislators to justify reservation and is defined as the policy of providing an equal platform to the underprivileged and the suppressed classes and to lift their status in the society. This system of reservation works on the principles of intelligible differentia (difference capable of being understood).

Reservation in medical colleges, reservation on the basis of domicile, special provisions for women and children, reservation based on area, are some of the exceptions to this Article. However, the Supreme Court put up a limit of 50% as the total percentage of reservation as it was reasoned that allowing the limit to exceed will deprive other of their right to equality.

Article 15 is the weapon that breaks the wall of discrimination between the upper caste and the lower caste. It is an extension to Article 14 which talks about equality among individuals and equality before the law. It means that equals should be treated equally and unequal to be



treated unequally, the same has been reiterated in the Indira Sawhney v. Union of India, AIR 1993 SC 477. Article 15 derives its entire power from article 14.

Conclusion

Article 15 has always hurdled its way out to reach to the one really in need. The condition of the downtrodden has highly improved since its inception in 1949. It provides a base to each and everything that legislature needs to formulate provisions to promote harmony in the society. There is an extreme decline in the number of cases of atrocities against the underprivileged classes.

Article 15 truly is the guardian of downtrodden and a shield against discrimination, it has helped the Indian society to stand tall and proud despite such a huge diversity and all kinds of sexism, racism and rigid caste system and will continue to contribute to India's unity and equality, forever.

3. Equality of opportunity

Article 16. Equality of opportunity in matters of public employment.

(1) There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State.

(2) No citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State.

(3) Nothing in this article shall prevent Parliament from making any law prescribing, in regard to a class or classes of employment or appointment to an office under the Government of, or any local or other authority within, a State or Union territory, any requirement as to residence within that State or Union territory] prior to such employment or appointment.

(4) Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State.

(4A) Nothing in this article shall prevent the State from making any provision for reservation in matters of promotion, with consequential seniority, to any class] or classes of posts in the services under the State in favour of the Scheduled Castes and the Scheduled Tribes which, in



the opinion of the State, are not adequately represented in the services under the State.

(4B) Nothing in this article shall prevent the State from considering any unfilled vacancies of a year which are reserved for being filled up in that year in accordance with any provision for reservation made under clause (4) or clause (4A) as a separate class of vacancies to be filled up in any succeeding year or years and such class of vacancies shall not be considered together with the vacancies of the year in which they are being filled up for determining the ceiling of fifty per cent. reservation on total number of vacancies of that year.

(5) Nothing in this article shall affect the operation of any law which provides that the incumbent of an office in connection with the affairs of any religious or denominational institution or any member of the governing body thereof shall be a person professing a particular religion or belonging to a particular denomination.

(6) Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any economically weaker sections of citizens other than the classes mentioned in clause (4), in addition to the existing reservation and subject to a maximum of ten per cent. of the posts in each category.

Article 16 of the Constitution of India declares the equality of opportunity for the Indian citizens in the matters which involve employment or appointment to any office under the state. Hence, no citizen of India shall be discriminated against or be declared ineligible for any employment under the state on the grounds of religion, caste, place of birth, or gender.

Article 16 of the Indian Constitution guarantees equal opportunity to all citizens in matters related to employment in the public sector. The provision of equality is only applicable to the employment or offices which are held by the State. The State is still free to lay down the requisite qualifications for the recruitment of employees for the Government services. The Government can also pick and choose applicants for the purpose of employment as long as the applicants have been given an equal opportunity to apply for the Government service.

The prohibited grounds of discrimination under Article 16(2) are religion, race, caste, sex, descent, birthplace, residence, or any of them. The words 'any employment or office under the state' mentioned in



clause 2 of Article 16 implies that the said provision refers only to public employment and to the employment in the private sector. Article 16(1) and (2) lay down provisions for equal opportunity of employment in the public sector.

Case laws:

Randhir Singh vs Union of India, 1982: The case was a landmark judgment on the constitutional validity of equal pay for equal work. Equal pay for equal work is also a Directive Principle in the Indian Constitution. In the said case the Supreme Court grounded equal pay for equal work under Article 14 of the Constitution and stated that in cases where all "relevant considerations are the same", the government can not deny equal pay for equal work simply by performing the bureaucratic maneuver i.e. by separating the workers into different posts, or to different departments. The example of drivers was taken to decide the case.

According to the Court "there is not even the slightest doubt that the drivers in the Delhi Police Force perform the same functions and duties as other drivers in service of the Delhi Administration and the Central Government", and hence, equal pay for equal work was attracted.

4. Abolition of Untouchability

Article 17. Abolition of Untouchability.

"Untouchability" is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of "Untouchability" shall be an offence punishable in accordance with law.

Article 17 of the Constitution which was intended to abolish the practice of untouchability, fails to define the term 'untouchability' nor is it defined anywhere else in the Constitution. Through this case, the Court gave a broader interpretation of the word 'untouchability' under Article 17 of the Constitution.

Untouchability has been abolished by the Indian Constitution through Article 17. The Article states that the practice of untouchability is prohibited in all forms. Article 17 of the Constitution abolishes the practice of untouchability. The practice of untouchability is an offense under the Untouchability Offences Act of 1955 (renamed to Protection of Civil Rights Act in 1976) and anyone doing so is punishable by law. This Act states that whatever is open to the general public should be open to all the citizens of India.



Case law:

In the case of *Devarajjah v. Padmanna*, AIR 1958 Mys 84, the term untouchability was defined. It was stated that the Untouchability Offences Act, 1955 fails to define the word 'untouchability'. The Court observed that 'untouchability' under Article 17 of the Constitution should not be taken in the literal sense but should be understood as a practice that has prevailed and developed in India. The framers of the Constitution had clearly indicated untouchability as a practice that developed historically in this country. The existence and practice of untouchability in this country and the efforts which have been made for its eradication during the past decades are matters of common knowledge and can be taken judicial notice of.

Article 18. Abolition of titles.

- (1) No title, not being a military or academic distinction, shall be conferred by the State.
- (2) No citizen of India shall accept any title from any foreign State.
- (3) No person who is not a citizen of India shall, while he holds any office of profit or trust under the State, accept without the consent of the President any title from any foreign State.
- (4) No person holding any office of profit or trust under the State shall, without the consent of the President, accept any present, emolument, or office of any kind from or under any foreign State.

The Article 18 of the Constitution forbids the State from conferring any titles on the citizens of India and also they are prohibited from accepting any title given by a foreign State. However, Military and academic distinctions can be conferred upon. The title which comes along with awards such as Bharat Ratna and Padma Vibhushan do not fall within the constitutional prohibition and thus, they do not fall under the definition of title under Article 18 of the Constitution.

In *Balaji Raghavan v. Union of India*, (1996) 1 SCC 361, the petitioners contended that National Awards like Padam Vibhushan, Padam Bhushan, Padam Shri, and Bharat Ratna should not be given to the individuals as it is a violation of Article 18. It was argued in the court that the National Awardees very often misuse the title which is given to them by the Government. The Supreme Court held that National Awards are not subject to titles as per Article 18 and receiving a National Award was not a violation of equality under the Constitution. Article 51(A)(f) of



the Constitution speaks about the necessary recognition and appreciation of excellence in the performance of a person's duty. The Court criticized the Government's failure in selecting the right candidates for National Award and also stated that the whole criteria for selection were vague and the main object of recognition and appreciation of work was wholly missing.

Conclusion:

Right to Equality is not a simple concept as it is perceived to be. The Indian Constitution aims to achieve a society in which all the individuals are provided with an equal opportunity. The developments which have been made in the light of Right to equality under the Constitution have uplifted the Indian society. The framers of the Constitution aimed to achieve a society where all citizens are treated equally. The Courts have given various interpretations through the judgments so as to achieve the aim of equality which the framers of the Indian Constitution intended.

The right to equality is considered basic feature of the Indian Constitution and plays an important role in achieving social and economic justice in our society where upliftment of certain classes is considered necessary for our country to flourish. Its emphasis on the fundamental unity of individuals by providing equal opportunities and treatment to all. All other privileges and liberties follow from the right to equality. It provides every individual of the country with all the elements essential for the development of its personality.



Right to freedom

The right to freedom comes under one of the fundamental rights. It is enshrined in the Indian Constitution. The right to freedom gives citizens' freedom of expression and expression, freedom of association, individual freedom and freedom to lead lives of dignity. It is equally crucial to understand the scope of this provision and any exceptions.

The right to freedom guarantees citizens, among other things, the freedom to live in dignity. They are regulated in Articles 19, 20, 21A and 22 of the Indian Constitution.

Article 19. Protection of certain rights regarding freedom of speech, etc.

(1) All citizens shall have the right—

- (a) to freedom of speech and expression;
- (b) to assemble peaceably and without arms;
- (c) to form associations or unions or co-operative societies;
- (d) to move freely throughout the territory of India;
- (e) to reside and settle in any part of the territory of India; and (g) to practise any profession, or to carry on any occupation, trade or business.

(2) Nothing in sub-clause (a) of clause (1) shall affect the operation of any existing law, or prevent the State from making any law, in so far as such law imposes reasonable restrictions on the exercise of the right conferred by the said sub-clause in the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence.

(3) Nothing in sub-clause (b) of the said clause shall affect the operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, in the interests of the sovereignty and integrity of India or public order, reasonable restrictions on the exercise of the right conferred by the said sub-clause.

(4) Nothing in sub-clause (c) of the said clause shall affect the operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, in the interests of the sovereignty and integrity of India or public order or morality, reasonable restrictions on the exercise of the right conferred by the said sub-clause.

(5) Nothing in sub-clauses (d) and (e) of the said clause shall affect the



operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, reasonable restrictions on the exercise of any of the rights conferred by the said sub-clauses either in the interests of the general public or for the protection of the interests of any Scheduled Tribe.

(6) Nothing in sub-clause (g) of the said clause shall affect the operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, in the interests of the general public, reasonable restrictions on the exercise of the right conferred by the said sub-clause, and, in particular, nothing in the said sub-clause shall affect the operation of any existing law in so far as it relates to, or prevent the State from making any law relating to,—

- (i) the professional or technical qualifications necessary for practising any profession or carrying on any occupation, trade or business, or
- (ii) the carrying on by the State, or by a corporation owned or controlled by the State, of any trade, business, industry or service, whether to the exclusion, complete or partial, of citizens or otherwise.

Article 19 guarantees six freedoms. They are:

1. Freedom of Speech and Expression
2. Freedom of Assembly
3. Freedom of association / trade unions / cooperatives
4. Freedom of Movement
5. Freedom of residence
6. Freedom of profession

1. Freedom of Speech and Expression: Article 19 of the Constitution provides freedom of speech which is the right to express one's opinion freely without any fear through oral / written / electronic / broadcasting / press. Freedom of expression includes Freedom of Press. It covers the blogs and websites too.

Under this Article, the government guarantees freedom of speech for all people in India. However, the State can impose restrictions on the freedom of speech and expression in the interests of the integrity, security and sovereignty of the country, friendly relations with foreign nations, for public order, with respect to defamation, incitement to offence or contempt of court.

Landmark case:



Maneka Gandhi v. Union of India: Freedom of speech and expression has no geographical limitation and it carries with it the right of a citizen to gather information and to exchange thought with others not only in India but abroad also.

2. Freedom of Assembly: The constitution guarantees right to hold meetings and take out processions. The processions and meetings should be unarmed and peaceful. This right may be restricted in the interest of the public order or sovereignty and integrity of the country. This Article has also been reviewed and interpreted by the Supreme Court many times.

That is, the government guarantees the freedom of everyone to assemble peacefully without weapons. However, as noted above, reasonable restrictions may be placed on the sovereignty, integrity and interests of the state's public order.

3. Freedom of Association: The Constitution declares that all citizens will have the right to form associations and unions. Again, the State can impose restrictions in the interests of the integrity, security and sovereignty of the country, friendly relations with foreign nations, for public order, with respect to defamation, incitement to offence or contempt of court. This freedom gives workers the right to form trade union, which is thus a fundamental right.

- a) The Police Forces (Restriction of Rights) Act, 1966 prohibits police personnel from forming trade unions.
- b) The Constitution also allows the Parliament to pass a law restricting the right to form political association to members of the armed forces, intelligence bureaus, persons employed with telecommunication system

Landmark case:

T.K. Rangarajan v. State of Tamil Nadu: Right to form association does not carry the right to strike.

4. Freedom of Movement: The freedom of Movement is guaranteed by the Constitution and citizens can move from one state to another and anywhere within a state. Indian citizens can walk freely in India. A person free to move from any point to any point within the country's territories. There are certain exceptions such as Scheduled Tribe areas and army areas.

Landmark case:



Kharak singh v. State of UP: Watching and shadowing of suspects for the purpose of keeping record of their movement and activities & Domiciliary visits.

5. Freedom of Residence: Citizens of India have the right to live in any part of the country. That is, an Indian citizen is free to reside in any state except from Jammu & Kashmir. Again this is subject to certain restrictions. In fact, restrictions can be imposed to protect security, public order, or the interests of the proposed tribe.

Landmark case:

Ibrahim Wazir v. State of Bombay: Indian citizen came to India without permit and was arrested and deported to Pakistan by the Government.

6. Freedom of Trade and Occupation: The Constitution of India guarantees each of its citizens to do trade, Occupation or business anywhere in the country.

All citizens have the right to carry on any trade or profession / occupation, provided the trade or occupation is not illegal or immoral. Also, the law does not prevent the State from making laws related to technical or professional qualifications required for practicing the occupation or trade.

Restriction of freedom of expression

There are certain grounds on which the Constitution of India introduces restrictions. Article 19 (2) of Indian Constitution empowers the State to instill reasonable restrictions on the following grounds:

1. Security of the State;
2. Friendly Relation with Foreign States;
3. Public Order;
4. Decency and morality;
5. Contempt of court;
6. Defamation;
7. Incitement to offence;
8. Integrity and Sovereignty of India.

1. Security of the State: Under Article 19 (2) some reasonable restrictions can be imposed on freedom of speech and expression in the interest of Security of the state. As it is of great importance and the government has the power to put restrictions on the activities which affect the security of the state. Consequently, freedom of speech and expression with regard to an individual, if he is impelling or promoting



the commission of a crime, for example, are matters which would undermine State security. Restrictions can be put on that individual.

In the case of *P.U.C.L v. Union of India*, the PIL was filed under Article 32 of the Indian Constitution by PUCL regarding phone tapping. The validity of Section 5 (2) of the Telegraph Act was challenged in this case. Section 5 (2) states the essential elements which need to be fulfilled for the application of the Section is in the interest of public safety and any occurrence of public safety. The government has no right to exercise their power in the said Section if any of these two conditions are not fulfilled. Telephone tapping is violating Article 19 (1) of the Indian Constitution, until and unless it comes under the grounds of restrictions under Article 19 (2).

2. Sovereignty and Integrity of India: This ground was added to Article 19 (2) by the Constitution (16th Amendment) Act, 1963, as it is the foremost duty to maintain the sovereignty and integrity of India. This imposes a restriction on freedom of speech and expression and does not permit anyone to challenge the sovereignty of India. It restricts everyone from saying something causing threat to the integrity of India.

3. Friendly relations with Foreign States: A state can impose a restriction on freedom of speech and expression if it affects the friendly relations with other States. It was added to the constitution of India by the (1st amendment) Act, in 1951. It is to be noted that no other constitution in the world has a similar provision in it.

4. Public Order: The Constitution (1st Amendment), Act, 1951 also added this ground to the constitution, so as to meet the circumstances emerging from the Supreme Court's decision. In the case of *Romesh Thapar v. State of Madras*, the Supreme Court held that the public order is different from the security of the state and from the law and order. Also, seen in the case of local breaches of public order there are no grounds for imposing restrictions on public order. The Supreme Court said that public order is an expression of the public peace, public safety and tranquillity. In this case, there was a ban on a Journal by the law in the State of Madras in the interest of public order. The court held that the restrictions imposed by the government were only on the grounds mentioned in Article 19(2). So, in this case, the decision was taken by the Supreme court and the expression "public order" was added to Article 19 (2) to impose certain restrictions on the freedom of speech and expression.



5. Decency and Morality: The words decency and morality are defined in Section 292 to Section 294 of IPC. It empowers the government to put certain restrictions on freedom of speech and expression under this. These sections of IPC restrict the distribution or sale of obscene books etc. in public.

6. Contempt of Court: The right to freedom of speech and expressions don't allow anyone to contempt of court. Reasonable restriction can be imposed on freedom of speech and expression. Contempt of court is defined in Section 2 of Contempt of Courts Act, 1971. It covers both civil contempt and criminal contempt as well. But, now Indian Contempt Law was amended in the year 2006 and it added to make truth as a defence.

7. Defamation: Article 19(2) imposes a restriction on a person to prevent him from making a defamatory statement which defames the reputation of another person. A person is known by his/her reputation in the society, so the constitution puts restrictions on freedom of speech. Defamation is a crime under Section 499 and Section 500 of IPC. Right to freedom of speech and expression doesn't give any person an absolute right. It doesn't give a right to a person to hurt any other person's reputation.

8. Incitement to an Offence: The Constitution (1st Amendment Act), 1951 added the incitement to an offence ground. The right to freedom of speech and expression prohibits people from committing an offence. The word Offence is defined in the General Clause Act which states that offence is an act or omission done by a person and is punishable by any law for the time being in force.

It is very evident from the above analysis that these grounds contained in Article 19 (2) are concerned about the national security of India and the interest of society. The grounds such as the sovereignty of India, the security of the states, public order and friendly relation with foreign states are concerned with national security. Whereas grounds related to it in the interest of society are decency and morality, contempt of court, defamation and incitement to an offence.



Article 20. Protection in respect of conviction for offences.

- (1) No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the Act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence.
- (2) No person shall be prosecuted and punished for the same offence more than once.
- (3) No person accused of any offence shall be compelled to be a witness against himself.

Article 20 deals with the protection of citizens in respect of conviction for offences. It allows protection against unreasonable and excessive punishment to an accused individual, whether a citizen of India or a citizen of any foreign nation or even a legal person like a company or a corporation. This provides for three types of protection of the individual against the State.



Protection against expost facto laws[20(1)]

Ex post facto law is derived from the Latin word "ex post facto" which means 'out of the aftermath', it is a law that has a retrospective consequence on any act committed, which is not prohibited by law, before the enactment of a preceding law.

This is also known as retrospective criminal legislation. Under this, a person cannot be convicted for an act that was committed at a time when the act had not been declared by law as an offence.

The expression 'Ex Post Facto Law means "a law, which imposes penalties or convictions on the acts already done and increases the penalty for such acts". In other words, Ex Post Facto Law, imposes penalties retrospectively.

In criminal law, Ex post facto laws may criminalize actions that were not punishable when committed although it may aggravate any offense by bringing it into a more serious offense category, which ex post facto law than it was in a particular category at the time it was committed earlier. Ex post facto may cause a change in the consequence of committing an offense. Due to the addition of new punishments and new rules to govern a particular offense. This principle may also cause a change in the rules of evidence to make a conviction for a crime easier than it would have been when the offense was committed.

The application of Ex post facto laws have been interpreted as it is against constitutional guarantees. In the case of *Beazell vs. Ohio*, it has been cleared that any statute which punishes as a crime a previous act which was innocent when committed violates the constitutional guarantee.

Kinds of Expost Facto Laws

Ex post facto laws are of three kinds as follows:

- A law which declared some act or omission as an offence for the first time after the completion of that act or omission.
- A law which enhances the punishment or penalty for an offence subsequent to the commission of that offence.
- A law which prescribes a new and different procedure for the prosecution of an offence subsequent to the commission of that offence.

Clause (1) of Art. 20 provides protection only in respect of the above first two categories of expost facto laws i.e. laws which declare acts as



offences subsequent to the commission to those acts and laws which enhance the penalty subsequently.

The Landmark judgement governing this doctrine came in the year 1953, in case of Kedar Nath v. State of West Bengal. In this case, the Hon'ble Supreme Court of India observed that, whenever an act is declared as a criminal offence and/or provides penalty for same by the legislature, it is always prospective in nature and can't be implemented retrospectively to uphold what is being said under Article 20 (1).

However, only the procedure of sentencing and convicting is what is prohibited under this clause, and not the trial itself. Thus, a person accused according to a particular procedure can't be questioned under this clause and doctrine of Ex post facto law.



Double jeopardy [20(2)]

Fundamental right which is guaranteed under Article 20(2) of Constitution of India incorporates the principles of "autrefois convict" or Double jeopardy which means that person must not be punished twice for the offence.

Doctrine against Double Jeopardy embodies in English common law's maxim 'nemo debet bis vexari, si constat curiae quod sit pro una et eadem causa' (no man shall be punished twice, if it appears to the court that it is for one and the same cause).

It also follows the "audi alterum partem rule" which means that no person can be punished for the same offence more than once. And if a person is punished twice for the same offence it is termed Double jeopardy.

"Nemo debet bis vexari pro una et eadem causa" = No person can be prosecuted and punished twice for the same offence in subsequent proceedings.

The Doctrine of Double Jeopardy, which traces back its origin to American jurisprudence of punishment, means that 'no person can be prosecuted and punished twice for the same offence in subsequent proceedings'. And, Article 20 (2), which reads that no one could be convicted and punished more than once for the same offence involving the same set of facts guarantees against the multiple convictions and Double jeopardy.

In the case of Venkataraman v. Union of India, the Supreme Court of India established that this provision deals exclusively with Judicial punishments and provides that no person is prosecuted twice by the judicial authorities. The most crucial landmark judgement came in case of Maqbool Hussain v. State of Bombay, where the person accused was possessing some amount of gold, which was against lex loci at the time and gold was confiscated by the customs authority. And, later when the person was prosecuted before a criminal court, the court was confronted with the question whether this amounts to Double Jeopardy.

Conclusion

The rule against Double Jeopardy stipulates that no one may be put in peril twice for the same offence. It is a concept originated from "Natural Justice System" for the protection of integrity of the "Criminal Justice System". The concept of Double Jeopardy follows the "audi alterum partem rule" which means a person cannot be punished twice



for the same offence. But it is to be noted that there are some restrictions too in the Indian laws related to Double Jeopardy.

In *The State of Bombay v. S.L. Apte and anr.*, The Constitution Bench of this Court while dealing with the issue of double jeopardy under Article 20(2), held: "To operate as a bar the second prosecution and the consequential punishment there under, must be for "the same offence". The crucial requirement therefore for attracting the Article is that the offences are the same i.e. they should be identical. If, however, the two offences are distinct, then notwithstanding that the allegations of facts in the two complaints might be substantially similar, the benefit of the ban cannot be invoked. It is, therefore, necessary to analyze and compare not the allegations in the two complaints but the ingredients of the two offences and see whether their identity is made out. The next point to be considered is as regards the scope of Section 26 of the General Clauses Act. Though Section 26 in its opening words refers to "the act or omission constituting an offence under two or more enactments", the emphasis is not on the facts alleged in the two complaints but rather on the ingredients which constitute the two offences with which a person is charged. This is made clear by the concluding portion of the section which refers to "shall not be liable to be punished twice for the same offence". If the offences are not the same but are distinct, the ban imposed by this provision also cannot be invoked."



Prohibition against self-incrimination [20(3)]

This implies that no person accused of an offence shall be compelled by the State to bear witness against himself.

According to Black's Law Dictionary, a declaration or an act that occurs during an investigation where a person or witness incriminates themselves either explicitly or implicitly is known as self-incrimination. In simpler words, it is the act of implicating or exposing one's own self to criminal prosecution.

The expression self-incrimination means conveying information based upon personal knowledge of the person giving information involving himself to be the prime part taken in the offence. A person shall not be asked to make statements against himself (i.e. self harming statements/confessional statements).

Art. 20(3) is based on the common law maxim *nemo tenetur prodere accusare seipsum*, which means that "no man is bound to accuse himself".

Ingredients:

The protection under Art. 20(3) is available, provided the following conditions are fulfilled.:

- i. The person (seeking protection under Clause 3 of Art. 20) must be 'accused of an offence.
- ii. The protection is against 'compulsion to be a witness. (He is compelled to give witness); and
- iii. The compulsion relates to giving evidence 'against himself.

1. The person accused of an offence

This privilege is only available to a person accused of an offence i.e. "person against whom a formal accusation relating to the commission of an offence has been levelled, which may result in prosecution". In India, a formal accusation can be made by lodging of an F.I.R. or a formal complaint against a person accusing him of committing a crime, it is not necessary that the trial or enquiry should have commenced before a court. Article 20(3) operates only on the making of such formal accusation. It is imperative to note that, "a person cannot claim the protection if at the time he made the statement, he was not an accused but becomes an accused thereafter." Article 20 (3) does not apply to departmental inquiries into allegations against a government servant since there is no accusation of any offence.



In *M.P. Sharma v. Satish Chandra*, it was held that a person whose name is mentioned in the first information report as an accused can claim protection under Article 20(3). The privilege against self-incrimination is available at both trial and pre-trial stage i.e. when the police investigation is going on and the person is regarded as an accused, or even if his name is not mentioned in the FIR as an accused.

2. Compulsion to be a witness

The application of the narco-analysis test as a technique for investigation raises the issue of encroachment of human rights. In *State of Bombay v. Kathi Kalu Oghad*, the court held that it must be shown that the person was compelled to make a statement which was likely to incriminate him. Compulsion is duress: it should be a physical objective act and not a state of mind like beating, threatening, imprisonment of wife, parent or child of a person. Art.20(3) does not apply if a person makes a confession without any inducement or threat.

In the case of *State (Delhi Administration) v. Jagjit Singh*, the court held that if an accused has been granted pardon under section 306 of the Criminal Procedure Code, he ceases to be an accused and becomes a witness for the prosecution and his evidence cannot be used against him in other cases. Section 132 of the Indian Evidence Act protects a witness from being prosecuted on the basis of the information given by him in a criminal proceeding which tends to incriminate him.

3. Compulsion resulting in giving evidence against himself

An accused can be compelled to submit to investigation by giving thumb impressions or specimen for writings or exposing body for the purpose of identification. In *Kathi Kalu's case*, it was held that it must be necessarily shown that the witness was compelled to make a statement likely to incriminate him. Compulsion is an essential ingredient but if a person makes a confession without any inducement, threat or promise Article 20(3) does not apply. The accused may waive his right against self-incrimination by voluntarily making an oral statement or producing documentary evidence, incriminatory in nature.

In *Amrit Singh v. State of Punjab*, the accused had charges of rape and murder of an eight year old girl. When the body of the deceased was discovered, some strands of hair were found in the closed fist of the child. The Police wanted to analyse the hair of the accused, but the accused refused to give the sample. The court found the accused to be protected against self-incrimination, so he had the right to refuse to give hair sample. But if the right against self-incrimination is considered



in such a broad manner, then it might lead to misuse of this right by the accused.

Conclusion

Article 20 (3) provides protection against self-incrimination and gives the accused the right to remain silent over any matter which tends to incriminate him. This article extends to the persons who are compelled to be a witness and also covers searches and seizures wherein, an accused or the person being searched is under no obligation to be a part of the search. If any statement is made on some finding then it will not be protected under Article 20(3).

The law says that an accused cannot be tortured or forced to make a confession and no duress can be exercised on him to obtain information out of him. In such cases, the privilege under Article 20(3) would be attracted. Scientific methods like Narco-analysis tests, polygraph analysis, etc which disrupt the Right to Privacy are considered to be violative of Article 20(3), and can only be conducted in extraordinary circumstances. However, with the advancement in medical sciences, the reliability of these tests has increased and in my opinion, these tests can prove to be effective tools for furnishing evidence for the speedy disposal of the cases



Protection of Life and Personal Liberty

Article 21. Protection of life and personal liberty.

No person shall be deprived of his life or personal liberty except according to procedure established by law.

The Right to Life and Personal Liberty is one of the fundamental rights which enables a person to live his life freely without any interference. Although, this right was not interpreted to the fullest but with judicial developments the ambit of this right has amplified and still on the path of intensification. Right to life and personal liberty is not only a fundamental right but a right by virtue of being human which enable human beings to get through a life which is different from mere animal existence. Article 21 of the Indian Constitution provides protection to the right to life and personal liberty.

Article 21 is the heart of the Indian Constitution. It is the most organic and progressive provision in our Indian Constitution. Fundamental rights are protected under the charter of rights in the Constitution of India. Article 21 talks about equality before the law, freedom of speech and expression, religious and cultural freedom, etc. Article 21 is valid for every citizen of India. It is also valid for foreign citizens.

This article has a wide scope and its interpretation has undergone many changes over the decades. The Supreme Court has interpreted the right to life as the right to a dignified life. This is the most important right in one sense, because, without this right to life, all other fundamental rights would be meaningless. It is this article that differentiates between a police state and a constitutional state.

(i) Right to life

Every citizen has the right to life, liberty, and security of person. The right to life is the fundamental right in the Indian constitution. Human rights are only attached to living beings. The right to life is the most valuable rights to citizens. There would have been no Fundamental Rights, worth mentioning if Article 21 had been interpreted in its original sense. This article examines the right to life which is interpreted by the Supreme Court of India in numerous cases.

Right to life is a fundamental aspect of life without which we cannot live as a human being and it includes all those aspects of life



which go to make a human being's life meaningful, complete, and worth living. It is only the article in the constitution that has received the widest possible interpretation. Under Article 21 of the Indian Constitution, the right to shelter, growth, and nourishment are mentioned. Because it is the bare necessity, minimum and basic requirements that are essential and unavoidable for a person for the right to life and other rights.

Case law: Kharak Singh vs State of Uttar Pradesh

Facts of the case:

By the terms of the life, the existence of animals is more important. The inhibition against deprivation extends to all those limbs and faculties by which life is enjoyed. The provision equally prohibits the mutilation of the body by amputation of an armored leg or pulling out of an eye, or the destruction of any other organ of the body through which the soul of our body communicates with the outer world.

The Judgment of the case:

The apex court held that the right to privacy is not a fundamental right in the Constitution of India

(ii) Right to personal liberty

"No person shall be deprived of personal liberty according to the procedure established by law".

The protection of our liberty is the mere responsibility of our law as our Constitution of India quoted. As we see the Supreme Court is the guardian of the Constitution of India. So according to this Supreme Court has the mere responsibility to protect and guarantee fundamental rights. As a citizen of India, we have all the fundamental rights which are established by law. So we can enforce it through the Supreme Court whenever our fundamental rights get violated. The Constitution of India is the most valuable law. Personal liberty is developed from the Magna Carta. Personal liberty is not subjected to imprisonment, arrest, or other physical coercion in any manner. Positivity is the basic element of personal liberty.

Case law: Maneka Gandhi vs Union of India

Facts of the case

In this case, Manenka Gandhi issued a passport for the foreign tour from the passport office. But the Regional Passport officer Delhi has informed the petitioner about the passport that this decision is



taken by the Government of India for the acceptance of passport. Because of this reason the petitioner had to surrender her passport within 7 days. After some time the Government rejected the passport saying it is against the interest of the general public. Then the petitioner filed a writ petition challenging the government for impounding the passport and declining from doing so.

The Judgment of the case:

In the case of Maneka Gandhi the Supreme Court gave a new direction to Article 21 and said that the right to live is not merely a physical right but includes the ambit of the right to live with human dignity.



Right to education

Article 21A. Right to education.

The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine.

The right to education was initially not included as a fundamental right in the constitution and was included as a Directive Principle under Article 45 which required the state to endeavor to provide, within a period of 10 years from the commencement of the constitution, for free and compulsory education for all children until they complete the age of 14 years. The directive in Article 45 was not confined merely to primary education; it extends to providing free education up to the age of 14 years, whatever the stage of education it came to. Therefore, education for children of this age group should have been free.

During this period the Supreme Court implied the 'Right to education' from other Articles of constitution such as Article 21, 24, 30(i), and 39(e) & (f). The Court emphasized that the solemn obligation placed on the state by Article 45 "to provide for free and compulsory education for children" can be discharged by it through government and aided school and that Article 45 does not require that obligation to be discharged at the expense of the minority communities.

This article was introduced in 2002 with the 86th amendment to the Constitution. It stipulates that states must offer free and compulsory education to all children between the ages of 6 and 14.

Landmark Cases and Judgements.

Case: - 1 Mohini Jain vs State of Karnataka.

In this case Miss Mohini Jain, a resident of Meerut applied for admission to the MBBS course in the session commencing in 1991 to a private medical college located in the state of Karnataka. The college management asked her to deposit a sum of Rs 60000/- as the tuition fee for the first year and also to show a bank guarantee of the amount equal to the fee for the remaining year. When Miss Jain's father intimated the management that the asked amount was beyond his reach, the management denied Ms. Jain's admission to the medical college. Miss Jain informed the court that the management demanded



an additional amount of Rs 450000/- however the management denied the allegation.

Issues.

- 'Right to education' guaranteed to the people of India under the constitution.
- Whether the charging of Capitation fees is violative of Article 14 and 21.

Judgment.

In this case the Supreme Court held that although the right to education as such has not been guaranteed as a fundamental right under the constitution, it becomes clear from the preamble of the constitution and its Directive Principles contained in part 4 that the framers of the constitution intended the state to provide education for its citizens. They also held that the charging of a capitation fee by the private educational institutions violated the right to education as implied from the right to life and human dignity and the right to equal protection of the law. In addition the court held that private institutions, acting as agent of the state have a duty to ensure equal access to and non discrimination the delivery of higher education.

Case -2: Unni Krishnan, J.P & Ors vs State of Andhra Pradesh

The case comes into subsistence through petitions filed by the private educational institutions to challenge the state laws. These state laws were enacted to regulate the capitation fee charges in the states of Tamil Nadu, Karnataka, Andhra Pradesh and Maharashtra. The Laws mentioned that any person involved in the management taking additional fees will be considered as capitation fees.

Issues.

Whether Right to education under Article 21 extends to technical education.

Judgement.

A constitutional bench held that education up to the age of 14 years to be a fundamental right..... "It would be therefore incumbent up on the state to provide facilities and opportunity as enjoined under Article 39 (e) and (f) of the constitution and to prevent exploitation of their childhood due to indigence and vagary".

Pitfalls in Article 21A



- The current fundamental right to education under Article 21A expands to children between 6 to 14 years, i.e., students between Classes I to VIII only.
- Exclusion of minority schools from the ambit of Article 21A



Right against Arrest and Preventive Detention:

Article 22. Protection against arrest and detention in certain cases.

(1) No person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest nor shall he be denied the right to consult, and to be defended by, a legal practitioner of his choice.

(2) Every person who is arrested and detained in custody shall be produced before the nearest magistrate within a period of twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the magistrate and no such person shall be detained in custody beyond the said period without the authority of a magistrate.

(3) Nothing in clauses (1) and (2) shall apply—

(a) to any person who for the time being is an enemy alien; or

(b) to any person who is arrested or detained under any law providing for preventive detention.

(4) No law providing for preventive detention shall authorise the detention of a person for a longer period than three months unless—

(a) an Advisory Board consisting of persons who are, or have been, or are qualified to be appointed as, Judges of a High Court has reported before the expiration of the said period of three months that there is in its opinion sufficient cause for such detention:

Provided that nothing in this sub-clause shall authorise the detention of any person beyond the maximum period prescribed by any law made by Parliament under sub-clause (b) of clause (7); or

(b) such person is detained in accordance with the provisions of any law made by Parliament under sub-clauses (a) and (b) of clause (7).

(5) When any person is detained in pursuance of an order made under any law providing for preventive detention, the authority making the order shall, as soon as may be, communicate to such person the grounds on which the order has been made and shall afford him the earliest opportunity of making a representation against the order.

(6) Nothing in clause (5) shall require the authority making any such order as is referred to in that clause to disclose facts which such authority considers to be against the public interest to disclose.

(7) Parliament may by law prescribe—

(a) the circumstances under which, and the class or classes of cases in which, a person may be detained for a period longer than three months



under any law providing for preventive detention without obtaining the opinion of an Advisory Board in accordance with the provisions of sub-clause (a) of clause (4)

(b) the maximum period for which any person may in any class or classes of cases be detained under any law providing for preventive detention; and

(c) the procedure to be followed by an Advisory Board in an inquiry under sub-clause (a) of clause (4).

Article 22 deals with the protection against arrest and detention in certain cases. This article is applicable to both citizens and non-citizens. This provision extends certain procedural safeguards for individuals in case of an arrest. It comes into the picture after a person has been arrested. It is not a fundamental right against detention and arrest. The idea behind this right is to prevent arbitrary arrests and detention. The Article 22 of the Indian Constitution provides safeguards against the misuse of police powers to make arrests and detentions.

Rights of arrested persons under ordinary laws

The article provides the following safeguards:

1. **Right to be informed of the grounds of arrest [22(1)]:** Any person who is in custody has to be informed as to why he has been arrested. Further, he cannot be denied the right to consult an advocate.
2. **Right to be defended by a lawyer of his own choice [22(1)]:** Article 22(1) also states that any person who is arrested has the right to consult at all times and be defended by a lawyer of his own choice. This right is expanded right from the moment of the person's arrest.
3. **Right to be produced before a Magistrate [22(2)]:** The arrested individual should be produced before a judicial magistrate within 24 hours of his arrest.
4. **No detention beyond 24 hours except by order of the Magistrate [22(2)]:** Article 22(2) also states that no person who is arrested should be detained for more than 24 hours without being produced before a magistrate or judicial authority and getting the detention authorized. The mentioned 24 hours exclude the time of travel from the place of arrest to the magistrate's court. This provision helps to keep a check on the investigation of the police



regarding the matter at hand. It protects the accused from being trapped into wrongful detention.

5. No individual who has been arrested can be kept in custody for more than the period determined by the judicial magistrate.

Exceptions

These safeguards are, however, not applicable to

- Enemy aliens
- People arrested under preventive detention laws

Detention:

The word detention simply means when any person is arrested or taken into custody. It can be legal as well as illegal. But when it comes to the security of the state and benefit of the society, there comes a new term which is Preventive Detention.

There are two types of detention: (i) Punitive and (ii) Preventive.

(i) **Punitive detention**, which means detention as a punishment for the criminal offence. It occurs after an offence is actually committed, or an attempt has been made towards the commission of that crime. Punitive detention is to punish a person for an offence committed by him after trial and conviction in a court.

(ii) **Preventive Detention**: On the other hand, preventive detention means a person's incarceration in advance to prevent any further possibility of the commitment of crime or its engagement. Preventive detention is, therefore, an action taken on the basis of apprehension that the person in question might do some wrongful act.

Preventive detention is detention without trial. The idea behind this is to prevent an individual from committing a crime. This means that persons can be detained on grounds of suspicion. The rights of people arrested in this manner are governed by preventive detention laws.

Preventive Detention:

Preventive detention means detention of a person without trial and conviction by a court, Its purpose is not to punish a person for a past offense but to prevent him from committing an offense in the near future. Preventive detention is only a precautionary measure and based on suspicion.

Under Section 151 of The Criminal Procedure Code, 1973 (CrPC) preventive detention is action taken on grounds of suspicion that some wrong actions may be done by the person concerned.



A police officer can arrest an individual without orders from a Magistrate and without any warrant if he gets any information that such an individual can commit any offense. Article 22 of the Indian Constitution provides protection against arrest and detention in certain cases.

Preventive detention also known as 'necessary evil' of the constitution as it can be steered in various directions and can be put to use in various scenarios, not all being just and reasonable. It is the most contentious part of the fundamental rights. The provision only mentions the rights people could exercise when they are detained but speaks nothing about any specific grounds or necessary provisions of detention.

(i) In the *A K Gopalan v. State of Madras* case of 1950, the Supreme Court, taking a narrow view of Article 21 and 22, refused to consider if the procedure established by law suffered from any deficiencies. It was of the belief that each article of the constitution was independent of each other. When the petitioner challenged the validity of his detention on the grounds that it was violating his rights under Article 19 and 21, the Supreme Court disregarded all the contentions considering that the detention could be justified merely on the ground that it was carried out according to the 'procedure established by law'. The Supreme Court, in this case, followed a restrictive interpretation of the expression 'personal liberty' and the term 'law', rejecting all principles of natural justice.

(ii) In *Maneka Gandhi v. Union Of India*, the court widened the scope of the expression 'personal liberty' considerably and interpreted it in its widest amplitude. The court observed that Article 21 does not exclude Article 19 hence any law depriving a person of personal liberty would have to stand the test of Article 21 and Article 19 simultaneously.

Difference between preventive detention and an arrest

An 'arrest' is done when a person is charged with a crime. An arrested person is produced before a magistrate within the next 24 hours.

In case of preventive detention, a person is detained as he/she is simply restricted from doing something that might deteriorate the law and order situation.

The Constitutional validity of Preventive Detention



Preventive Detention Act, 1950 reinforces human detention in situations where state conditions are involved, such as national defence, the preservation of peace and public order, international affairs, etc.

The validity of the Preventive Detention Act, 1950 was challenged before the court in the case of *AK Gopalan vs The State of Madras* where it was apparent that freedom of an individual does not qualify as provided under Article 21. The Supreme Court, having taken a limited view of Articles 21 and 22, refused to entertain whether there were any inadequacies in the procedure provided by law. It was of the faith that each constitutional article was autonomous of each other. When the petitioner questioned the validity of his detention on the grounds that it violated his rights pursuant to Articles 19 and 21 of the Indian Constitution, the Supreme Court disregarded all the arguments that the detention could be justified merely on the ground that it was conducted in accordance with the 'legally established procedure.'

In the case of *Maneka Gandhi v. Union Of India*, the court considerably broadened the range of the expression 'personal liberty' and interpreted it in its broadest extent. The court noted that Article 21 does not exclude Article 19 and that any statute depriving a citizen of personal liberty will have to concurrently stand up to the scrutiny of Article 21 and Article 19.

Justice Chandrachud in the case of *Justice K. S. Puttaswamy (Retd.) and Anr. v Union Of India And Ors.* established threefold conditions in the case of an infringement of personal liberty of individuals:

- (i) validity, which presupposes the presence of law;
- (ii) need, identified as a valid purpose of the State; and
- (iii) proportionality, which guarantees a fair relationship between the objects and the ways pursued to attain them.



CONSTITUTIONAL LAW

By

@The_Lawgical_World



SYLLABUS.....	3
Unit - IV.....	4
Right against Exploitation.....	5
Right to Freedom of Religion.....	9
Cultural and Educational Rights.....	19
Saving of Certain Laws.....	21
Right to Constitutional Remedies.....	27



SYLLABUS

Unit - I: Constitution-Meaning and Significance - Evolution of Modern Constitutions - Classification of Constitutions- Indian Constitution - Historical Perspectives - Government of India Act, 1919-Government of India Act, 1935-Drafting of Indian Constitution - Role of Drafting Committee of the Constituent Assembly.

Unit - II: Nature and Salient Features of Indian Constitution - Preamble to Indian Constitution - Union and its Territories-Citizenship - General Principles relating to Fundamental Rights(Art.13) - Definition of State.

Unit - III: Right to Equality(Art.14-18) – Freedoms and Restrictions under Art.19 - Protection against Ex-post facto law - Guarantee against Double Jeopardy - Privilege against Self-incrimination - Right to Life and Personal Liberty - Right to Education – Protection against Arrest and Preventive Detention.

Unit - IV: Rights against Exploitation - Right to Freedom of Religion - Cultural and Educational Rights - Right to Constitutional Remedies - Limitations on Fundamental Rights(Art.31-A,B and C).

Unit - V: Directive Principles of State Policy – Significance – Nature – Classification - Application and Judicial Interpretation - Relationship between Fundamental Rights and Directive Principles - Fundamental Duties – Significance - Judicial Interpretation.



Unit - IV

Rights against Exploitation - Right to Freedom of Religion - Cultural and Educational Rights - Right to Constitutional Remedies - Limitations on Fundamental Rights(Art.31-A,B and C).



Right against Exploitation

India is the largest democracy in the world today. This track of progress and development has a great struggle concealed behind it. India has been a victim of slavery since centuries altogether. It took several centuries to get India free from slavery and finally after the enactment of the Indian Penal Code, 1860, slavery was completely abolished in India. The framers of the Indian Constitution through Article 23 and 24 expunged such practices. The Constitution of India guarantees liberty and dignity to every individual, hence, leaving no scope for exploitation, slavery and ill-treatment.

Exploitation means the misuse of services rendered by others with the help of force. The practice of exploitation violates the basic concept of the Indian Constitution, the Preamble and opposes the Directive Principle of State Policy given under Article 39 of the Indian Constitution which stimulates economic equality among the individuals.

The Right against Exploitation is enshrined in Articles 23 and 24 of the Indian Constitution. These are important Fundamental Rights that guarantee every citizen protection from any kind of forced labour. They include:

- 1) Prohibition of traffic in human beings and forced labour; and
- 2) Prohibition of employment of children in factories, etc.

1) Prohibition of traffic in human beings and forced labour

Article 23. Prohibition of traffic in human beings and forced labour.

(1) Traffic in human beings and begar and other similar forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law.

(2) Nothing in this article shall prevent the State from imposing compulsory service for public purposes, and in imposing such service the State shall not make any discrimination on grounds only of religion, race, caste or class or any of them.

Article 23 of the Indian Constitution expressly prohibits human trafficking, forced labour and other similar activities. It also states that any violation of this provision will be considered as an offence and the person acting in contravention of the law will be penalized in accordance with the law.



Features of Article 23

It has certain features which every individual should be aware of –

- Right against exploitation is prescribed as a fundamental right of the individuals under Article 23 of the Indian Constitution.
- It protects both the citizens and the non-citizens against exploitation.
- It protects individuals against the State as well as private citizens.
- Article 35 authorises Parliament to make laws for punishing the acts which are prohibited under Article 23.

This article imposes a positive obligation on the State to abolish immoral practices of exploitation like human trafficking and other forms of forced labour.

Practices prohibited by Article 23

Article 23 explicitly prohibits the following discussed practices:

- **Begar:** This is a form of forced labour which means involuntary work without any remuneration. In other words, it can be said that a person is compelled to work against his will without being paid for it.
- **Bonded Labour/ Debt Bondage:** Article 23 prohibits bonded labour as it is a form of forced labour as per this article. This is a practice under which a person is forced to work to pay off his debt. The money they get is very little and the work they do gets doubled. Often these debts get passed over to the next generations. Hence, it is known as a form of forced labour.
- **Human trafficking:** It means selling and buying of a human being like goods and includes immoral trafficking of women and children. Although, slavery is not expressly mentioned under Article 23 but it is included within the meaning of 'traffic in human beings'. In pursuance of Article 23, Parliament has passed the Suppression of Immoral Traffic in Women and Girls Act, 1956, for punishing human trafficking.
- **Other forms of forced labour:** Any other practice which comes under Article 23 is also prohibited by this Article.

An Exception to Article 23

Under clause (2) of Article 23, the State is allowed to impose compulsory services for public purposes like national defence, removal of illiteracy and other public utility services (electricity, water, air and rail services, postal services, etc.) provided that in making any such service compulsory for public purposes, the State, however, cannot make discrimination on the basis of religion, race, caste or class or any of them.



2) Prohibition of employment of children in factories, etc.

Article 24. Prohibition of employment of children in factories, etc.

No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment.

Article 24 of the Indian Constitution prohibits the employment of children below the age of 14 years in factories, mines or any other hazardous employment. This Article is for the welfare of the children and ensures a safe and healthy life of children. Article 39 of the Indian Constitution imposes an obligation on the State to ensure the health and strength of the workers, men and women and children are not abused and forced by economic necessity to get engaged in hazardous activities which do not suit their age or strength.

Children are the future of a nation. It is the duty of every nation to make sure that the future is bright by providing good food, education and health to the children of the country so that they can become strong enough to do something good in their life which will ultimately contribute to the progress and development of the nation. That is why Article 24 is read with Art. 39(e) and Art. 39(f).

However, this Article does not prohibit the employment of children in innocent and harmless jobs or work like working in agricultural fields, grocery shop, etc.

Features of Article 24

- This Article prohibits the employment of children below 14 years of age in hazardous work.
- This Article is read with Article 39(e) and (f).
- It ensures safety and healthy life of children.
- It imposes a duty on the State to ensure that children are not abused and forced to work in harmful places because of financial problems through Article 39.
- It doesn't prohibit the employment of children in harmless work.

Case Law

In the case of *M. C. Mehta v. State of Tamil Nadu*[5], a public lawyer M. C. Mehta filed a PIL under Article 32 and informed the court about how the children are engaged in Sivakasi Cracker Factories. Although the Constitution prohibits exploitation and employment of



children under Article 24, it also directs the State to provide free and compulsory education to them under Article 41 and still there exists a large number of children working in hazardous places. Despite the Constitutional provisions and various enactments passed by many State Governments prohibiting child labour, the issue of child labour has remained unsolved and is becoming a menace to society day by day. It was held by Hansaria J. that-

"The children below 14 years cannot be employed in hazardous activities and state must lay down certain guidelines in order to prevent social, economic and humanitarian rights of such children working illegally in public and private sector. Also, it is violative of Article 24 and it is the duty of the state to ensure free and compulsory education to them. It was further directed to establish Child Labour Rehabilitation Welfare Fund and to pay compensation of Rs. 20,000 to each child."



Right to Freedom of Religion

Religion is a matter of belief or faith. The constitution of India recognizes the fact, how important religion is in the life of people of India and hence, provides for the right to freedom of religion under Articles 25 to Article 28. The Constitution of India envisages a secular model and provides that every person has the right and freedom to choose and practice his or her religion.

In a number of cases, the Apex Court has held that secularism is the basic structure of the Constitution, the most important being the Kesavananda Bharati case. People in India mainly practice Islam, Hinduism, Jainism, Buddhism, Sikhism and, Christianity. In India, there are religion-specific laws and Goa is the only state to have a Uniform Civil Code known as the Goa Civil Code. The Constitution supports religious harmony which means the people of India show love and affection to different religions of the country.

Secularism

Secularism means developing, understanding and respect for different religions. It is believed that the word 'Secularism' has its origin in late medieval Europe. In 1948, during the constituent assembly debate, a demand was made by the KT Shah to include the word 'Secular' in the Preamble to the Constitution. The members of the assembly though agreed to the secular nature of the constitution but it was not incorporated in the Preamble. Later, in 1976 the Indira Gandhi government enacted the 42nd Amendment Act and the word 'Secular' was added to the Preamble. The 42nd Amendment Act also known as the 'Mini Constitution', is the most comprehensive amendment to the Constitution.

In the much-disputed Ayodhya case, it was held by the apex court that the constitution postulates equality of all faiths. Through Tolerance and mutual co-existence, the secular commitment of our country and its people can be nourished.

A secular state is said to be the one where there is no official religion followed. To understand it more clearly, secularism is defined in the case of S.R. Bommai v. Union of India^[2], where it was held that "Secularism is the basic feature of the Indian Constitution." Religion is a matter of individual faith and cannot be mixed with secular activities.

Concept of freedom of religion



Every citizen is entitled with this right and liberty to preach, practice and propagate the religion of his choice. An opportunity is also provided by this right to spread it among everyone without any fear of government intervention. But also, it is expected by the state to practice it amicably within the jurisdiction of the country. India is a land of diversity being in terms of race, religion, creed, caste and community. When it comes to exercising one's religious beliefs, India is neutral, unbiased and impartial. It is ensured by our Indian Constitution that no citizen is deprived of his right to practice and profess his or her religion.

Constitutional Provisions relating to Right of Religion

- Article 25: Freedom of conscience and free profession, practice and propagation of religion.
- Article 26: Freedom to manage religious affairs.
- Article 27: Freedom as to payment of taxes for promotion of any particular religion.
- Article 28: Freedom as to attendance at religious instruction or religious worship in certain educational institutions.

Article 25. Freedom of conscience and free profession, practice and propagation of religion.

(1) Subject to public order, morality and health and to the other provisions of this Part, all persons are equally entitled to freedom of conscience and the right freely to profess, practise and propagate religion.

(2) Nothing in this article shall affect the operation of any existing law or prevent the State from making any law—

(a) regulating or restricting any economic, financial, political or other secular activity which may be associated with religious practice;

(b) providing for social welfare and reform or the throwing open of Hindu religious institutions of a public character to all classes and sections of Hindus.

Explanation I.—The wearing and carrying of kirpans shall be deemed to be included in the profession of the Sikh religion.

Explanation II.—In sub-clause (b) of clause (2), the reference to Hindus shall be construed as including a reference to persons professing the Sikh, Jaina or Buddhist religion, and the reference to Hindu religious institutions shall be construed accordingly.



Article 25 of the Constitution guarantees freedom of religion to all persons in India. It provides that all persons in India, subject to public order, morality, health, and other provisions:

- Are equally entitled to freedom of conscience, and
- Have the right to freely profess, practice and propagate religion.
- It further provides that this article shall not affect any existing law and shall not prevent the state from making any law relating to:

Regulation or restriction of any economic, financial, political, or any secular activity associated with religious practice.

- Providing social welfare and reform.
- Opening of Hindu religious institutions of public character for all the classes and sections of the Hindus.

Doctrine or Belief

In *Hasan Ali v. Mansoor Ali* the Bombay High Court held that Articles 25 and Article 26 not only prevents doctrines or beliefs of religion but also the acts done in pursuance of religion. It thus guarantees ceremonies, modes of worship, rituals, observances, etc which are an integral part of religion. What is the essential or integral part of a religion has to be determined in the light of the doctrines and practices that are regarded by the community as a part of their religion and also must be included in them.

The Supreme Court in *Commissioner, Hindu Religious Endowments, Madras v. Sri Lakshmindra Thirtha Swamiar of Sri Shirur Mutt* ruled that there is no doubt that religion finds its basis in the system of doctrines regarded by those who profess that religion, but it will not be correct to say religion is nothing but a doctrine or belief.

The National Anthem Case

Bijoe Emmanuel v. State of Kerala, (Popularly known as the national anthem case.)

The facts of this case were that three children belonging to a sect (Jehovah's witness) worshipped only Jehovah (the creator) and refused to sing the national anthem "Jana Gana Mana". According to these, children singing Jana Gana Mana was against the tenets of their religious faith which did not allow them to sing the national anthem. These children stood up respectfully in silence daily for the national anthem but refused to sing because of their honest belief. A



Commission was appointed to enquire about the matter. In the report, the Commission stated that these children were 'law-abiding' and did not show any disrespect. However, the headmistress under the instruction of the Dy. Inspector of Schools expelled the students.

The Supreme Court held that the action of the headmistress of expelling the children from school for not singing the national anthem was violative of their freedom of religion. The fundamental rights guaranteed under Article 19(1)(a) and Article 25(1) has been infringed. It further held that there is no provision of law which compels or obligates anyone to sing the national anthem, it is also not disrespectful if a person respectfully stands but does not sing the national anthem.

In another case of the Supreme Court, *Shyam Narayan Chouksey v. Union of India* It was averred in the petition filed before the Supreme Court that every person must show respect to the national anthem. The Supreme Court held that every citizen or persons are bound to show respect to the National Anthem of India, whenever played or sung on specific occasions the only exemption is granted to disabled people. It further held that playing of the national anthem in cinema halls is not mandatory but optional and directory.

Article 51A also recognizes the duty of every citizen to show respect to our national anthem. It states that every citizen of India is duty-bound to respect its ideals, institutions, National flag, National anthem, etc.

Restrictions on Freedom of Religion

The Supreme Court in *In re, Noise Pollution case*, has given certain directions to be followed to control noise pollution in the name of religion:

- **Firecrackers:** A complete ban on sound-emitting firecrackers from 10 pm to 6 am.
- **Loudspeakers:** Restriction on the beating of drums, tom-tom, blowing of trumpets, or any use of any sound amplifier between 10 pm to 6 am except in public emergencies.
- **Generally:** A provision shall be made by the State to confiscate and seize loudspeakers and such other sound amplifiers or equipment that create noise beyond the limit prescribed.

Article 26. Freedom to manage religious affairs.—Subject to public order, morality and health, every religious denomination or any section



thereof shall have the right—

- (a) to establish and maintain institutions for religious and charitable purposes;
- (b) to manage its own affairs in matters of religion;
- (c) to own and acquire movable and immovable property; and
- (d) to administer such property in accordance with law.

Article 26 of the Indian Constitution states that every individual enjoys the Freedom required to manage any religious affairs, depending on public order, health and morality.

Religious denomination

The word 'religious denomination' is not defined in the constitution. The word 'denomination' came to be considered by the Supreme Court in the case of Commissioner, Hindu Religious endowment Madras v. Shri Laxmindra Thirtha Swamiar of Shri Shirur Mutt. In this case, the meaning of 'Denomination' was culled out from the Oxford dictionary, "A collection of individuals classed together under the same name, a religious sect or body having a common faith and organization designated by a distinctive name".

Case laws:

Some of the case laws covered under this article are:

- (i) Ramesh v. Union of India
- (ii) N. Aditya v. Travancore Devaswom Board
- (iii) Bhuri v. State of J&K

Telecast of serial: Ramesh v. Union of India, (1988) 1 SCC 668

The facts of this case were: The serial 'Tamas' was based upon a book that already screened four episodes that portray the communal violence between Hindu-Muslim and Sikh-Muslim and the tension, killing and looting that took place. A writ petition was filed under Article 32 of the Constitution for the issuance of the writ of prohibition or other appropriate writ or order restraining the further screening of the serial 'Tamas' and enforcing the fundamental rights of the petitioner under Article 21 and Article 25 and to declare the screening of Tamas as violative of Section 5B of the Cinematograph Act, 1952.

The Court while dismissing the petition held that there is no violation of Article 21 and 25 and the respondent has not acted improperly. The author tries to bring attention to the past history of our



country and to emphasize the wish of the people to live in harmony and rise above religious barriers. It further held that when the serial is viewed in its entirety it creates an impression of peace and co-existence and that the people are not likely to be carried away by the violence shown in it.

Acquisition of place of worship by State

The Supreme Court in the case of *M Ismail Faruqi v. Union of India* held that the mosque is not an essential part of Islam. Namaz (Prayer) can be offered by the Muslims anywhere, in the open as well and it is not necessary to be offered only in a mosque.

In *M Siddiq (D) Thr. Lrs v. Mahant Suresh Das* Supreme Court held that the State has the sovereign or prerogative power to acquire the property. The state also has the power to acquire places of worship such as mosque, church, temple, etc and the acquisition of places of worship per se is not violative of Articles 25 and 26. However, the acquisition of place of worship which is significant and essential for the religion and if the extinction of such place breaches their (persons belonging to that religion) right to practice religion then the acquisition of such places cannot be permitted.

Shifting of property connected with religion

In the case of *Gulam Abbas v. State of UP*, there was a dispute between the Shias and Sunnis regarding the performing of the religious rites by the Shias on a certain plot of land of mohalla Doshipura in Varanasi. In order to avoid clashes between these communities and to find a permanent solution to this problem, the Supreme Court appointed a 7 member committee with Divisional Commission as the Chairman and 3 members of the Shia sect and 3 members of the Sunni sect. The committee made a recommendation of shifting of the graves of Shias to separate the places of worship of the Shia and Sunni sect. The Sunni sect challenged these recommendations as violative of their fundamental right of freedom of religion under Article 25 and 26. The Court rejected these contentions.

The Supreme Court held that the fundamental right guaranteed under Article 25 and 26 is not absolute and is subject to public order and if the court is of the opinion that shifting of graves is in the interest of the public then the consent of the parties is irrelevant even though the Muslim personal law is against shifting of graves.



Noise pollution in the name of religion

The Supreme Court in *Church of God (Full Gospel) v. K.K.R. Majestic Colony Welfare Association* held that nowhere in any religion, it is mentioned that prayers should be performed through the beating of drums or through voice amplifiers which disturbs the peace and tranquility of others. If there is any such practice, it should be done without adversely affecting the rights of others as well as that of not being disturbed in their activities.

In the case of *Maulana Mufti v. State of West Bengal* restrictions were placed on the use of microphones before 7 am. It was held by the Calcutta High Court that Azan is an integral and necessary part of the religion but certainly not the use of microphones. It violates the basic human and fundamental right of the citizens to sleep and leisure.

Right to establish and maintain-institutions for religious and charitable purposes: Azeez Basha v. Union of India

In this case, certain amendments were made in the year 1951 and 1965 to the Aligarh Muslim University Act, 1920. These amendments were challenged by the petitioner on the ground that they infringe on the fundamental right under Article 30 to establish and administer educational institutions; and rights of the Muslim minority under Article 25, 26, 29 were violated.

It was held by the Supreme Court that prior to 1920 there was nothing that could prevent Muslim minorities from establishing universities. The Aligarh Muslim University was established under the legislation (Aligarh Muslim University Act, 1920) and therefore cannot claim that the university was established by the Muslim Community as it was brought into existence by the central legislation and not by the Muslim minority.

Prevention of exCommunication

Ex-communication means the exclusion or expulsion of a person from a community or group of which he or she was a member.

In *Saifuddin Saheb v. State of Bombay* AIR 1962 SC 853, the State of Bombay passed the Bombay Prevention of Excommunication Act, 1949. Section 3 of this Act prevented the excommunication of the members of any community. The petitioner (religious head of the Dawoodi-Bohra Community) challenged the Act on the ground of violation of their fundamental rights guaranteed under Article 25 and 26.



The Court observed that the power of Excommunication by the head formed the essential affairs of the community and the Act clearly violated the fundamental right under Article 25(1) of the Constitution. The Supreme Court held that the Act was violative of Articles 25 and 26 and was therefore void.

Taking over management of secular activities of the temple: Bira Kishore Dev v. State of Orissa, AIR 1964 SC 1501

In this case, The validity of the Shri Jagannath Temple Act, 1954 was challenged on the ground that the Act is discriminatory in nature and violates Article 26 (d) of the Constitution. It was contended by the petitioner (Raja of Puri) that the temple was his private property and he had the sole right over management as well as superintendence of the temple. The Act took away the sole management of the temple from the appellant and vested it with the Committee. Dismissing the appeal the Supreme Court held that there was no violation of the fundamental right of freedom of religion of the petitioner and the Act only dealt with the secular management of the institution.

Breaking of coconuts and performing Pooja, chanting Mantras and Sutras in State functions: Atheist Society of India v. Government of A.P., AIR 1992 AP 310

The petitioner (Atheist Society of India), in this case, prayed for the issuance of writ of Mandamus to direct the Government of Andhra Pradesh to give instruction to all the concerned departments to forbid the performance of religious practices such as breaking of coconuts, chanting mantras, etc at the State function on the ground that the performing of these practices is against secular policy of the constitution. The petitioner's prayers were rejected by the court on the grounds that it infringes upon the right to religion and if permitted it will be against the principle of secularism, which is the basic structure of our Constitution. It would lead to depriving of the right to freedom of thought, faith, worship.

Limitation of the Right

The right to religion under Article 26 is subject to certain limitations and not absolute and unfettered. If any religious practice is in contravention to any public order, morality or health then such religious practice cannot claim the protection of the state.



Article 27. Freedom as to payment of taxes for promotion of any particular religion.

No person shall be compelled to pay any taxes, the proceeds of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination.

Article 27 of the Constitution prevents a person from being compelled to pay any taxes which are meant for the payment of the costs incurred for the promotion or maintenance of any religion or religious denomination.

In the case of Commissioner, Hindu Religious Endowments, Madras v. Sri Lakshmindra Thirtha Swamiar of Sri Shirur Mutt, the Madras legislature enacted the Madras Hindu Religious and Charitable Endowment Act, 1951 and contributions were levied under the Act. It was contended by the petitioner that the contributions levied are taxes and not a fee and the state of madras is not competent to enact such a provision. It was held by the Supreme Court that though the contribution levied was tax but the object of it was for the proper administration of the religious institution.

Article 28. Freedom as to attendance at religious instruction or religious worship in certain educational institutions.

(1) No religious instruction shall be provided in any educational institution wholly maintained out of State funds.

(2) Nothing in clause (1) shall apply to an educational institution which is administered by the State but has been established under any endowment or trust which requires that religious instruction shall be imparted in such institution.

(3) No person attending any educational institution recognised by the State or receiving aid out of State funds shall be required to take part in any religious instruction that may be imparted in such institution or to attend any religious worship that may be conducted in such institution or in any premises attached thereto unless such person or, if such person is a minor, his guardian has given his consent thereto.

Article 28 prohibits:



- Providing religious instructions in any educational institutions that are maintained wholly out of the state funds.
- The above shall not apply to those educational institutions administered by the states but established under endowment or trust requiring religious instruction to be imparted in such institution.
- Any person attending state recognized or state-funded educational institution is not required to take part in religious instruction or attend any workshop conducted in such an institution or premises of such educational institution.

Teaching of Guru-Nanak: D.A.V. College v. State of Punjab, (1971) 2 SCC 368

In this case, Section 4 of the Guru Nanak University (Amritsar) Act, 1969 which provided that the state shall make provisions for the study of life and teachings of Guru Nanak Devji was questioned as being violative of Article 28 of the Constitution. The question that arose was that the Guru Nanak University is wholly maintained out of state funds and Section 4 infringes Article 28. The court rejecting this held that Section 4 provides for the academic study of the life and teachings of Guru Nanak and this cannot be considered as religious instruction.

Education for value development based on all religions: Aruna Roy v. Union of India, (2002) 7 SCC 368.

In this case, a PIL was filed under Article 32 wherein it was contended by the petitioner that the National Curriculum Framework for School Education (NCFSE) which was published by the National Council of Educational Research and Training is violative of the provisions of the constitution. It was also contended that it was anti-secular and was also without the consultation of the Central Advisory Board of Education and hence it should be set aside. NCFSE provided education for value development relating to basic human values, social justice, non-violence, self-discipline, compassion, etc. The court ruled that there is no violation of Article 28 and there is also no prohibition to study religious philosophy for having value-based life in a society.

Conclusion

India is the most diverse country with respect to religion. Being a secular country it does not have its own religion and every citizen has the right to choose, practice, propagate and even change his or her religion. However, these rights are not absolute but subject to certain restrictions



provided by the constitution. No person in the name of religion can do any act that is opposed to the public policy or creating any kind of disturbances or intolerance among the people of India.

Cultural and Educational Rights

Cultural and Educational Rights safeguards the rights of linguistic, cultural, and religious minorities. Preserving culture and heritage is vital in this scenario. To ensure that education is provided for everyone without any kind of discrimination, Education Rights was formulated.

Fundamental Rights guarantee basic rights to the citizens of India. There are six fundamental rights enshrined in the Constitution of India, and Articles 29 and 30 deal with the cultural and educational rights of Indian citizens.

1. This fundamental right intends to preserve the culture of all minority groups in India.
2. Indian society is a composite heterogeneous one and its diversity is one of its strengths.
3. The Constitution guarantees these rights to minorities so that the diversity of this country is preserved and provides avenues for all groups including marginalized ones to protect, preserve, and propagate their culture.

The Cultural and Educational Rights are provided under Article 29 and Article 30. These articles uphold the individual's right to protect their distinct language, script, and culture. It also provides protection against state-sponsored discrimination on the ground of religion, race, caste, and language.

Article 29. Protection of interests of minorities.

- (1) Any section of the citizens residing in the territory of India or any part thereof having a distinct language, script or culture of its own shall have the right to conserve the same.
- (2) No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them.

According to this Article, any minority community having a distinct language, script or culture of its own shall have the right to preserve the same. The minority people can take admission into any



educational institution maintained by the government or receiving funds from government, on grounds only of religion, race, caste, language or any of them.

Both Article 29 and Articles 30 guarantee certain right to the minorities. Article 29 protects the interests of the minorities by making a provision that any citizen / section of citizens having a distinct language, script or culture have the right to conserve the same. Article 29 mandates that no discrimination would be done on the ground of religion, race, caste, language or any of them.

Article 30. Right of minorities to establish and administer educational institutions.

(1) All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.

(1A) In making any law providing for the compulsory acquisition of any property of an educational institution established and administered by a minority, referred to in clause (1), the State shall ensure that the amount fixed by or determined under such law for the acquisition of such property is such as would not restrict or abrogate the right guaranteed under that clause.

(2) The State shall not, in granting aid to educational institutions, discriminate against any educational institution on the ground that it is under the management of a minority, whether based on religion or language.

Article 30 mandates that all minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice. Article 30 is called a Charter of Education Rights. Madaras are administrated by the Article 30.

Article 30 provides an absolute right to the minorities that they can establish their own linguistic and religious institutions and at the same time can also claim for grant-in-aid without any discrimination.

Issues Related to Minority Institutions: Bramchari Sidheshwar Bhai v. State of West Bengal

In this case, The Ram Krishna Mission wanted to declare itself as a non- Hindu minority where its members were to be treated as Hindus in the matter of marriage and inheritance but in the religious sense to be recognized as non-Hindus. This would certainly mean that they are



given the status of legal Hindus but religious non- Hindus, similar to Sikhs and Buddhists. To this, the Supreme Court ruled that it cannot be claimed by the followers of Ram Krishna that they belong to the minority of the Ram Krishna Religion. Ram Krishna Religion is not distinct and separate from the Hindu religion. It is not a minority based upon religion. Hence, it cannot claim the fundamental right under Article 30 (1) to establish and administer institutions of education by Ram Krishna Mission.

In context with the Kerala Education Bill 1957, The supreme court of India said that:

Article 30 does not say that minorities based on religion should establish the educational institutions for teaching their language / religion only. The minorities would desire that their children be eligible for higher university education, the education institutions of minorities would also include the general secular education.

Article 31. Compulsory acquisition of property.

Omitted by the Constitution (Forty-fourth Amendment) Act, 1978, s. 6 (w.e.f. 20-6-1979).

Article 31: Repealed

Article 19(1)(f) - Right to acquire, hold and dispose of property and Article 31 were repealed by the Constitution 44th Amendment Act 1978. A new part was inserted in Part XII of the Constitution and right to property has been transferred as Article 300 A.

Saving of Certain Laws

During pre-independence time, the zamindari system was prevalent. This system made the zamindars very wealthy with a large number of landholdings whereas, the peasants were left in financially deteriorating conditions. Congress in power, decided to abolish it by taking the property from the zamindars and giving it to poor people but the dilemma before them was to provide compensation because of the arbitrariness of the term "compensation" given in Article 31(2)(as mentioned before in this article).



Thereafter, this motion was taken back by the government and Article 31A walked in the Indian constitution by the First Amendment, in the year 1951.

This law in its 5 clauses states that any law,

- made regarding the acquisition of any estate or right by the government or management of any property, or
 - creates a merger of any two or more companies
 - receives the benefit of any agreement or lease or license;
- will not be void or null until it has received the assent of the President.

Article 31A. Saving of laws providing for acquisition of estates, etc.—

(1) Notwithstanding anything contained in article 13, no law providing for—

(a) the acquisition by the State of any estate or of any rights therein or the extinguishment or modification of any such rights, or

(b) the taking over of the management of any property by the State for a limited period either in the public interest or in order to secure the proper management of the property, or

(c) the amalgamation of two or more corporations either in the public interest or in order to secure the proper management of any of the corporations, or

(d) the extinguishment or modification of any rights of managing agents, secretaries and treasurers, managing directors, directors or managers of corporations, or of any voting rights of shareholders thereof, or

(e) the extinguishment or modification of any rights accruing by virtue of any agreement, lease or licence for the purpose of searching for, or winning, any mineral or mineral oil, or the premature termination or cancellation of any such agreement, lease or licence, shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by article 14 or article 19:

Provided that where such law is a law made by the Legislature of a State, the provisions of this article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent:

Provided further that where any law makes any provision for the acquisition by the State of any estate and where any land comprised therein is held by a person under his personal cultivation, it shall not be



lawful for the State to acquire any portion of such land as is within the ceiling limit applicable to him under any law for the time being in force or any building or structure standing thereon or appurtenant thereto, unless the law relating to the acquisition of such land, building or structure, provides for payment of compensation at a rate which shall not be less than the market value thereof.

(2) In this article,—

(a) the expression "estate" shall, in relation to any local area, have the same meaning as that expression or its local equivalent has in the existing law relating to land tenures in force in that area and shall also include—

(i) any jagir, inam or muafi or other similar grant and in the States of Tamil Nadu and Kerala, any janmam right;

(ii) any land held under ryotwari settlement;

(iii) any land held or let for purposes of agriculture or for purposes ancillary thereto, including waste land, forest land, land for pasture or sites of buildings and other structures occupied by cultivators of land, agricultural labourers and village artisans;

(b) the expression "rights", in relation to an estate, shall include any rights vesting in a proprietor, sub-proprietor, under-proprietor, tenure-holder, raiyat, under-raiyat]or other intermediary and any rights or privileges in respect of land revenue.

Article 31 of Indian Constitution gave the people of India the right to hold and dispose of their property as they see fit. By the 1st Constitutional Amendment of 1951, the Parliament added Article 31a to the Indian Constitution.

According to this, the government can acquire the property of the people and by doing so, the fundamental rights mentioned in Article 14 and 19 of Indian Constitution shall not be violated.

In other words, Article 31a of Indian Constitution was immune to Article 14 and 19 of Indian Constitution that provide for right to equality and the right to freedom respectively.

After the introduction of Article 31A in the Constitution, many problems arising out of the violation of fundamental rights contained in Part III of the Constitution were eradicated.

1. It helped in the abolition of the Zamindari system as the government took the land from the Zamindars and used it for public welfare by either redistribution or agriculture.



2. The government took control of different private companies in order to use them for enhanced growth. However, this could be done for a fixed amount of time after which, the control had to be returned.
3. The government redistributed the mining rights from mine lords.
4. The government took control of the production and distribution of various other resources like oil.

Article 31B. Validation of certain Acts and Regulations.

Without prejudice to the generality of the provisions contained in article 31A, none of the Acts and Regulations specified in the Ninth Schedule nor any of the provisions thereof shall be deemed to be void, or ever to have become void, on the ground that such Act, Regulation or provision is inconsistent with, or takes away or abridges any of the rights conferred by, any provisions of this Part, and notwithstanding any judgment, decree or order of any court or Tribunal to the contrary, each of the said Acts and Regulations shall, subject to the power of any competent Legislature to repeal or amend it, continue in force.

This article is also the result of the 1st Amendment Act of 1951. It is in reference with the acts and laws mentioned in the IX Schedule of the Indian Constitution. The IX Schedule of Indian Constitution is a list of acts and laws which cannot be challenged in the court of law. In other words, any such acts mentioned in this schedule are out of the reach of the Indian judiciary.

Article 31b of Indian Constitution states that the provisions mentioned in Article 31a are immune from Indian judiciary and cannot be nullified on the basis that they might violate the fundamental rights mentioned in Articles 14, 19 and 31 of Indian Constitution.

This was challenged in the Waman Rao case. On 24th April 1973, the Supreme Court ruled that the acts and laws mentioned in the IX schedule till date, shall not be changed or challenged, but any attempt to amend or add more acts to that schedule, will suffer close inspection and examination by the judiciary system. This was done to protect the 'Basic structure' of the Indian Constitution.

The acts already mentioned in the 9th Schedule of Indian Constitution were exempted because of the complexity.

Article 31C. Saving of laws giving effect to certain directive principles.



Notwithstanding anything contained in article 13, no law giving effect to the policy of the State towards securing all or any of the principles laid down in Part IV shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by article 14 or article 19; and no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy:

Provided that where such law is made by the Legislature of a State, the provisions of this article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent.

Article 31c of Indian Constitution was included through the 25th amendment act of 1971 through which the government tried to give primacy to some Directive Principles of State Policy over the Fundamental Rights.

Article 31c of Indian Constitution aims for two main objectives –

1. Any law made in order to give effect to Article 39b and Article 39c of Indian Constitution will avoid the scrutiny of courts even if it violates Article 14 and Article 19 of the Indian Constitution.
2. Courts will not have the jurisdiction to decide whether the law enabled really gives effect to the principles mentioned in Article 39c and 39b of Indian Constitution.

Under this article, no law which gives effect to the provisions contained in Article 39B and Article 39C can be challenged under Article 14, Article 19, or Article 31.

Kesavananda Bharati v. the State of Kerala

This famous case decided by a nine-judge bench is one of the most praised landmark judgments. It laid down the doctrine of the basic structure, which stated that any law made should not be violative of the fundamental rights and if amendments are to be made then it should be made as such that they do not destroy the basic structure.

Fundamental rights are of utmost importance and they should be preserved with all due respect by the state and provisions should be made to protect them and abrogate them. With this thought, this case raised questions on the constitutionality of the 25th amendment and therefore, declared that the basic structure of the fundamental rights should not be violated by the state or legislature under the provisions of Article 368 and the second part of the Article gave the jurisdiction of the



court, a boot. Hence, the question on the validity of Article 31C ended with its demise, thereafter.

Article 31D. Saving of laws in respect of anti-national activities.–

Omitted by the Constitution (Forty-third Amendment) Act, 1977, s. 2 (w.e.f. 13-4-1978).



Right to Constitutional Remedies

Part III of the Constitution provides for legal remedies for the protection of these rights against their violation by the State or other institutions/individuals. It entitles the citizens of India to move the Supreme Court or High Courts for the enforcement of these rights. The State is forbidden from making any law that may conflict with the Fundamental Rights.

Fundamental rights are the rights that grant individuals equality in every aspect irrespective of race, colour, caste, religion, birthplace, or gender. These rights are mentioned under Articles 12 to 35 of the Indian Constitution. There are pre-defined punishments in case of violation of these rights upon the discretion of the judiciary.

Right to constitutional remedy is the part of fundamental rights so it is the responsibility of the Supreme Court to exercise the Judicial Review through writs or orders for the enforcement of fundamental rights. The Supreme court has made the judicial process as a bulwark of personal liberties.

That is, there is a right in India which states that a person can move to Supreme court if he/she wants to get their fundamental rights protected. This right comes under article 32 for Supreme court and article 226 for the high court. It is known as the right to constitutional remedies. In this right, the Supreme court, as well as high court, is given the power to instill the fundamental rights. Furthermore, the power can be issued by local courts also to extend the rights. Although, there is one act which comes under the military law known as the court-martial which is exempted from this right.

Article 32. Remedies for enforcement of rights conferred by this Part.

(1) The right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part is guaranteed.

(2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part.

(3) Without prejudice to the powers conferred on the Supreme Court by clauses (1) and (2), Parliament may by law empower any other court to



exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).

(4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.

"The Article 32 of the Constitution is the soul of the constitution of India and it is also considered as the heart of the Indian Constitution because in case of Right to life or any right which belongs to human beings we only refer Article 32 of the Indian Constitution".

Article 32 makes the Supreme Court the safeguard and underwriter of the major rights. Further, the capacity to issue writs goes under the original jurisdiction of the Apex Court. This implies an individual may approach SC straightforwardly for a cure as opposed to by appeal.

Article 32 can be used only to get a remedy for fundamental rights enshrined in Article 12-35. It isn't there for some other legal right for which diverse laws are accessible.

One can not approach supreme court for remedy under article 32 on violation of his / her right to property because it is not a fundamental right.

Writ

A writ is couched in the form of a letter or is percept in writing. It is running in the name of the king, or state, or president, issued from the justice court. So, this is sealed by its seal and addressed to an officer of the law or directly to a person who is commanded for action by the court.

Thus, this is done either during the commencement of the suit or is incidental to its progress. It requires the performance of the mentioned actor by giving the command to have it done. Writs are written orders issued by the Supreme Court of India to provide constitutional remedies to protect the fundamental rights of citizens from a violation.

Article 32 also empowers Parliament to authorize any other court to issue these writs. Before 1950, only the High Courts of Calcutta, Bombay, and Madras had the power to issue the writs. Article 226 empowers all the high courts of India to issue the writs. Writs of India



are borrowed from English law where they are known as 'Prerogative writs'

Writ Petition

A writ petition is essentially a court petition for extraordinary review, asking a court to intervene in a lower court's decision. Under the Indian legal system, jurisdiction to issue 'prerogative writs' is given to the Supreme Court and the High Courts of Judicature of all Indian states. Parts of the law relating to writs are outlined in the Constitution of India.

Type of Writs

The Constitution empowers the Supreme Court and High Courts to issue orders or writs. The types of writs are:

1. Habeas Corpus
2. Certiorari
3. Prohibition
4. Mandamus
5. Quo Warranto

Habeas Corpus

Introduction

Habeas Corpus is a writ that is enforced to protect the fundamental right to liberty of an individual against unlawful detention. This writ commands a public official to deliver a detained person in front of the court and provide valid reasons for the detention. However, this writ cannot be issued in case the proceeding is for contempt of a legislature or a court.

Meaning:

This writ is in the nature of an order calling upon the person who has detained another to produce the latter before the Court, in order to let the Court, know on what ground he has been confined and to set him free if there is no legal justification for the confinement.

It is one of the important writs for personal liberty which says "You have the Body". The main purpose of this writ is to seek relief from the unlawful detention of an individual. It is for the protection of the individual from being harmed by the administrative system and it is for safeguarding the freedom of the individual against arbitrary state action which violates fundamental rights under articles 19, 21 & 22 of the Constitution. This writ provides immediate relief in case of unlawful detention.



The principle on which Habeas Corpus function is that a person illegally detained in confinement without legal proceedings is entitled to seek the remedy of habeas corpus.

While deciding whether Habeas Corpus writs are civil or criminal in nature, it was held in *Narayan v. Ishwarlal* that the court would rely on the way of the procedures in which the locale has been executed.

How a Writ of Habeas Corpus is filed?

- An application for habeas corpus can be made by any person on the behalf of the prisoner/detenu as well as the prisoner/detenu himself.
- Even a letter to the judge mentioning illegalities committed on prisoners in jail can be admitted. In *Sunil Batra v. Delhi Administration*, a convict had written a letter to one of the Judges of the Supreme Court alleging inhuman torture to a fellow convict. The late justice Krishna Iyer treated this letter as a petition of habeas corpus and passed appropriate orders.
- Courts can also act *Suo motu* in the interests of justice on any information received by it from any quarter/source.

Habeas Corpus is not issued in certain cases

- Where the person who is detained or against whom the writ is issued is not within the jurisdiction of the Court.
- To save the release of a person who has been imprisoned by a Court for a criminal charge.
- To interfere with a proceeding for contempt by a Court of record or by Parliament.

The first Habeas Corpus case of India was that in Kerala where it was filed by the victims' father as the victim P. Rajan who was a college student was arrested by the Kerala police and being unable to bear the torture he died in police custody. So, his father Mr T.V. Eachara Warriar filed a writ of Habeas Corpus and it was proved that he died in police custody.

Implication in Emergency: In the Landmark case of *ADM Jabalpur v. Shivakant Shukla* which is also known as the Habeas Corpus case, it was held that the writ of Habeas Corpus cannot be suspended even during the emergency (Article 359).

Damages: The Court may also award exemplary damages. In *Bhim Singh v. State of Jammu & Kashmir*, the Hon'ble Apex Court awarded the exemplary damages of Rs.50,000/- (At that time this was a very significant amount).



Thus, writ of habeas corpus is a bulwark of personal liberty. It has been described as "a great constitutional privilege" or "first security of civil liberty". The most quintessential element is a speedy and effective remedy.

Writ of Certiorari

Introduction

The writ of certiorari is issued to a lower court directing that the transfer of a case for review, usually to overrule the judgment of the lower court. The Supreme Court issues the writ of Certiorari in case the decision passed by the lower court is challenged by the party. It is issued in case the higher court finds it a matter of over jurisdiction or lack of jurisdiction. It is one of the mechanisms by which the fundamental rights of the citizens are upheld.

Meaning:

The writ of certiorari issued to quash a decision after the decision is taken by a lower tribunal while prohibition is issuable before the proceedings are completed. The law has always been, that a writ of certiorari is issued against the acts or proceedings of a judicial or quasi-judicial body conferred with power to determine question affecting the rights of subjects and obliged to act judicially.

The Purpose: of the writ of certiorari is not only negative in the sense that it is used to quash an action but it contains affirmative action as well. It is preventive as well as curative in nature. The power of judicial review is not restricted where glaring injustice demands affirmative action.

Ways in Which a Writ of Certiorari is Issued

Certiorari is not issued against purely administrative or ministerial orders and that it can only be issued against judicial or quasi-judicial orders.

1. Either without any jurisdiction or in excess
2. In violation of the principles of Natural Justice.
3. In opposition to the procedure established by law.
4. If there is an error in judgement on the face of it

The conditions necessary for the issue of the writ of certiorari are:

1. Anybody of persons.
2. Having legal authority
3. To determine questions affecting the rights of subjects
4. Having the duty to act judicially.



5. Act in excess of legal authority

The grounds on which the writ of certiorari may be issued are:

1. Error of Jurisdiction - Lack of jurisdiction.
2. Excess of jurisdiction.
 - a) Abuse of jurisdiction.
 - b) Error of law apparent on the face of the record.
 - c) Violation of principles of natural justice.

Landmark Cases On Writ of Certiorari

- In *Naresh S. Mirajkar v. State of Maharashtra*, it was said that High Court's judicial orders are open to being corrected by certiorari and that writ is not available against the High Court.
- In the case of *T.C. Basappa v. T. Nagappa & Anr.*, it was held by the constitution bench that certiorari may be and is generally granted when a court has acted (i) without jurisdiction or (ii) in excess of its jurisdiction.
- In *Surya Dev Rai v. Ram Chander Rai & Ors.*, the Supreme Court has explained the meaning, ambit and scope of the writ of Certiorari. It was held that Certiorari is always available against inferior courts and not against equal or higher court.
- In *A.K. Kripak v. Union of India*, it was held that the Supreme Court should issue the writ of certiorari to quash the selection list of the Indian Forest Service on the ground that one of the selected candidates was the ex-officio member of the selection committee.

Prohibition

Prohibition is a writ issued by a higher court to a lower court to enforce inactivity in the jurisdiction. It happens only in case the higher court is of the discretion that the case falls outside the jurisdiction of the lower court. Writ of Prohibition can only be issued against judicial and quasi-judicial authorities.

A writ of prohibition, also known as a 'stay order', is issued to a lower court or a body to stop acting beyond its powers. The basic purpose is to secure that the jurisdiction of an inferior court or tribunal is properly exercised and that it does not usurp the jurisdiction which it does not possess. Thus, writ of prohibition is available during the pendency of the proceedings and before the order is made. Prohibition



is a writ of preventive nature. The principle of this is 'Prevention is better than cure'.

The writ of prohibition can be issued on the following grounds:

1. Absence or Excess of jurisdiction
2. Violation of the principles of natural justice
3. Unconstitutionality of a Statute
4. Infraction of Fundamental Rights.

Landmark Case Laws for Writ of Prohibition

- In the case of East India Commercial Co. Ltd v. Collector of Customs a writ of prohibition was passed directing an inferior Tribunal prohibiting it from continuing with the proceeding on the ground that the proceeding is without or in excess of jurisdiction or in contradiction with the laws of the land, statutes or otherwise.
- Also, it was held in the case of Bengal Immunity Co. Ltd , the Supreme Court pointed out that where an inferior tribunal is shown to have seized jurisdiction which does not belong to it than that consideration is irrelevant and the writ of Prohibition has to be issued as a right.

Mandamus

The writ of mandamus is issued to a subordinate court, an officer of the government, or a corporation or other institution commanding the performance of certain acts or duties. Unlike Habeas Corpus, Mandamus cannot be issued against a private individual.

The writ of mandamus can be used to order the completion of a task or in other cases, it may require an activity to be ceased.

"A writ issued by a court to compel performance of a particular act by lower court or a governmental officer or body, to correct a prior action or failure to act." It is used for enforcement of various rights of the public or to compel the public statutory authorities to discharge their duties and to act within the bounds. It may be used to do justice when there is wrongful exercise of power or a refusal to perform duties.

The rule of Locus Standi is strictly followed in while issuing writ of mandamus. The petitioner has to prove that he has a right to enforce public duty in his favour. The mandamus is "neither a writ of course nor a writ of right but that it will be granted if the duty is in nature of public duty and it especially affects the right of an individual, provided there is no more appropriate remedy."



The necessary conditions for the issue of the writ of mandamus are:

1. Error of jurisdiction = Lack of jurisdiction/ Excess of jurisdiction.
2. Jurisdictional facts
3. Violation of the principles of natural justice = Principles of Rule against bias and Rule of Audi alterum partem
4. Error of law apparent on the face of record
5. Abuse of jurisdiction.

Conditions for Issue of Writ of Mandamus

- Their ought to be a legal right of the applicant for the performance of the legal duty.
- The nature of the duty must be public. In *The Praga Tools Corporation v. C.V. Imanuel*, and *Sohanlal v. Union of India*, the Supreme Court stated that mandamus might under certain circumstances lie against a private individual if it is established that he has colluded with a public authority.
- On the date of the petition, the right which is sought to be enforced must be subsisting.
- The writ of Mandamus is not issued for anticipatory injury. But Anybody who is likely to be affected by the order of a public officer is entitled to bring an application for mandamus if the officer acts in contravention of his statutory duty

Exceptions & Limitations (Mandamus)

In India, mandamus will lie not only against officers who are bound to do a public duty but also against the Government itself as Article 226 and 361 provided that appropriate proceedings may be brought against the Government concerned.

Further, Mandamus will not be granted against the following persons:

- The President or the Governor of a State, for the exercise and performance of the powers and duties of his Office or for any act done or purporting to be done by him in the exercise and performance of those powers and duties. In India, it will not lie upon the President and the Governor of a State in their personal capacities.
- Mandamus does not lie against a private individual or body whether incorporated or not except where the State is in collusion with such private party, in the matter of contravention of any provision of the Constitution or a Statute or a Statutory Instrument.



- It will not lie against the State legislature to prevent from considering enacting a law alleged to be violative of constitutional provisions.
- It will not lie against an inferior or ministerial officer who is bound to obey the orders of his superiors.
- Inferior Courts: This writ is also available against inferior Courts or other Judicial bodies when they have refused to exercise their jurisdiction and thus to perform their duty.
- Alternate Remedy: Mandamus is not refused on the ground that there is an adequate alternative remedy where the petitioner complains that his fundamental right is infringed. In *Rashid Ahmad v. Municipal Board*, it was held that in relation to Fundamental Rights the availability of alternative remedy cannot be an absolute bar for the issue of writ though the fact may be taken into consideration.

Hence the writ of mandamus is to protect the interest of the public from the powers given to them to affect the rights and liabilities of the people. This writ makes sure that the power or the duties are not misused by the executive or administration and are duly fulfilled. It safeguards the public from the misuse of authority by the administrative bodies. Thus, Writ of Mandamus is a general remedy whenever justice has been denied to any person.

Landmark Cases for Writ of Mandamus

- The courts are unwilling to issue writ of mandamus against high dignitaries like the President and the Governors. In the case of *S.P. Gupta v. Union of India*, judges were of the view that writ cannot be issued against the President of India for fixing the number of judges in High Courts and filling vacancies.
- In *C.G. Govindan v. State of Gujarat*, it was refused by the court to issue the writ of mandamus against the governor to approve the fixation of salaries of the court staff by the Chief Justice of High Court under Article 229. Hence, it is submitted that the Governor or the President means the state or the Union and therefore issuance of mandamus cannot take place.

Quo-Warranto

The writ of Quo Warranto (by what warrant) is issued to inquire about the legality of a claim by a person or authority to act in a public



office, which he or she is not entitled to. The writ of Quo Warranto is a mode of judicial control in the sense that the proceedings review the actions of the administrative authority which appointed the person.

Quo warranto is issued against a person who claims or usurps a public office. Through this writ, the court inquires 'by what authority' the person supports his or her claim.

Through this writ, the court enquires into the legality of a claim of a person to a public office. This writ prevents the illegal assumption of a public office by an individual.

The writ is issued to the person ousting him from holding a public post to which he has no right. It is used to try the civil right to a public post. Accordingly, the use of the writ is made in cases of usurpation of a public office and removal of such usurper. Conversely, it protects citizen from being deprived of public office to which he may have a right. A petition for the writ of Quo Warranto can be filed by any person though he is not an aggrieved person.

The conditions necessary for the issue of a writ of Quo Warranto are:

1. The office must be public and it must be created by a statute or by the constitution itself. In the case of *Jamalpur Arya Samaj v. Dr D. Ram*, the writ was denied on the ground that writ of quo warranto cannot lie against an office of a private nature. And also, it is necessary that office must be of substantive character.
2. The office must be a substantive one and not merely the function or employment of a servant at the will and during the pleasure of another.
3. There has been a contravention of the Constitution or a statute or statutory instrument, in appointing such person to that office.
4. The claim should be asserted on the office by the public servant i.e. respondent.

The court issues the Writ of Quo Warranto in the following cases:

1. When the public office is in question and it is of a substantive nature. A petition against a private corporation cannot be filed.
2. The office is created by the State or the Constitution.

Suspension of Fundamental Rights

- Fundamental rights can be suspended in the case of National Emergency as mentioned under article 352.



- The six fundamental rights under Article 19 are automatically suspended in the case National Emergency is imposed on grounds of war or external aggression which is stated under article 358.
- Article 359 has the clause for suspension of other rights. In that case, a separate notification has to be issued by the President.
- The rights mentioned under Article 20 and 21 can never be suspended.
- Constitutional emergency and financial emergency cannot affect the Fundamental Rights.

Status of Writs in Other Countries

- The writs other than habeas corpus are discretionary remedies and have been known as prerogative orders in England and Wales since 1938.
- The writs of quo warranto and procedendo are now obsolete. The modified names of certiorari, mandamus, and prohibition are mentioned under the new Civil Procedure Rules 1998 known as quashing orders, mandatory orders, and prohibiting orders respectively.
- Mandamus has been replaced by injunction in the United States district courts.
- The Supreme Court of the United States grants certiorari while the supreme court of other states grant review.

Limitations to Article 32

There are certain circumstances during which the citizens do not get the privileges which they ought to under Article 32. Therefore, the situations when the fundamental rights may be denied to the citizens but the constitutional remedies will not be available i.e. Article 32 will not be applicable are:

- Under Article 33, the Parliament is empowered to make changes in the application of Fundamental Rights to armed forces and the police are empowered with the duty to ensure proper discharge of their duties.
- During the operation of Martial law in any area, any person may be indemnified by the Parliament, if such person is in service of the state or central government for the acts of maintenance or restoration of law and order under Article 34.



- Under Article 352 of the Constitution when an emergency is proclaimed, the guaranteed Fundamental Rights of the citizens remains suspended. Also, Fundamental Rights guaranteed under Article 19 is restricted by the Parliament under Article 358 during the pendency of an emergency.
- Article 359 confers the power to the President to suspend Article 32 of the Constitution. The order is to be submitted to the Parliament and the Parliament may disapprove President's order.

Article 32A. Constitutional validity of State laws not to be considered in proceedings under article 32.

Omitted by the Constitution (Forty-third Amendment) Act, 1977, s. 3 (w.e.f. 13-4-1978).

By the Forty-third Constitutional Amendment in 1977, Article 32A prohibited the Supreme Court from considering the constitutional validity of State laws in writ proceedings for the enforcement of Fundamental Rights. Article 226A placed a similar prohibition on High Courts from considering the constitutional validity of Central laws.

Article 33. Power of Parliament to modify the rights conferred by this Part in their application to Forces, etc.

Parliament may, by law, determine to what extent any of the rights conferred by this Part shall, in their application to,—

- (a) the members of the Armed Forces; or
- (b) the members of the Forces charged with the maintenance of public order; or
- (c) persons employed in any bureau or other organisation established by the State for purposes of intelligence or counter intelligence; or
- (d) person employed in, or in connection with, the telecommunication systems set up for the purposes of any Force, bureau or organisation referred to in clauses (a) to (c), be restricted or abrogated so as to ensure the proper discharge of their duties and the maintenance of discipline among them.

Article 33 empowers the Parliament to restrict or abrogate the fundamental rights of the 'Members of the Armed Forces', paramilitary forces, police forces, intelligence agencies and analogous forces.



The objective of this provision is to ensure the proper discharge of their duties and the maintenance of discipline among them. The power to make laws under Article 33 is conferred only on Parliament and not on state legislatures. Any such law made by Parliament cannot be challenged in any court on the ground of contravention of any of the fundamental rights. The 'members of the armed forces' also covers non-combatant employees of the armed forces such as barbers, carpenters, mechanics, cooks, chowkidars, bootmakers and tailors.

Article 34. Restriction on rights conferred by this Part while martial law is in force in any area.

Notwithstanding anything in the foregoing provisions of this Part, Parliament may by law indemnify any person in the service of the Union or of a State or any other person in respect of any act done by him in connection with the maintenance or restoration of order in any area within the territory of India where martial law was in force or validate any sentence passed, punishment inflicted, forfeiture ordered or other act done under martial law in such area.

Article 34 provides for the restrictions on fundamental rights while martial law is in force in any area within the territory of India. The expression 'martial law' has not been defined anywhere in the Constitution but literally, it means 'military rule'. The martial law is imposed under extraordinary circumstances like war, invasion, insurrection, rebellion, riot or any violent resistance to law.

Article 34 empowers the Parliament to indemnify (compensate) any government servant or any other person for any act done by him in connection with the maintenance or restoration of order in any area where martial law was in force.

The Act of Indemnity made by the Parliament cannot be challenged in any court on the ground of contravention of any of the fundamental rights

The Supreme Court held that the declaration of martial law does not ipso facto result in the suspension of the writ of habeas corpus. The declaration of a martial law under Article 34 is different from the declaration of a national emergency under Article 352.



Art 34 is an enabling provision to allow Parliament to pass laws indemnifying the armed forces against prosecution for any acts they may have committed when Martial Law is in force.

Article 34 of the Constitution is one of the few provisions that was not part of the Draft Constitution 1948. It was introduced and debated in the Assembly towards the end of the constitution-making process on 14 and 16 November 1949. The Article restricted fundamental rights during the operation of martial law by giving officers of the state certain powers

Article 35. Legislation to give effect to the provisions of this Part.—

Notwithstanding anything in this Constitution,—

(a) Parliament shall have, and the Legislature of a State shall not have, power to make laws—

(i) with respect to any of the matters which under clause (3) of article 16, clause (3) of article 32, article 33 and article 34 may be provided for by law made by Parliament; and

(ii) for prescribing punishment for those acts which are declared to be offences under this Part, and Parliament shall, as soon as may be after the commencement of this Constitution, make laws for prescribing punishment for the acts referred to in sub-clause (ii);

(b) any law in force immediately before the commencement of this Constitution in the territory of India with respect to any of the matters referred to in sub-clause (i) of clause (a) or providing for punishment for any act referred to in sub-clause (ii) of that clause shall, subject to the terms thereof and to any adaptations and modifications that may be made therein under article 372, continue in force until altered or repealed or amended by Parliament.

Explanation.—In this article, the expression “law in force” has the same meaning as in article 372.

Article 35 lays down that the power to make laws, to give effect to certain specified fundamental rights shall vest only in the Parliament and not in the state legislatures.

Powers of Parliament (only) to Make Laws:

- Prescribing residence as a condition for certain employment or appointments in a state/UT/local or any other authority.



- Empowering courts other than the Supreme Court and the high courts to issue directions, orders and writs for the enforcement of fundamental rights.
- Restricting or abrogating the application of Fundamental Rights to members of armed forces, police forces, etc.
- Indemnifying any government servant or any other person for any act done during the operation of martial law in any area.
- The Parliament has powers to make laws prescribing punishment for offences such as untouchability and traffic in human beings and forced labour.
- Article 35 extends the competence of the Parliament to make a law on the specified matters even those matters which may fall within the sphere of the state legislatures (i.e., State List).

Conclusion

The Fundamental Rights, despite having a lot of exceptions & restrictions and lack of permanency, are a crucial part of the Constitution of India as:

- They provide necessary conditions for the material and moral protection of man and ensure the liberty of every individual.
- These rights protect the interests of minorities and weaker sections of society and also strengthen the notion of India as a secular State.

They ensure the dignity and respect of individuals by laying down the foundation of social equality and justice.



CONSTITUTIONAL LAW

By

@The_Lawgical_World



SYLLABUS.....	3
Unit - V.....	4
Directive Principles of State Policy.....	5
Directive Principles of State Policy – Classification.....	7
Significance of DPSP.....	16
Conflict between DPSP and fundamental rights.....	18
Fundamental Duties.....	20



SYLLABUS

Unit - I: Constitution-Meaning and Significance - Evolution of Modern Constitutions - Classification of Constitutions- Indian Constitution - Historical Perspectives - Government of India Act, 1919-Government of India Act, 1935-Drafting of Indian Constitution - Role of Drafting Committee of the Constituent Assembly.

Unit - II: Nature and Salient Features of Indian Constitution - Preamble to Indian Constitution - Union and its Territories-Citizenship - General Principles relating to Fundamental Rights(Art.13) - Definition of State.

Unit - III: Right to Equality(Art.14-18) – Freedoms and Restrictions under Art.19 - Protection against Ex-post facto law - Guarantee against Double Jeopardy - Privilege against Self-incrimination - Right to Life and Personal Liberty - Right to Education – Protection against Arrest and Preventive Detention.

Unit - IV: Rights against Exploitation - Right to Freedom of Religion - Cultural and Educational Rights - Right to Constitutional Remedies - Limitations on Fundamental Rights(Art.31-A,B and C).

Unit - V: Directive Principles of State Policy – Significance – Nature – Classification - Application and Judicial Interpretation - Relationship between Fundamental Rights and Directive Principles - Fundamental Duties – Significance - Judicial Interpretation.



Unit - V

Directive Principles of State Policy – Significance – Nature – Classification - Application and Judicial Interpretation - Relationship between Fundamental Rights and Directive Principles - Fundamental Duties – Significance - Judicial Interpretation



Directive Principles of State Policy

The Directive Principles of State Policy (DPSP) has been taken from the Irish constitution and enumerated in Part IV of the Indian Constitution.

The concept behind the DPSP is to create a 'Welfare State'. In other words, the motive behind the inclusion of DPSP is not establishing political democracy rather, it's about establishing social and economic democracy in the state. These are some basic principles or instructions or guidelines for the government while formulating laws/policies of the country and in executing them.

According to Dr B R Ambedkar, these principles are 'novel features' of the Constitution. DPSP acts as a guideline for the state and should be taken into consideration while coming up with some new policy or any law. But no one can compel the State to consider and follow all that which is mentioned in DPSP, as DPSP is not justiciable.

History

The source of the concept of DPSP is the Spanish Constitution from which it came in the Irish Constitution. The makers of the Indian Constitution were very much influenced by the Irish nationalist movement and borrowed this concept of DPSP from the Irish Constitution in 1937.

The Government of India Act also had some instructions related to this concept which became an important source of DPSP at that time. The Directive Principles of the Constitution of India have been greatly influenced by the Directive Principles of Social Policy. The Indians who were fighting for the independence of India from the British rule were greatly influenced by the movements and independence struggles of Ireland at that time, to free themselves from the British rule and move towards the development of their constitution.

DPSP become an inspiration for independent India's government to tackle social, economic and various other challenges across a diverse nation like India.

DPSP and Fundamental Rights

DPSP and fundamental rights have a common origin. The Nehru Report of 1928 contained the Swaraj Constitution of India which contained some of the fundamental rights and some other rights such as the right to education which were not enforceable at that time.



The Sapru Committee in 1945 suggested two categories of individual rights. One being justiciable and the other being non-justiciable rights.

Justifiable rights, the one which was enforceable in a court of law and included in Part III of the Constitution. On the other hand, Non-justifiable rights were listed as directive principles, which are just there to guide the state to work on the lines for making India a welfare state. They were included in part IV of the Constitution of India as Directive Principles of State Policy.

The Constituent Assembly was given the task of making a constitution for India. The assembly composed of elected representatives and Dr. Rajendra Prasad was elected as its President.

Both the Fundamental Rights and the DPSP were enlisted in all the drafts of the constitution (I, II and III) prepared by the Drafting Committee whose chairman was Dr. B.R. Ambedkar.

The Directive Principles of the State Policy (DPSP) are the guidelines for the state which it must consider while formulating new laws and policies and it lay down all the objectives which the Constitution seeks to achieve.

The expression "Justice – Social, economic and political" that is mentioned in the preamble is the ultimate aim that has to be achieved through the formulation of the DPSP.

DPSP are enlisted to attain this ultimate aim as mentioned in the preamble i.e. Justice, Liberty, Equality and fraternity are also known as the four pillars of the Indian Constitution. It also enlists the idea of the welfare state which was absent under the colonial rule.

Features

- DPSP are not enforceable in a court of law.
- They were made non-justifiable considering that the State may not have enough resources to implement all of them or it may even come up with some better and progressive laws.
- It consists of all the ideals which the State should follow and keep in mind while formulating policies and enacting laws for the country.
- The DPSPs are like a collection of instructions and directions, which were issued under the Government of India Act, 1935, to the Governors of the colonies of India.
- It constitutes a very comprehensive economic, social and political guidelines or principles and tips for a modern democratic State that



aimed towards inculcating the ideals of justice, liberty, equality and fraternity as given in the preamble. The Preamble consists of all the objectives that needs to be achieved through the Constitution.

- Adding DPSP was all about creating a “welfare state” which works for the individuals of the country which was absent during the colonial era.

Directive Principles of State Policy – Classification

Indian Constitution has not originally classified DPSPs but on the basis of their content and direction, they are usually classified into three types-

- Socialistic Principles (Art. 38, 39, 41, 42, 43, 43A, 47)
- Gandhian Principles (Art. 40, 43, 43B, 46, 47, 48)
- Liberal-Intellectual Principles (Art. 44, 45, 48, 48A, 49, 50, 51)

Socialist principles: These principles follow the ideology of “Socialism” and lay down the framework of India. Its ultimate aim is to provide social and economic justice to all its citizens so that the state can fulfil the criteria required for a welfare state. The articles in DPSP which follows the socialist principles are – Article 38, Article 39, Article 39 A, Article 41, Article 42, Article 43, Article 43 A and Article 47.

Gandhian Principles: These principles reflect the programme of reconstruction ideology propagated by Gandhi throughout the national movement. In order to fulfil his dreams, some of his concepts have been included in the form of DPSP. They direct the State through these articles – Article 40, Article 43, Article 43 B, Article 46, Article 47 and Article 48.

Liberal-intellectual Principles: These principles follow the ‘Liberalism’ ideology. The articles which follow this approach in DPSP are – Article 44, Article 45, Article 48, Article 48 A, Article 49, Article 50 and Article 51.

Facts about Directive Principles of State Policy:

1. A new DPSP under Article 38 was added by the 44th Amendment Act of 1978, which requires the State to minimise inequalities in income, status, facilities and opportunities.
2. The 86th Amendment Act of 2002 changed the subject-matter of Article 45 and made elementary education a fundamental right under Article 21A. The amended directive requires the State to



provide early childhood care and education for all children until they complete the age of 14 years.

3. A new DPSP under Article 43B was added by the 97th Amendment Act of 2011 relating to co-operative societies. It requires the state to promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies.
4. The Indian Constitution under Article 37 makes it clear that 'DPSPs are fundamental in the governance of the country and it shall be the duty of the state to apply these principles in making laws.'

Criticism of Directive Principles of State Policy

As a point of debate, the following reasons are stated for the criticism of Directive Principles of State Policy:

1. It has no legal force
2. It is illogically arranged
3. It is conservative in nature
4. It may produce constitutional conflict between centre and state

Part IV

DIRECTIVE PRINCIPLES OF STATE POLICY

Part 4 of the Indian Constitution comprising of 20 sections commencing from article 36 to 51 consists of all the DPSP (Directive Principles of State Policy).

Article 36. Definition.

In this Part, unless the context otherwise requires, "the State" has the same meaning as in Part III.

Article 36 of Part IV defines the term "State" as the one, who has to keep in mind all the DPSP before formulating any policy or law for the country. The definition of "State" in the part IV will be the same as that of Part III, unless the context otherwise requires a change in it.

The state means the government, the parliament of India, Legislature of various states, and all the other local authorities that are within Indian Territory and are under the control of the Indian Government.

Article 37. Application of the principles contained in this Part.

The provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental



in the governance of the country and it shall be the duty of the State to apply these principles in making laws.

In Article 37 the nature of DPSP has been defined. DPSPs are non-justiciable.

This Article says that, the provisions mentioned in this part shall not be enforceable in any court and the principles laid down in this part are fundamental for the governance of the country. The State must make laws according to it because the ultimate aim of the State is the welfare of its citizens.

Article 38. State to secure a social order for the promotion of welfare of the people

(1) The State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political, shall inform all the institutions of the national life.

(2) The State shall, in particular, strive to minimise the inequalities in income, and endeavour to eliminate inequalities in status, facilities and opportunities, not only amongst individuals but also amongst groups of people residing in different areas or engaged in different vocations.

Article 38 to 51 contains all the different DPSP's.

Article 38 talks about Social, Political and Economic Justice. It directs that the State should secure a social order which provides social, political and economic justice to all its citizens. Article 38(2) says that state shall reduce the inequalities faced by the people on the grounds like income, status, facilities, opportunities, etc.

Article 39. Certain principles of policy to be followed by the State.

The State shall, in particular, direct its policy towards securing—

- (a) that the citizens, men and women equally, have the right to an adequate means of livelihood;
- (b) that the ownership and control of the material resources of the community are so distributed as best to subserve the common good;
- (c) that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment;
- (d) that there is equal pay for equal work for both men and women;



- (e) that the health and strength of workers, men and women, and the tender age of children are not abused and that citizens are not forced by economic necessity to enter avocations unsuited to their age or strength;
- (f) that children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that childhood and youth are protected against exploitation and against moral and material abandonment.

Article 39 mentions all the Principles of policy which must be followed by the State. The State shall make its policies towards securing the following objectives—

- All the men, women and citizens should have the right to an adequate means of livelihood
- The ownership and control of the people over any material resources under the community should be distributed as it is for the common good of the public;
- The functioning of the economic system should be such that the concentration of wealth and the means of production don't result in a loss common to all or which causes detriment to the citizens;
- There shall be no gender discrimination, both men and women should get equal pay for equal work.
- The health and strength possessed by any worker, men and women, and the tender age of children should not be abused and the citizens should not be forced to enter and indulge into any occupation or profession which is not suitable for their age or strength, not even out of any financial necessity or economic backwardness
- Children must be given enough opportunities and facilities so that they develop in a healthy manner and in such conditions where their freedom and dignity, including the fact that their childhood and youth remain protected, against any form of exploitation and against any sort of moral and material abandonment.

Article 39A. Equal justice and free legal aid.

The State shall secure that the operation of the legal system promotes justice, on a basis of equal opportunity, and shall, in particular, provide free legal aid, by suitable legislation or schemes or in any other way, to ensure that opportunities for securing justice are not denied to any



citizen by reason of economic or other disabilities.

Article 39A talks about Free Legal aid. It says that the State shall promote justice with the aim of administering Justice on the basis of equal opportunity, and shall provide free legal aid through any suitable legislation or schemes which State may think fit ,or, in any other way, so that it could ensure that the opportunities for securing justice are not denied to any citizen because of economic backwardness or any other kind of disabilities.

Article 40. Organisation of village panchayats.

The State shall take steps to organise village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government.

Article 40 deals with the Organization of Panchayats. It says that the state shall organize Panchayat system and should grant them such powers which would be necessary for the functioning as units of the self-government system. The essential features of Panchayati Raj Institutions must impart certainty, continuity and strength to them. The respective state government must handle the system well and organise the governments at the village level for the betterment of the society and rural areas.

The 73rd and 74th amendments of the constitution which are related to Panchayati Raj and Municipal Corporations respectively, later ended up as the constitutionally backed framework for the principle mentioned in Part IV.

Article 41. Right to work, to education and to public assistance in certain cases.

The State shall, within the limits of its economic capacity and development, make effective provision for securing the right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement, and in other cases of undeserved want.

Article 41 talks about Welfare Government. It says that state shall make some effective provisions for securing the right to work, etc. and in cases of unemployment, old age, disablement or any other cases acting in its economic capacity & development it shall provide public



assistance. This article is employed as a tenet for numerous social sector schemes like social assistance program, right to food security, old-age pension scheme, MGNREGA, etc.

Article 42. Provision for just and humane conditions of work and maternity relief.

The State shall make provision for securing just and humane conditions of work and for maternity relief.

Article 42 talks about Securing just and humane work and maternity relief. It says that state shall create some provisions so that the citizens get easy, just and humane conditions for working. It shall also provide maternity relief for the women.

Article 43. Living wage, etc., for workers

The State shall endeavour to secure, by suitable legislation or economic organisation or in any other way, to all workers, agricultural, industrial or otherwise, work, a living wage, conditions of work ensuring a decent standard of life and full enjoyment of leisure and social and cultural opportunities and, in particular, the State shall endeavour to promote cottage industries on an individual or co-operative basis in rural areas.

Article 43 talks about Fair wages and a decent standard of life. It says that the state can endeavor to secure by appropriate legislation or economic organization to all the workers employed in agricultural, industrial or otherwise, work, a living wage, conditions of work, ensuring a decent standard of life and enjoyment of leisure and social-cultural opportunities and promote cottage industries on an individual or cooperative basis in rural and remote areas of the country.

Article 43A. Participation of workers in management of industries.

The State shall take steps, by suitable legislation or in any other way, to secure the participation of workers in the management of undertakings, establishments or other organisations engaged in any industry.

This article was inserted in the Constitution of India by the Forty-second Amendment Act, 1976 of the Constitution. Under this article, the state is conferred with the power to bring in suitable legislation or apply some other way so as to promote worker's participation in the



management of industrial undertakings. The said article is contained under the part VI of the constitution which comprises the provisions of the Directive Principles of State Policy of India.

Article 43B. Promotion of co-operative societies.

The State shall endeavour to promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies.

Article 43B deals with the promotion of cooperatives. It was inserted by the 97th amendment act in 2011. It says that state shall endeavor to promote the management of the co-operative societies to help the people who are engaged in the same.

Article 44. Uniform civil code for the citizens.

The State shall endeavour to secure for the citizens a uniform civil code throughout the territory of India.

A Uniform Civil Code means that all sections of the society irrespective of their religion shall be treated equally according to a national civil code, which shall be applicable to all uniformly.

Article 45. Provision for early childhood care and education to children below the age of six years.

The State shall endeavour to provide early childhood care and education for all children until they complete the age of six years.

Article 45 contains the Provision for free and compulsory education for the children in the country. The State shall make laws to provide free and compulsory education for the children until they are 14 years old within a period of 10 years from the date of commencement of this provision in the Constitution. This provision was incorporated by the virtue of the 86th Amendment, 2002 in the Constitution of India.

Article 46. Promotion of educational and economic interests of Scheduled Castes, Scheduled Tribes and other weaker sections.

The State shall promote with special care the educational and economic interests of the weaker sections of the people, and, in particular, of the Scheduled Castes and the Scheduled Tribes, and shall protect them from



social injustice and all forms of exploitation.

Article 46 deals with the Protection of SCs, STs, weaker sections from exploitation. The State shall promote with special care including the educational and economic interests of the weaker sections of the society i.e. the SCs and the STs and shall make provisions to protect them from all forms of exploitation which includes social injustice.

Article 47. Duty of the State to raise the level of nutrition and the standard of living and to improve public health.

The State shall regard the raising of the level of nutrition and the standard of living of its people and the improvement of public health as among its primary duties and, in particular, the State shall endeavour to bring about prohibition of the consumption except for medicinal purposes of intoxicating drinks and of drugs which are injurious to health.

Article 47 talks about Nutrition, Standard of living and public health. It says that the State shall look into the matter of raising the level of nutrition and the standard of living of its people and it is the duty of the State to keep a check on the improvement of public health. The State shall endeavor to prohibit the consumption of intoxicating drinks and drugs which are injurious to health except for medicinal purposes.

There are many social development programmes such as National Health Mission, Mid Day Meal Scheme, etc. which target the marginalized sections of the society i.e women, children, weaker sections etc. are inspired by this DPSP.

Article 48. Organisation of agriculture and animal husbandry.

The State shall endeavour to organise agriculture and animal husbandry on modern and scientific lines and shall, in particular, take steps for preserving and improving the breeds, and prohibiting the slaughter, of cows and calves and other milch and draught cattle.

Article 48 talks about Scientific agriculture and animal husbandry. It says that the State shall endeavor to organize agriculture and animal husbandry using modern methods and scientific techniques which make people more advanced and helps in earning their livelihood easily and



State shall take some progressive steps for preserving and improving the existing breeds and prohibiting the slaughter of cows and other cattle.

Article 48A. Protection and improvement of environment and safeguarding of forests and wild life.

The State shall endeavour to protect and improve the environment and to safeguard the forests and wild life of the country.

Article 48A talks about the Environment and Wildlife Protection. The State shall endeavour to protect and improve the environment and surroundings. And to safeguard the forests and wildlife of the country to make the environment sustainable.

Article 49. Protection of monuments and places and objects of national importance.

It shall be the obligation of the State to protect every monument or place or object of artistic or historic interest, declared by or under law made by Parliament to be of national importance, from spoliation, disfigurement, destruction, removal, disposal or export, as the case may be.

Article 49 talks about Protection of monuments and places and objects of national importance. It shall be the duty of the State to protect every monument or place or any object of historic or artistic interest which has some national importance, from any form of disfigurement, destruction, etc.

Article 50. Separation of judiciary from executive.

The State shall take steps to separate the judiciary from the executive in the public services of the State.

Article 50 talks about Separation of Judiciary from the Executive. There should be a line between the judiciary and the executive body of the Government in the public services of the State as it makes it easier if both do not interfere in each other's work and function independently.

Article 51. Promotion of international peace and security

The State shall endeavour to—



- (a) promote international peace and security;
- (b) maintain just and honourable relations between nations;
- (c) foster respect for international law and treaty obligations in the dealings of organised peoples with one another; and
- (d) encourage settlement of international disputes by arbitration.

Article 51 of the Indian Constitution is a directive principle which focuses on the promotion of international peace and security. It is the duty of the State to promote international peace and security, try it's best to maintain just and honourable relations between all the nations, facilitate respect for international law and treaties in dealing with other organized people and encourage settlement of international disputes by arbitration.

Article 51 is to be read with Article 37 of the Indian Constitution. Article 37 mentions that the provisions contained in part IV of the Constitution shall not be enforceable in any court, but still those are crucial in the governance of the country. Therefore, these provisions have been provided because it's the duty of the state to ensure that these principles are applied while making laws.

Significance of DPSP

- Directive Principles are non-justiciable but these are backed by vox populi (voice of the people), which is the real sanction behind every law in reality.
- DPSP gives the philosophical foundations of a welfare system. These principles makes it a responsibility of the State to secure it through welfare legislation.
- Their nature is more of moral ideals. They constitute a moral code for the State but this does not reduce their value as moral principles are very important and the absence of it may hamper the growth of a society. A state is run by its people and the Government is always formed and managed by them, so it's really important to have a set of standards for making laws in the country.
- Directive Principles act as a guide for the government which helps them in making policies and laws for the purpose of securing justice and welfare in the State.



- DPSP are like a source of continuity in the Governance of the country because in a democratic system, the Governments change after regular elections and every new government makes different policies and laws for the country. The presence of such guidelines is really important because it ensures that every Government will follow the set of principles in the form of DPSP while formulating its laws.
- Directive Principles can be called as the positive directions for the State which helps in securing social and economical dimensions of democracy. DPSP are supplementary to Fundamental Rights which offers political rights and other freedoms. They both are nothing without each other as one provides social and economic democracy and the other, political rights.
- Directive Principles of State Policy make it possible for people to measure the worth of a government and its working. A Government which doesn't consider these principles can be rejected on this ground by the people in favour of a government which gives due importance to the task of securing these Directive Principles in the state.
- The Directive Principles constitute a manifesto of a Nation. These reflect the ideas and views which were there in the mind of the drafters while drafting the constitution. These reflected the philosophy behind the making of the Constitution and hence provide useful information to the courts in interpreting the existing provisions in the Constitution and in coming up with better laws and policies.
- The Directive Principles do not seem to be very rigid in their meanings and this helps the State in interpreting and applying these principles in accordance with the situation prevailing at a given time.
- Thus, the inclusion of Part IV which contains the Directive Principles of State Policy proved to be very useful for the country. The Directive Principles provide good foundations for welfare state. The securing of Directive Principles helped in completing the requirements of a democratic system. It supplemented the Fundamental Rights of the people and built a State characterized by these four pillars – Justice, Liberty, Equality, and Fraternity.

Criticism of Directive Principles of State Policy

- Some of its critics hold that these principles don't carry any importance as their violation can't be challenged in the courts.



- The Directive Principles are a mere declaration of the instructions which are to be observed and secured by the State at will. but the Constitution neither makes them justiciable nor it mentions any limit to what extent it can be secured.
- These are neither consistently explicit nor properly classified. These appear to be a collection of instructions which are only based on morals and a State can't rely merely on morals for its working.
- Several Directives lack clarity and they have been repeated at different places.
- The Directive to push international peace and friendly relations among all the nations is just a declaration but the real issue is the securing part of it for which nothing has been given.
- Part IV includes some directives which are not complete in actual observation. The ideal is to introduce prohibition but this ideal cannot be really and effectively realised. The states which introduced prohibition had to scrap it later on.
- Most of the Directive Principles are based on old and foreign philosophy which have lost its relevance now.
- Many critics hold that the Preamble should also enlists all these goals which are given under DPSP and their description in Part IV has made things more complicated and complex than it was before.
- Directive principles just create an impression about the usage of the legitimate power by the State and the motive is to gain support through promise-making and not through inaction.

Conflict between DPSP and fundamental rights

- Fundamental Rights and the DPSP are supplementary to each other and are essential to meet the social and economic dimensions of a democratic government.
- The conflict between Fundamental Rights and DPSP often arises as sometimes it has been seen, by various legislations, that DPSP have wider scope than the Fundamental Rights. The Fundamental Rights are the rights which are enforceable by the Courts and any law that is in contravention to the provisions mentioned in Part III are ultra vires.
- On the other hand, the DPSP are not enforceable in any Court of Law and nothing can be declared as void merely because it is against the provisions given under the DPSP.



- In the case of State of Madras v. Champakam, the Supreme Court held the Fundamental rights are superior to the DPSP saying that the Fundamental Rights under Part III prevails over DPSP in case of any conflict between them.
- In the landmark judgment given by the Supreme Court in the Golak Nath case, it was held that the provisions mentioned under Part III as Fundamental Rights cannot be undermined just to implement the provisions given under Part IV which enlists some important guidelines for the State in the form of the DPSP.
- The Constitution was amended in the year 1971 and through this amendment, Article 31C was incorporated in the Constitution. It confers wider importance on the DPSP.
- In the Minerva Mills case, the Supreme Court restricted this wide scope which was conferred on the DPSP under Article 31C by making the following changes:
 - It restored Article 31C to its pre-1976 position. A law would be protected by Article 31C only in the case if it has been made to implement the Article 39 (b) and Article 39 (c) of the DPSP and not any of the other directive included in Part IV.
 - There is a fine balance in the Constitution between the DPSP and the Fundamental Rights, which should be adhered by the Courts without placing any of them as superior.
 - DPSP covers the Articles 36-51 in Part IV of the constitution.
 - It mentions protection of women of the country, environmental conservation, rural growth and development, decentralisation of power, uniform civil code, etc. which are considered some of the essentials in making laws for a "welfare state".
 - Although non-justiciable, they provide a set of guidelines for the Government for its functioning in the country.



Fundamental Duties

The fundamental duties which were added by the 42nd Amendment Act of the Constitution in 1976, in addition to creating and promoting culture, also strengthen the hands of the legislature in enforcing these duties vis-a-vis the fundamental rights.

42nd Amendment Act of 1976 added 10 Fundamental Duties to the Indian Constitution. 86th Amendment Act 2002 later added 11th Fundamental Duty to the list. Swaran Singh Committee in 1976 recommended Fundamental Duties, the necessity of which was felt during the internal emergency of 1975-77. The Fundamental Duties are dealt with Article 51A under Part-IV A of the Indian Constitution.

Important points on Fundamental Duties

- Fundamental duties are applicable only to citizens and not to the aliens.
- India borrowed the concept of Fundamental Duties from the USSR.
- The inclusion of Fundamental Duties brought our Constitution in line with article 29 (1) of the Universal Declaration of Human Rights and with provisions in several modern Constitutions of other countries.
- Out of the ten clauses in article 51A, six are positive duties and the other five are negative duties. Clauses (b), (d), (f), (h), (j) and (k) require the citizens to perform these Fundamental Duties actively.
- It is suggested that a few more Fundamental Duties, namely, duty to vote in an election, duty to pay taxes and duty to resist injustice may be added in due course to article 51A in Part IVA of the Constitution.
- It is no longer correct to say that Fundamental Duties enshrined in article 51A are not enforceable to ensure their implementation and are a mere reminder. Fundamental Duties have the element of compulsion regarding compliance.
- A number of judicial decisions are available towards the enforcement of certain clauses under Article 51A.

Features:

The features of Fundamental duties are as follows:

1. Both moral and civic duties have been laid down under the fundamental duties, like, "the Indian citizens should not only cherish the noble ideas that lead to the freedom struggle but they should also respect the Constitution, the National Flag and National Anthem".



2. Fundamental rights can be applied to foreigners also but the fundamental duties are only restricted to the Indians citizens.
3. The fundamental duties are not enforceable in nature. No legal sanction can be enforced by the government in case of their violation.
4. These duties are also related to Hindu traditions or mythology like paying respect to the country or promoting the spirit of brotherhood.

Importance of Fundamental Duties

Fundamental Duties are an inalienable part of fundamental rights. The importance of these are given in the table below:

1. They remind Indian Citizens of their duty towards their society, fellow citizens and the nation.
2. They warn citizens against anti-national and anti-social activities
3. They inspire citizens & promote a sense of discipline and commitment among them
4. They help the courts in examining and determining the constitutional validity of a law.

Criticism of Fundamental Duties

The Fundamental Duties mentioned in Part IVA of the Constitution have been criticized on the following grounds:

- They have been described by the critics as a code of moral precepts due to their non-justiciable character. Their inclusion in the Constitution was described by the critics as superfluous. This is because the duties included in the Constitution as fundamental would be performed by the people even though they were not incorporated into the Constitution.
- Some of the duties are vague, ambiguous and difficult to be understood by the common man.
- The list of duties is not exhaustive as it does not cover other important duties like casting vote, paying taxes, family planning and so on. In fact, the duty to pay taxes was recommended by the Swaran Singh Committee.
- The critics said that the inclusion of fundamental duties as an appendage to Part IV of the Constitution has reduced their value and significance. They should have been added after Part III so as to keep them on par with Fundamental Rights.



- Swaran Singh's Committee recommended more than 10 Fundamental Duties, however, not all were included in the Constitution. Those duties recommended by the committee which were not accepted were:
 1. Citizens to be penalized/punished by the parliament for any non-compliance with or refusal to observe any of the duties.
 2. The punishments/penalties decided by the Parliament shall not be called in question in any court on the ground of infringement of any of Fundamental Rights or on the ground of repugnancy to any other provision of the Constitution.
 3. Duty to pay taxes.



PART IVA FUNDAMENTAL DUTIES

Article 51A. Fundamental duties.

It shall be the duty of every citizen of India—

- (a) to abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem;
- (b) to cherish and follow the noble ideals which inspired our national struggle for freedom;
- (c) to uphold and protect the sovereignty, unity and integrity of India;
- (d) to defend the country and render national service when called upon to do so;
- (e) to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women;
- (f) to value and preserve the rich heritage of our composite culture;
- (g) to protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures;
- (h) to develop the scientific temper, humanism and the spirit of inquiry and reform;
- (i) to safeguard public property and to abjure violence;
- (j) to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement;
- (k) who is a parent or guardian to provide opportunities for education to his child or, as the case may be, ward between the age of six and fourteen years.

Only one Article that is Article -51A is there in Part-IV-A of the Indian Constitution that deals with fundamental duties. It was added to the Constitution by the 42nd Amendment Act, 1976. For the first time, a code of 11 fundamental duties was provided to the citizens of India. Article 51-A states that it is the duty of every citizen of India:

1. To respect the Constitution, it's ideals and institutions, the National Flag and National Anthem: Ideals like liberty, justice, equality, fraternity and institution like executive, the legislature, and the judiciary must be respected by all the citizens of the country. No person should undergo any such practice which violates the spirit of the Constitution



and should maintain its dignity. If any person shows disrespect to the National Anthem or to the National Flag then it will be a failure as a citizen of a sovereign nation.

2. The noble ideas that inspire the national struggle to gain independence, one should cherish them: Every citizen must admire and appreciate the noble ideas that inspired the struggle of independence. These ideas focus on making a just society, a united nation with freedom, equality, non-violence, brotherhood, and world peace. A citizen must remain committed to these ideas.

3. One should protect and uphold the sovereignty, unity and integrity of India: This is one of the basic duties that every citizen of India should perform. A united nation is not possible if the unity of the country is jeopardized. Sovereignty lies with the people. Article 19(2) of the Indian Constitution put reasonable restrictions on the freedom of speech and expression in order to safeguard the interest and integrity of India.

4. One should respect the country and render national service when called upon: Every citizen should defend the country against the enemies. All the citizens apart from those who belong to the army, navy etc should be ready to take up arms in order to protect themselves and the nation whenever the need arises.

5. One should promote harmony as well as the spirit of common brotherhood amongst the citizens of India, transcending religious, linguistic, regional or sectional diversities and to renounce practices that are derogatory to the dignity of the women: Presence of one flag and single citizenship not only reflects the spirit of brotherhood but also directs the citizen to leave behind all the differences and focus on collective activity in all spheres.

6. One should value and preserve the heritage of our composite culture: India's culture is one of the richest heritages of the earth. So, it is compulsory for every citizen to protect the heritage and pass it on to future generations.

7. One should protect and improve the natural environment including forests, lakes, rivers, wildlife and a citizen should have compassion for living creatures: Under Article 48A this duty is provided as a constitutional provision also. The natural environment is very important and valuable for each and every country. So each and every citizen should make efforts in order to protect it.

8. One should not only develop the scientific temperament and humanism but also the spirit of inquiry and reform: For his/her own



development it is necessary for a person to learn from the experiences of others and develop in this fast-changing environment. So one should always try to have a scientific temperament in order to adjust with these changes.

9. One should always safeguard public property and abjure Due to unnecessary cases of violence that occurs in a country which preach for non-violence, a lot of harm has already been done to the public property. So, it is the duty of every citizen to protect the public property.

10. One should always strive towards excellence in all spheres of life and also for the collective activity so that the nation continues with its endeavour and achievements: In order to ensure that our country rises to a higher level of achievement, it is the basic duty of every citizen to do the work that is given to him/her with excellence. This will definitely lead the country towards the highest possible level of excellence.

11. One should always provide the opportunity of education to his child or ward between the age of six to fourteen years: Free and compulsory education must be provided to the children who belong to 6 to 14 years of age and this has to be ensured by the parents or guardian of such child. This was provided by the 86th Constitutional Amendment Act, 2002.

Case laws:

M.C. Mehta v. Union of India, 1988 SCR (2) 530

The Fundamental Duty, given in Article 51 A(g) of the Indian Constitution clearly mentions the duty of the citizen to protect the environment. According to this article, it is the duty of every citizen to protect and preserve the natural environment (natural environment includes forest, rivers, lakes, and wildlife). A healthy environment is an essential element of the welfare of any society.

In the case of M.C. Mehta v. Union of India Article 51(g) was enforced by the Supreme Court. In this case, 274.50 million liters of sewage water was being discharged into the river Ganga on a daily basis. This case is about the city of Kanpur, which is the biggest city on the bank of river Ganga. Here water pollution was to a great extent that's why the petitioner filed a petition in the Supreme Court. Here Apex Court of the country found that Municipal bodies and industries in Kanpur were the main reason for polluting the river. Therefore judgment was taken against Kanpur Nagar Mahapalika. In this case, Nagar



Mahapalika and Municipal Boards were held liable because it is their responsibility to maintain and protect the environment in the areas of Kanpur.

Further here the Apex Court held that as there are many grave consequences of water and air pollution and also as there is a need to protect and improve the natural environment it became a moral obligation on the part of the government to ensure the protection of the environment. Also, it is one of the fundamental duties which is given in our constitution which makes a moral obligation on the part of the citizens as well to ensure the protection of the environment. The Supreme Court held that it is the duty of the Central Government to direct all the educational institutions of our country to teach and train citizens about the protection and improvement of the environment for at least one hour a week.

Further Supreme Court held that the Central Government needs to get the textbook written for the same purpose. These textbooks would be further distributed among all educational institutions of our country. There should be training for teachers who are going to give such educational teaching to children.

